

UP TO EUR 96,540,000
FACILITY AGREEMENT
DATED 10 November 2017
FOR
THE REPUBLIC OF CAMEROON
AS BORROWER
REPRESENTED BY THE MINISTER OF ECONOMY,
PLANNING AND REGIONAL DEVELOPMENT
WITH
THE FINANCIAL INSTITUTIONS LISTED IN SCHEDULE 1
AS ORIGINAL LENDERS
STANDARD CHARTERED BANK
AS AGENT
AND
STANDARD CHARTERED BANK
AS ARRANGER

FACILITY AGREEMENT FOR THE RENOVATION
WORKS OF THE STADE DE LA RE-UNIFICATION OF
DOUALA

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THIS AGREEMENT is dated 10 November 2017 and made between:

- (1) **THE REPUBLIC OF CAMEROON AS BORROWER (THE "BORROWER") REPRESENTED BY THE MINISTER OF ECONOMY, PLANNING AND REGIONAL DEVELOPMENT;**
- (2) **THE FINANCIAL INSTITUTIONS** listed in Schedule 1 (*The Original Lenders*) as lenders (the "**Original Lenders**");
- (3) **STANDARD CHARTERED BANK** as agent of the other Finance Parties (the "**Agent**"); and
- (4) **STANDARD CHARTERED BANK** as arranger (the "**Arranger**").

WHEREAS:

- (a) The Minister of Public Contracts has entered into the Commercial Contract with the Contractor (each as defined below).
- (b) In respect of the financing of the Commercial Contract, the Original Lenders have agreed, pursuant to the terms and conditions of the Finance Documents (including the issuance by EDC of the EDC NHS Policy (each as defined below)), to make available to the Borrower an aggregate of EUR 96,540,000.

IT IS AGREED as follows:

1. DEFINITIONS AND INTERPRETATION

1.1 Definitions

In this Agreement:

"Affiliate" means, in relation to any person, a Subsidiary of that person or a Holding Company of that person or any other Subsidiary of that Holding Company.

"Applicable Law" means:

- (a) any law, statute, decree, constitution, decree of implementation, regulation, rule, by-law, order, authorisation, judgment, injunction or other directive of any Government Entity or which is otherwise applicable in Cameroon;
- (b) any treaty, pact or other binding agreement to which any Government Entity is a signatory or party; or
- (c) any judicial or administrative interpretation with binding characteristics or application of those described in paragraphs (a) or (b) above,

and in each case, which is applicable to a Cameroonian Party, a Cameroonian Party's assets or the Transaction Documents.

"Assignment Agreement" means an agreement substantially in the form set out in Schedule 5 (*Form of Assignment Agreement*) or any other form agreed between the relevant assignor and assignee.

"Authorisation" means an authorisation, consent, permit, approval, resolution, licence, exemption, filing, notarisation or registration.

"Availability Period" means the period from and including the date of this Agreement until the date falling 24 Months after the date of this Agreement or such other date agreed in writing between the Borrower and the Agent (on behalf of the Lenders).

"Available Commitment" means a Lender's Commitment minus:

- (a) the amount of its participation in any outstanding Loans; and
- (b) in relation to any proposed Utilisation, the amount of its participation in any Loans that are due to be made on or before the proposed Utilisation Date.

"Available Facility" means the aggregate for the time being of the Available Commitments.

"BEAC" means the Bank of Central African States (*Banque des États de l'Afrique Centrale*).

"Borrower" means the Republic of Cameroon represented by the Minister of Economy, Planning and Regional Development.

"Break Costs" means the amount (if any) by which:

- (a) the interest which a Lender should have received for the period from the date of receipt of all or any part of its participation in a Loan or Unpaid Sum to the last day of the current Interest Period in respect of that Loan or Unpaid Sum, had the principal amount or Unpaid Sum received been paid on the last day of that Interest Period;

exceeds:

- (b) the amount which a Lender would be able to obtain by placing an amount equal to the principal amount or Unpaid Sum received by it on deposit with a leading bank for a period starting on the Business Day following receipt or recovery (or with respect to voluntary prepayments pursuant to Clause 7.6 (*Voluntary prepayment of Loans*) on the Business Day of receipt or recovery) and ending on the last day of the current Interest Period.

"Business Day" means a day (other than a Saturday or Sunday) on which banks are open for general business in London, Toronto, Frankfurt am Main, Brussels and Yaoundé.

"Caisse Autonome d'Amortissement" or **"CAA"** means the Caisse Autonome d'Amortissement (or Autonomous Sinking Fund), a Cameroonian public agency

established by Decree No. 85/1176 of 28 August 1985 and placed under the supervision of the Minister of Finance.

"**Cameroon**" means the Republic of Cameroon.

"**Cameroonian Parties**" means the Borrower and the Minister of Public Contracts.

"**CEMAC**" means the Economic and Monetary Community of Central Africa (*Communauté Économique et Monétaire de l'Afrique Centrale*).

"**Code**" means the US Internal Revenue Code of 1986.

"**Code Général des Impôts**" means the *Code Général des Impôts* (General Tax Code), of the Republic of Cameroon, as updated by Law 2016/018 of 14 December 2016 for the 2017 Financial Year.

"**Commercial Contract**" means the contract, with reference number 000002/M/PR/MINMAP/2017, between the Minister of Public Contracts and the Contractor dated 20 July 2017 relating to the Project.

"**Commitment**" means:

- (a) in relation to the Original Lenders, EUR 96,540,000 as further set out in Schedule 1; and
- (b) in relation to any other Lender, the amount of any Commitment transferred to it under this Agreement,

to the extent not cancelled, reduced or transferred by it under this Agreement.

"**Confidential Information**" means all information relating to the Borrower, the Transaction Documents, the EDC NHS Policy or the Facility of which a Finance Party becomes aware in its capacity as, or for the purpose of becoming, a Finance Party or which is received by a Finance Party in relation to, or for the purpose of becoming a Finance Party under, the Finance Documents or the Facility from either:

- (a) the Borrower or any of its advisers; or
- (b) another Finance Party, if the information was obtained by that Finance Party directly or indirectly from the Borrower or any of its advisers,

in whatever form, and includes information given orally and any document, electronic file or any other way of representing or recording information which contains or is derived or copied from such information but excludes information that:

- (i) is or becomes public information other than as a direct or indirect result of any breach by that Finance Party of Clause 35 (*Confidential Information*);
- (ii) is legitimately obtained by a Finance Party from a third party, who has the legal right to transfer such information and is not bound by

confidentiality or similar obligations to that Finance Party, without restrictions in respect of disclosure or use;

- (iii) is developed at any time by a Finance Party without use, directly or indirectly, of Confidential Information;
- (iv) is identified in writing at the time of delivery as non-confidential by the Borrower or any of its advisers; or
- (v) is known by that Finance Party before the date the information is disclosed to it in accordance with paragraph (a) or (b) above or is lawfully obtained by that Finance Party after that date, from a source which is, as far as that Finance Party is aware, unconnected with the Borrower and which, in either case, as far as that Finance Party is aware, has not been obtained in breach of, and is not otherwise subject to, any obligation of confidentiality.

"Confidentiality Undertaking" means a confidentiality undertaking substantially in a recommended form of the LMA or in any other form agreed between the Borrower and the Agent.

"Contractor" means Canadian Commercial Corporation.

"Contractor Certificate" means a certificate substantially in the form of Schedule 8 (*Form of Contractor Certificate*) signed by a duly authorized officer or representative of the Contractor.

"Contractor Declaration" means a declaration substantially in the form of Schedule 9 (*Form of Contractor Declaration*) signed by a duly authorized officer or representative of the Contractor.

"Default" means an Event of Default or any event or circumstance specified in Clause 22 (*Events of Default*) which would (with the expiry of a grace period, the giving of notice, the making of any determination under the Finance Documents or any combination of any of the foregoing) be an Event of Default.

"Disruption Event" means either or both of:

- (a) a material disruption to those payment or communications systems or to those financial markets which are, in each case, required to operate in order for payments to be made in connection with the Facility (or otherwise in order for the transactions contemplated by the Finance Documents to be carried out) which disruption is not caused by, and is beyond the control of, any of the Parties; or
- (b) the occurrence of any other event which results in a disruption (of a technical or systems-related nature) to the treasury or payments operations of a Party preventing that, or any other Party:
 - (i) from performing its payment obligations under the Finance Documents; or

- (ii) from communicating with other Parties in accordance with the terms of the Finance Documents,

and which (in either such case) is not caused by, and is beyond the control of, the Party whose operations are disrupted.

"EDC" means Export Development Canada, a corporation established by an Act of Parliament of Canada, whose registered office is at Ottawa, Ontario, Canada.

"EDC Cover Event" means any of the following events or circumstances:

- (a) it is or becomes unlawful for EDC to perform or comply with any or all of its payment obligations pursuant to the EDC NHS Policy; or
- (b) any of the obligations of EDC under the EDC NHS Policy are not or cease to be legal, valid, binding, enforceable or in full force and effect, the EDC NHS Policy is fully or partially withdrawn or EDC otherwise avoids, rescinds, repudiates, suspends or terminates the EDC NHS Policy in whole or in part.

"EDC NHS Policy" means the Non-Honouring Sovereign insurance cover (including the applicable general conditions, special conditions, particular conditions, policy endorsements and all other attachments thereto) issued by EDC in favour of the Original Lenders, whereby EDC agrees to provide comprehensive (political and commercial) risk cover, on the terms and conditions thereof, in respect of 95% of the Total Commitments and interest thereon.

"EDC Premium" means the premium as calculated by EDC payable in euro by the Agent to EDC in accordance with Clause 12.1 (*Payment of the EDC Premium*) in respect of the cover provided by EDC under the EDC NHS Policy and all other costs from time to time required in obtaining and maintaining the EDC NHS Policy.

"EDC Required Documents" means:

- (a) a duly completed and executed Contractor Certificate;
- (b) each of the other documents, information and other evidence specified in and required to be enclosed with such Contractor Certificate including the Contractor Declaration and each other document to be enclosed therewith;
- (c) any further documents provided for under the Commercial Contract which grant entitlement to payment; and
- (d) each of the other documents, information and other evidence (if any) notified to the Borrower by the Agent and required by EDC under the EDC NHS Policy,

in each case for the purposes of enabling the Lenders to make a Utilisation.

"Environment" means humans, animals, plants and all other living organisms including the ecological systems of which they form part and the following media:

- (a) air (including air within natural or man-made structures, whether above or below ground);
- (b) water (including territorial, coastal and inland waters, water under or within land and water in drains and sewers); and
- (c) land (including land under water),

and human health, labour, workers' rights, human rights and cultural heritage and the built environment.

"Environmental Claim" means any claim, proceeding, formal notice or investigation by any person in respect of any Environmental Law.

"Environmental Incident" means an incident or accident relating to the Project which under Environmental Laws requires the Contractor or the Borrower to undertake emergency or immediate remedial action and which has the following impacts in any of the categories specified:

- (a) in relation to health: death, major disability or serious health damage;
- (b) in relation to society:
 - (i) destruction of a site or object of cultural or religious significance; or
 - (ii) serious social conflict, civil unrest or worker-related protest within the community; and
- (c) in relation to the Environment: material damage to the Environment or material breaches or violations of Environmental Law and/or Environmental Standards.

"Environmental Law" means any applicable law or regulation which:

- (a) has as its purpose or effect the protection from or prevention of pollution or degradation of, or harm or damage to, the Environment;
- (b) provides remedies or compensation for harm or damage to the Environment;
- (c) relates to natural resource efficiency;
- (d) relates to the harming of or the protection of human health (including laws relating to the quality of life and legal rights of communities) or the health of animals or plants, human rights, including resettlement and land acquisition;
- (e) relates to biodiversity conservation or the sustainable management of living natural resources;
- (f) relates to the protection of indigenous people;
- (g) relates to community or occupational health, safety or security;

- (h) relates to labour conditions, the conditions of the workplace, workers' rights or human rights;
- (i) relates to resettlement or economic displacement of persons; or
- (j) relates to Hazardous Substances,

and the Authorisations required under such laws and regulations.

"Environmental Licence" means any Authorisation, notification, assessment, certificate, allowance or credit required under any Environmental Law.

"Environmental Standards" means:

- (a) the Performance Standards on Environmental and Social Sustainability published by the International Finance Corporation on 1 January 2012;
- (b) the World Bank Group Environmental, Health and Safety (EHS) General Guidelines (2007);
- (c) the Equator Principles as set out in the paper entitled "A financial industry benchmark for determining, assessing and managing environmental and social risk in projects" dated June 2017; and
- (d) all Environmental Laws.

"EURIBOR" means, in relation to any Loan or Unpaid Sum:

- (a) the applicable Screen Rate as of 11:00 a.m. (Brussels time) for euro and for a period equal in length to the Interest Period of that Loan or Unpaid Sum; or
- (b) as otherwise determined pursuant to Clause 10.3 (*Unavailability of Screen Rate*);

and if, in either case, that rate is less than zero, EURIBOR shall be deemed to be zero.

"Event of Default" means any event or circumstance specified as such in Clause 22 (*Events of Default*).

"Excluded Assets" means:

- (a) present or future "premises of the mission" as such term is defined in the Vienna Convention of Diplomatic Relations signed in 1961 or "consular premises" as such term is defined in the Vienna Convention on Consular Relations signed in 1977 by Cameroon; and
- (b) property of a military character or in use for military purposes and in each case under control of a military authority or defence agency.

"External Indebtedness" means:

- (a) all Financial Indebtedness expressed or denominated or payable or which, at the option of the relevant creditor may be payable, in any currency other than the lawful currency of Cameroon from time to time; and
- (b) all Financial Indebtedness which is or may become payable to a person which is resident outside Cameroon or has its head office, registered office or principal place of business outside Cameroon.

"Facility" means the term loan facility made available under this Agreement as described in Clause 2 (*The Facility*).

"Facility Office" means the office or offices notified by a Lender to the Agent in writing on or before the date it becomes a Lender (or, following that date, by not less than five (5) Business Days' written notice) as the office or offices through which it will perform its obligations under this Agreement.

"FATCA" means:

- (a) sections 1471 to 1474 of the Code or any associated regulations;
- (b) any treaty, law or regulation of any other jurisdiction, or relating to an intergovernmental agreement between the US and any other jurisdiction, which (in either case) facilitates the implementation of any law or regulation referred to in paragraph (a) above; or
- (c) any agreement pursuant to the implementation of any treaty, law or regulation referred to in paragraphs (a) or (b) above with the US Internal Revenue Service, the US government or any governmental or taxation authority in any other jurisdiction.

"FATCA Deduction" means a deduction or withholding from a payment under a Finance Document required by FATCA.

"FATCA Exempt Party" means a Party that is entitled to receive payments free from any FATCA Deduction.

"Fee Letter" means any letter or letters dated on or about the date of this Agreement between the Arranger and the Borrower (or the Agent and the Borrower) setting out any of the fees referred to in Clause 11 (*Fees*).

"Final Maturity Date" means the date that falls one-hundred and twenty (120) Months after the date of this Agreement.

"Finance Document" means this Agreement, each Fee Letter and any other document designated as such by the Agent and the Borrower.

"Finance Letter" means a letter from the Minister of Finance of the Republic of Cameroon to the Finance Parties substantially in the form set out in Schedule 6 (*Form of Finance Letter*).

"Finance Party" means the Agent, the Arranger and each Lender.

"Financial Indebtedness" means any indebtedness for or in respect of:

- (a) moneys borrowed;
- (b) any amount raised by acceptance under any acceptance credit facility or dematerialised equivalent;
- (c) any amount raised pursuant to any note, note purchase facility, or the issue of any bonds, notes, commercial papers, debentures, loan stock or similar instrument;
- (d) the amount of any liability in respect of any lease or hire purchase contract, which in accordance with GAAP, would be treated as a finance/capital or operating lease;
- (e) receivables sold or discounted (unless sold on non-recourse basis);
- (f) deferred payments for goods or services acquired;
- (g) any amount raised under any other transaction having the commercial effect of a borrowing;
- (h) any derivative transaction to protect against or benefit from fluctuations in any rate or price (and, when calculating the value of any derivative transaction, only the marked to market value will be taken into account);
- (i) any counter-indemnity obligation in respect of a guarantee, indemnity, bond, standby or documentary letter of credit or any other instrument issued by a bank or financial institution or credit insurer; and
- (j) any liability in respect of a guarantee or indemnity for any of the items referred to in paragraphs (a) to (i) above.

"First Repayment Date" means the date falling six (6) Months after the Starting Point of Credit.

"GAAP" means generally accepted accounting principles in Cameroon.

"Government Entity" means:

- (a) any national government or political subdivision of a national government;
- (b) BEAC and any banking or monetary authority of a national government or of a political subdivision of a national government;
- (c) any local jurisdiction of a national government or of a political subdivision of a national government;
- (d) the European Central Bank or the Council of Ministers of the European Union;

- (e) any instrumentality, commission, board commission, authority, department, division, organ, court or agency of any of the foregoing or of CEMAC, however constituted; or
- (f) any association, organisation or institution of which any of the entities listed in the preceding paragraphs is a member (including, without limitation, any European supranational body) or to whose jurisdiction any of them is subject or in whose activities any of them is a participant.

"Hazardous Substance" means any waste, pollutant, emission, contaminant or other substance (including any liquid, solid, gas, ion, living organism or noise) that may be harmful to human health or other life or the Environment or a nuisance to any person or that may make the use or ownership of any affected land or property more costly.

"Holding Company" means, in relation to a person, any other person in respect of which it is a Subsidiary.

"Illicit Origin" means any origin which is illicit or fraudulent, including without limitation, drug trafficking, corruption, organized criminal activities, terrorism, money laundering or fraud.

"IMF" means the International Monetary Fund.

"IMF Debt Limit Policy" has the meaning given to that term in Schedule 2, section 6(a).

"Initial Loan" means any Loan made for the purpose set out in paragraphs (b) and (c) of Clause 3.1 (*Purpose*).

"Initial Loan Request" means a notice substantially in the form set out in Part II of Schedule 3 (*Form of Initial Loan Request*).

"Interest Payment Date" means the last day of an Interest Period.

"Interest Period" means, in relation to a Loan, each period determined in accordance with Clause 9 (*Interest Periods*) and, in relation to an Unpaid Sum, each period determined in accordance with Clause 8.3 (*Default interest*).

"International Monetary Assets" means all:

- (a) official holdings of gold;
- (b) Special Drawing Rights;
- (c) Reserve Positions in the Fund;
- (d) Foreign Exchange; and
- (e) banknotes and coins of convertible currency held through BEAC in accounts in foreign banks and in the IMF, and promissory notes, certificates of deposit, bonds, and other securities payable in a convertible currency which are held through BEAC,

held by the Borrower or its agencies (and for the purpose of this definition, the terms "**Special Drawing Rights**", "**Reserve Positions in the Fund**" and "**Foreign Exchange**" have, as to the types of assets included, the meanings given to them in the IMF's publication entitled "International Financial Statistics" or such other meanings as shall be formally adopted by the IMF from time to time).

"**Interpolated Screen Rate**" means, in relation to any Loan or Unpaid Sum, the rate (rounded to the same number of decimal places as the two relevant Screen Rates) which results from interpolating on a linear basis between:

- (a) the applicable Screen Rate for the longest period (for which that Screen Rate is available) which is less than the Interest Period of that Loan or Unpaid Sum; and
- (b) the applicable Screen Rate for the shortest period (for which that Screen Rate is available) which exceeds the Interest Period of that Loan or Unpaid Sum,

each as of the Specified Time for the currency of that Loan or Unpaid Sum.

"**Lender**" means:

- (a) each Original Lender; and
- (b) any bank, financial institution, trust, fund or other entity which has become a Party in accordance with Clause 23 (*Changes to the Parties*),

which in each case has not ceased to be a Party in accordance with the terms of this Agreement.

"**LMA**" means the Loan Market Association.

"**Loan**" means a loan made or to be made under the Facility or the principal amount outstanding for the time being of that loan.

"**Local cost**" means expenditure for goods and services in Cameroon that are necessary for executing the Commercial Contract or for completing the Project, as approved by the Lenders, where such approval is required.

"**Majority Lenders**" means a Lender or Lenders whose Commitments aggregate more than 66 2/3% of the Total Commitments (or, if the Total Commitments have been reduced to zero, aggregated more than 66 2/3% of the Total Commitments immediately prior to the reduction).

"**Margin**" means 1.75% per annum.

"**Market Disruption Event**" has the meaning given to that term in Clause 10.1(b).

"**Material Adverse Effect**" means, in the reasonable opinion of the Majority Lenders, a material adverse effect on:

- (a) the property, condition (financial or otherwise) or prospects of the Borrower;

- (b) the financial, economic, political or social conditions in Cameroon (including any sovereign intervention risk, any sovereign risk downgrading of Cameroon and/or deterioration in the financial sector in Cameroon, extension of exchange controls or a debt moratorium or a change in law or regulation);
- (c) the ability of the Borrower to perform any of its obligations under the Finance Documents;
- (d) the validity, legality or enforceability of the Finance Documents or the rights or remedies of any Finance Party thereunder;
- (e) the international or any relevant domestic (including that of Cameroon) loan, debt, bank, equity or capital markets, or the ability of the Borrower to access such markets; or
- (f) the ability of the Contractor to perform and comply with its material obligations under the Commercial Contract.

"Month" means a period starting on one day in a calendar month and ending on the numerically corresponding day in the next calendar month, except that:

- (a) (subject to paragraph (c) below) if the numerically corresponding day is not a Business Day, that period shall end on the next Business Day in that calendar month in which that period is to end if there is one or, if there is not, on the immediately preceding Business Day;
- (b) if there is no numerically corresponding day in the calendar month in which that period is to end, that period shall end on the last Business Day in that calendar month; and
- (c) if an Interest Period begins on the last Business Day of a calendar month, that Interest Period shall end on the last Business Day in the calendar month in which that Interest Period is to end.

The above rules will only apply to the last Month of any period.

"New Lender" has the meaning given to that term in Clause 23 (*Changes to the Parties*).

"Participating Member State" means any member state of the European Union that has the euro as its lawful currency in accordance with legislation of the European Union relating to Economic and Monetary Union.

"Party" means a party to this Agreement.

"Payment Request" means a notice from the Borrower to the Agent substantially in the form set out in Part I (*Form of Payment Request*) of Schedule 3.

"Prohibited Payment" means any offer, gift, payment, promise to pay, commission, fee, loan or other consideration which would or might:

- (a) constitute bribery or an improper gift or payment under, or a breach of, any law of any relevant jurisdiction; or
- (b) constitute bribery within the meaning of the OECD Convention on Combating Bribery of Foreign Public Officials in International Business Transactions of 17 December 1997 (effective 15 February 1999).

"Project" means the construction works relating to the rehabilitation and extension of the Re-Unification Stadium of Douala and its related infrastructure.

"Project Financing" means any arrangement for the provision of funds which are to be used solely to finance a project for the acquisition, construction, development or exploitation of any property pursuant to which the persons providing such funds agree that the principal source of repayment of such funds will be the project and the revenues (including insurance proceeds) generated by such project.

"Public Contracts Code" means Decree No. 2004/275 of 24 September 2004 to institute a Public Contracts Code (*Décret n° 2004/275 du 24 septembre 2004 portant Code des Marchés Publics*) (as subsequently amended).

"Quotation Day" means, in relation to any period for which an interest rate is to be determined, two (2) TARGET Days before the first day of that period unless market practice differs in the Relevant Market, in which case the Quotation Day will be determined by the Agent in accordance with market practice in the Relevant Market (and if quotations would normally be given on more than one day, the Quotation Day will be the last of those days).

"Re-Unification Stadium of Douala" means the reunification sports stadium in Douala, its annex and related infrastructure.

"Related Fund" in relation to a fund (the **"first fund"**), means a fund which is managed or advised by the same investment manager or investment adviser as the first fund or, if it is managed by a different investment manager or investment adviser, a fund whose investment manager or investment adviser is an Affiliate of the investment manager or investment adviser of the first fund.

"Relevant Market" means the European interbank market.

"Repayment Date" means:

- (a) the First Repayment Date;
- (b) each date falling at intervals of six (6) Months after the First Repayment Date and before the Final Maturity Date; and
- (c) the Final Maturity Date.

"Repeating Representations" means each of the representations set out in Clauses 19.1 (*Status*) to 19.6 (*Governing law and enforcement*), 19.9 (*No misleading information*), 19.10 (*Pari passu ranking*), 19.13 (*Environmental*), 19.15 (*Commercial Contract*), 19.16 (*Taxation*), 19.21 (*No immunity*), 19.22 (*Private and commercial acts*) and 19.24 (*Restricted Party*)

"Representative" means any delegate, agent, manager, administrator, nominee, attorney, trustee or custodian.

"Restricted Party" means any person that is:

- (a) listed on, or owned or controlled by a person listed on, or acting on behalf of a person listed on, any Sanctions List;
- (b) located in, incorporated under the laws of, or owned or (directly or indirectly) controlled by, or acting on behalf of, a person located in or organised under the laws of a country or territory that is the target of country-wide or territory-wide Sanctions; or
- (c) otherwise a target of Sanctions ("target of Sanctions" signifying a person with whom a US person or other national of a Sanctions Authority would be prohibited or restricted by law from engaging in trade, business or other activities).

"Sanctions" means the economic sanctions laws, regulations, embargoes or restrictive measures administered, enacted or enforced by:

- (a) the United States government;
- (b) the United Nations;
- (c) the European Union;
- (d) the United Kingdom;
- (e) Canada; or
- (f) the respective governmental institutions and agencies of any of the foregoing, including, without limitation, the Office of Foreign Assets Control of the US Department of Treasury ("OFAC"), the United States Department of State, and Her Majesty's Treasury ("HMT"), (together the **"Sanctions Authorities"**).

"Sanctions List" means the "Specially Designated Nationals and Blocked Persons" list maintained by OFAC, the "Consolidated List of Financial Sanctions Targets" and the "Investment Ban List" maintained by HMT, or any similar list maintained by, or public announcement of Sanctions designation made by, any of the Sanctions Authorities.

"Screen Rate" means, in relation to EURIBOR, the euro interbank offered rate administered by the European Money Markets Institute (or any other person which takes over the administration of that rate) for the relevant period displayed (before any correction, recalculation or republication by the administrator) on page EURIBOR01 of the Thomson Reuters screen (or any replacement Thomson Reuters page which displays that rate) or on the appropriate page of such other information service which publishes that rate from time to time in place of Thomson Reuters. If such page or service ceases to be available, the Agent may specify another page or service displaying the relevant rate after consultation with the Borrower.

"Security" means:

- (a) a mortgage, charge, pledge, lien, hypothecation, assignment by way of security, trust arrangement or other security interest securing any obligation of any person or any other agreement or arrangement having a similar effect; and
- (b) any proprietary interest over an asset, or any contractual arrangement in relation to an asset, in each case created in relation to Financial Indebtedness and which has the same commercial effect as if security had been created over it.

"Specified Time" means a day or time determined in accordance with Schedule 11 (*Timetables*).

"Starting Point of Credit" means the earlier of:

- (a) the date on which commercial operations is achieved under the Commercial Contract; and
- (b) the end of the Availability Period.

"Structuring and Arrangement Fee" means the fee referred to in Clause 11.2 (*Structuring and Arrangement Fee and other costs and expenses*) as more fully set out in the Fee Letter.

"Subsidiary" means a subsidiary within the meaning of section 1159 of the Companies Act 2006.

"TARGET2" means the Trans-European Automated Real-time Gross Settlement Express Transfer payment system which utilises a single shared platform and which was launched on 19 November 2007.

"TARGET Day" means any day on which TARGET2 is open for the settlement of payments in euro.

"Tax" means any tax, levy, impost, duty or other charge or withholding of a similar nature (including any penalty or interest payable in connection with any failure to pay or any delay in paying any of the same).

"Total Commitments" means the aggregate of the Commitments and the Initial Loan being EUR 96,540,000 at the date of this Agreement.

"Transaction Documents" means the Finance Documents and the Commercial Contract.

"Transfer Certificate" means a certificate substantially in the form set out in Schedule 4 (*Form of Transfer Certificate*) or any other form agreed between the Agent and the Borrower.

"Transfer Date" means, in relation to an assignment or a transfer, the later of:

- (a) the proposed Transfer Date specified in the relevant Assignment Agreement or Transfer Certificate; and
- (b) the date on which the Agent executes the relevant Assignment Agreement or Transfer Certificate.

"Unpaid Sum" means any sum due and payable but unpaid by the Borrower under the Finance Documents.

"US" means the United States of America.

"Utilisation" means a utilisation of the Facility.

"Utilisation Date" means the date of a Utilisation, being the date on which the relevant Loan is to be made.

"Utilisation Request" means a Payment Request or an Initial Loan Request.

"VAT" means value added tax or sales tax and any other tax of a similar nature imposed in any jurisdiction

"World Bank Group" is a reference to the World Bank Group and includes The International Bank for Reconstruction and Development ("IBRD"), The International Development Association ("IDA"), The International Finance Corporation ("IFC") and The Multilateral Investment Guarantee Agency ("MIGA").

1.2 Construction

- (a) Unless a contrary indication appears, any reference in this Agreement to:
 - (i) the **"Agent"**, the **"Arranger"**, the **"Borrower"**, any **"Finance Party"**, any **"Lender"**, **"EDC"**, or any **"Party"** shall be construed so as to include its successors in title, permitted assigns and permitted transferees to, or of, its rights and/or obligations under the Finance Documents;
 - (ii) an **"agency"** of a state shall be construed as a reference to any political sub-division, regional or municipal government, ministry, department, authority or statutory corporation (whether autonomous or not) of, or any corporation or other entity which is controlled or (as to 50% or more of its issued share capital or the equivalent thereof) owned, directly or indirectly, by, such state or its government and/or one or more such agencies;
 - (iii) **"assets"** includes present and future properties, revenues and rights of every description;
 - (iv) a **"Finance Document"** or any other agreement or instrument is a reference to that Finance Document or other agreement or instrument as amended, novated, supplemented, extended or restated;

- (v) **"indebtedness"** includes any obligation (whether incurred as principal or as surety) for the payment or repayment of money, whether present or future, actual or contingent;
 - (vi) a **"person"** includes any individual, firm, company, corporation, government, state or agency of a state or any association, trust, joint venture, consortium, partnership or other entity (whether or not having separate legal personality);
 - (vii) a **"regulation"** includes any regulation, rule, official directive, request or guideline (whether or not having the force of law) of any governmental, intergovernmental or supranational body, agency, department or of any regulatory, self-regulatory or other authority or organisation;
 - (viii) a provision of law is a reference to that provision as amended or re-enacted;
 - (ix) the words **"including"**, **"other"**, **"in particular"**, **"for example"** and similar words shall not limit the generality of the preceding words and shall be construed as if they were immediately followed by the words **"without limitation"**; and
 - (x) a time of day is a reference to London time.
- (b) Section, Clause and Schedule headings are for ease of reference only.
 - (c) The determination of the extent to which a rate is **"for a period equal in length"** to an Interest Period shall disregard any inconsistency arising from the last day of that Interest Period being determined pursuant to the terms of this Agreement.
 - (d) an event or circumstance which has **"a material adverse effect on the Environment"** includes an event or circumstance which: (i) has resulted in protests from the community or from any non-governmental organisation; (ii) might result in a risk of multiple serious injuries or fatalities; (iii) might result in criminal proceedings or a major environmental incident; or (iv) might result in serious reputational damage to the Lenders or the Borrower.
 - (e) Unless a contrary indication appears, a term used in any other Finance Document or in any notice given under or in connection with any Finance Document has the same meaning in that Finance Document or notice as in this Agreement.
 - (f) A Default (other than an Event of Default) is **"continuing"** if it has not been remedied or waived and an Event of Default is **"continuing"** if it has not been waived.

1.3 Currency symbols and definitions

- (a) **"\$"**, **"USD"**, **"US\$"** and **"dollars"** denote the lawful currency of the United States of America.

- (b) "EUR" and "euro" denote the single currency of the Participating Member States.
- (c) "XAF" and "Central African CFA franc" denote the single currency of the CEMAC.

1.4 Third party rights

- (a) Unless expressly provided to the contrary in a Finance Document, a person who is not a party to a Finance Document has no right under the Contracts (*Rights of Third Parties*) Act 1999 (the "**Third Parties Act**") to enforce or to enjoy the benefit of any term of that Finance Document.
- (b) Subject to Clause 34.3 (*Other exceptions*) but otherwise notwithstanding any term of any Finance Document, the consent of any person who is not a Party (other than EDC if required pursuant to the terms of the EDC NHS Policy) is not required to rescind or vary a Finance Document at any time.
- (c) EDC may enforce the terms of any Clause in this Agreement expressly conferring rights on it, subject to this Clause 1.4 and the provisions of the Third Parties Act.

1.5 EDC Override

- (a) If and to the extent that:
 - (i) any provision of this Agreement is inconsistent with the provisions of any EDC NHS Policy; and
 - (ii) such inconsistency may have the effect of preventing the Agent or a Lender from fulfilling any of its obligations under EDC NHS Policy or rendering all or any part of any EDC NHS Policy void, voidable or otherwise not in full force and effect,

then the EDC NHS Policy shall prevail.

- (b) Notwithstanding anything to the contrary in this Agreement, nothing in this Agreement shall oblige any Finance Party to act in a manner that is inconsistent (or prevent a Finance Party from acting in a manner that is consistent) with any requirement of EDC under or in connection with the EDC NHS Policy, and in particular:
 - (i) the Agent shall be authorised to take all such actions as it may deem necessary to ensure that all requirements of EDC under or in connection with the EDC NHS Policy are complied with; and
 - (ii) the Agent shall not be obliged to do anything if, in its opinion, to do so could result in a breach of any requirement of EDC under or in connection with the EDC NHS Policy or affect the validity of the EDC NHS Policy.

- (c) If, in the opinion of the Agent (acting on the instructions of the Lenders), there are any provisions of this Agreement that contradict or conflict with any provision of the EDC NHS Policy such that compliance by the Agent or a Lender with the terms of the EDC NHS Policy may result in a breach by the Agent or that Lender of the terms of this Agreement, the relevant terms of this Agreement shall be amended as necessary so that compliance by the Agent or that Lender with such provision of the EDC NHS Policy will not result in a breach of the terms of this Agreement, except to the extent that such contradiction or conflict results directly from the gross negligence or wilful default of the Agent or that Lender.

2. THE FACILITY

2.1 The Facility

Subject to the terms of this Agreement, the Lenders make available to the Borrower a euro term loan facility in an aggregate amount equal to the Total Commitments.

2.2 Finance Parties' rights and obligations

- (a) The obligations of each Finance Party under the Finance Documents are several. Failure by a Finance Party to perform its obligations under the Finance Documents does not affect the obligations of any other Party under the Finance Documents. No Finance Party is responsible for the obligations of any other Finance Party under the Finance Documents.
- (b) The rights of each Finance Party under or in connection with the Finance Documents are separate and independent rights and any debt arising under the Finance Documents to a Finance Party from the Borrower is a separate and independent debt in respect of which a Finance Party shall be entitled to enforce its rights in accordance with paragraph (c) below. The rights of each Finance Party include any debt owing to that Finance Party under the Finance Documents and, for the avoidance of doubt, any part of a Loan or any other amount owed by the Borrower which relates to a Finance Party's participation in the Facility or its role under a Finance Document (including any such amount payable to the Agent on its behalf) is a debt owing to that Finance Party by the Borrower.
- (c) A Finance Party may, except as specifically provided in the Finance Documents, separately enforce its rights under or in connection with the Finance Documents.

2.3 Borrower's obligations

- (a) The obligations of the Borrower to make payments and to observe and perform all its other obligations under this Agreement and under the other Finance Documents are absolute, unconditional, irrevocable and several. Accordingly such obligations shall not:
 - (i) in any way be affected or discharged by reason of any matter affecting the Commercial Contract including its performance, frustration or

validity, the insolvency or dissolution of any party to the Commercial Contract or the destruction, non-completion or non-functioning of the goods and equipment supplied under the Commercial Contract;

- (ii) in any way be affected by the fact that all or any part of the amount requested or referred to in a Utilisation Request is not or was not due or payable to the Contractor (as applicable); and
 - (iii) be conditional on performance by any Lender of any obligations save such as may be specified in this Agreement in order to give rise to a relevant obligation of the Borrower hereunder.
- (b) Without prejudice to the generality of paragraph (a) above, the Borrower acknowledges that its liability to pay in full any sum payable by it under this Agreement on the due date for payment thereof:
- (i) is separate from the performance by the Contractor or any other person of their obligations under the Commercial Contract and any other agreement relating thereto; and
 - (ii) shall not be affected in any way by reason of any claim, dispute or defence which the Borrower may have or may consider that it has against the Contractor or any other person.
- (c) The Borrower agrees and acknowledges that the EDC NHS Policy is a separate arrangement between EDC and the Finance Parties and the Borrower shall not have any right or recourse against the Finance Parties in respect of or arising by reason of any payment made by EDC to any Finance Party pursuant to the EDC NHS Policy.

3. **PURPOSE**

3.1 **Purpose**

The Borrower shall apply all amounts borrowed by it under the Facility towards:

- (a) meeting all amounts payable to the Contractor under the Commercial Contract;
- (b) payment of the EDC Premium; and
- (c) other costs and expenses related to the Facility approved by EDC including, but not limited to, the Structuring and Arrangement Fee.

3.2 **Monitoring**

No Finance Party is bound to monitor or verify the application of any amount borrowed pursuant to this Agreement other than as required in Schedule 3 (*Form of Payment Request and Form of Initial Loan Request*).

4. CONDITIONS OF UTILISATION

4.1 Initial conditions precedent

- (a) No Utilisation Request may be delivered unless the Agent has received all of the documents and other evidence listed in Schedule 2 (*Conditions Precedent*) in form and substance satisfactory to the Agent. The Agent shall notify the Borrower and the Lenders promptly upon being so satisfied.
- (b) The conditions referred to in paragraph (a) above are for the benefit of the Agent and the Lenders and, as between the Borrower and the Agent, the Agent may at its absolute discretion waive any or all of those conditions in whole or in part and decide when and if each of those conditions has been fulfilled to its satisfaction. Nothing in this paragraph (b) shall affect the Agent's obligations under Clause 1.5 (*EDC Override*).

4.2 Further conditions precedent

- (a) The Lenders will only be obliged to comply with Clause 5.5 (*Lenders' participation*) if on the date of the Utilisation Request and on the proposed Utilisation Date:
 - (i) no Default or event or circumstance specified in any of Clauses 7.1 (*Illegality*) to 7.4 (*Commercial Contract*) (inclusive) is continuing or would result from the proposed Loan;
 - (ii) the Repeating Representations to be made by the Borrower are true;
 - (iii) with the exception of the Initial Loan Request, the EDC NHS Policy is in full force and effect and provides cover for the proposed Utilisation;
 - (iv) the Agent has not received any notification from EDC in respect of any termination, repudiation or suspension in whole or in part of the EDC NHS Policy or requiring or requesting the Lenders to suspend the provision of further Loans;
 - (v) with the exception of the Initial Loan Request, the Agent and the Lenders have received a copy of each EDC Required Document (which shall have been provided as promptly as possible after becoming available);
 - (vi) the Commercial Contract has not been (A) terminated or suspended, or (B) amended so that eligible goods and services are no longer required;
 - (vii) no arbitration or other legal proceedings have been initiated and are ongoing in respect of payments for goods and services under the Commercial Contract;
 - (viii) the Cameroon finance law for the year in which the proposed Utilisation Date occurs has made provisions for the payment of all amounts due and payable or that will be due and payable under the

Finance Documents for that fiscal year or all such amounts have already been unconditionally and irrevocably paid; and

- (ix) there has been no event or circumstance that in the opinion of the Majority Lenders constitutes a material adverse change in Cameroon or in its international financial, economic or political conditions, including any Cameroon sovereign risk downgrading and/or deterioration in the Cameroonian financial sector, war, civil war, revolution, uprising, acts of terrorism and/or sabotage and which in the opinion of the Majority Lenders would make it inadvisable to proceed with the Utilisation.
- (b) A Lender may, acting at its discretion but with the prior consent of EDC, decide to make its participation in each Loan available in accordance with Clause 5.5 (*Lender's participation*) regardless of:
 - (i) whether the conditions set out in paragraph (a) above have been met; or
 - (ii) the delivery of a notice to the Borrower under Clause 22.14 (*Acceleration*).
- (c) If any Loans are made when one or more of the conditions referred to in paragraph (a) above have not been met or after delivery of notice to the Borrower under paragraph (c) of Clause 22.14 (*Acceleration*), such Loans shall be repayable by the Borrower on demand by the Agent on the instructions of the Lenders.

4.3 **Maximum number of Loans**

No Utilisation Request may be delivered if, as a result of the proposed Utilisation, three (3) or more Loans would be funded in a single calendar month.

5. **UTILISATION**

5.1 **Delivery of a Utilisation Request**

The Facility may be utilised by delivery to the Agent of a duly completed Utilisation Request (as set out in Schedule 3, Part I and II) not later than the Specified Time.

5.2 **Completion of a Utilisation Request**

- (a) Each Utilisation Request is irrevocable and will not be regarded as having been duly completed unless:
 - (i) the proposed Utilisation Date is a Business Day within the Availability Period;
 - (ii) the currency and amount of the Utilisation comply with Clause 5.3 (*Currency and amount*);

- (iii) the proposed Interest Period complies with Clause 9 (*Interest Periods*); and
 - (iv) in respect of the initial Utilisation, it identifies that the proposed Utilisation is the Initial Loan and provides for the proceeds of the proposed Utilisation to be credited to the account of EDC (in respect of the EDC Premium) and the Arranger (in respect of any other costs and expenses associated with the Facility including the Structuring and Arrangement Fee).
- (b) Only one (1) Loan may be requested in each Utilisation Request.

5.3 **Currency and amount**

- (a) The currency specified in a Utilisation Request must be euro.
- (b) The amount of the proposed Loan must be an amount which is not more than the Available Facility.

5.4 **Initial Loan**

- (a) The Agent shall notify the Borrower of the amount of EDC Premium payable to EDC in respect of the EDC NHS Policy as soon as reasonably practicable after being notified by EDC of that amount.
- (b) Unless the Agent has received evidence satisfactory to it that (i) EDC has received the full amount of the EDC Premium in respect of the EDC NHS Policy and (ii) any other costs and expenses related to the Facility and which are due, including the Structuring and Arrangement Fee, have been fully paid prior to the date on which the Borrower delivers the initial Utilisation Request:
 - (1) the Borrower may not deliver a Utilisation Request other than an Initial Loan Request; and
 - (2) following the delivery of a duly completed Initial Loan Request and subject to the other terms of this Agreement, the initial Utilisation will be an Initial Loan, the proceeds of which will be paid by the Agent directly to or for the account of EDC (in respect of the EDC Premium) and the Arranger (in respect of any other cost and expenses, including the Structuring and Arrangement Fee).

5.5 **Lenders' participation**

- (a) If the conditions set out in this Agreement have been met, each Lender shall make its participation in each Loan available by the Utilisation Date through its Facility Office.
- (b) The amount of each Lender's participation in each Loan shall be equal to the proportion borne by the Available Commitment to the Available Facility immediately prior to making the Loan.

- (c) The Agent shall notify each Lender of the amount of each Loan and the amount of its participation in that Loan by the Specified Time.

5.6 Cancellation of Commitment

The Commitments which, at that time, are unutilised shall be immediately cancelled at the end of the Availability Period.

6. REPAYMENT

6.1 Repayment of Loans

- (a) The Borrower shall repay the Loans in sixteen (16) equal semi-annual principal instalments (calculated from the amount of the Loans outstanding as at close of business in London on the last day of the Availability Period).
- (b) The instalments referred to in paragraph (a) shall be payable as follows:
 - (i) the first such instalment shall become due and payable on the First Repayment Date and each subsequent instalment shall become due and payable on each succeeding Repayment Date; and
 - (ii) the Borrower shall continue to pay such instalments until it has repaid all outstanding Loans.
- (c) The entire outstanding principal amount of the Loans shall be repaid on the Final Maturity Date.

6.2 Reborrowing

The Borrower may not reborrow any part of the Facility which is repaid.

7. PREPAYMENT AND CANCELLATION

7.1 Illegality

If, at any time, it is or it becomes unlawful or contrary to any law, regulation or Sanctions (including by way of civil, administrative or criminal liability) in any applicable jurisdiction for a Lender to perform any of its obligations as contemplated by the Finance Documents or to fund or to maintain its participation in any Loan, then:

- (a) that Lender shall promptly notify the Agent upon becoming aware of that event;
- (b) subject to the obligations of a Lender under Clause 7.9 (*Mitigation by the Lenders*), upon a Lender's notice to the Agent (a copy of which the Agent shall promptly send to the Borrower), all Available Commitments of that Lender will be immediately cancelled; and
- (c) subject to the obligations of a Lender under Clause 7.9 (*Mitigation by the Lenders*), upon notice to the Agent (which notice the Agent shall promptly

send to the Borrower) of an event under paragraph (ii) above, the Borrower shall repay that Lender's participation in the Loans on the earlier of:

- (i) the last day of the current Interest Period; and
- (ii) the date specified by that Lender in its notice to the Agent (being no earlier than the last day of any applicable grace period permitted by law),

and that Lender's corresponding Commitment shall be cancelled in the amount of the participations repaid.

7.2 EDC Cover Event

If, at any time, an EDC Cover Event occurs and is continuing:

- (a) each Party shall promptly notify the Agent upon becoming aware of that event;
- (b) upon the Agent notifying the Borrower, the Commitment of each Lender will be immediately cancelled; and
- (c) the Borrower shall repay each Lender's participation in the Loans immediately following the notice by the Agent to the Borrower and each Lender's Commitment shall be cancelled in the amount of the participations repaid,

except that if the EDC Cover Event has resulted from a wilful act or wilful omission of a Lender, paragraphs (b) and (c) above shall not apply in respect of that Lender.

7.3 Central African Monetary Union

If Cameroon ceases to be a member of the *Union Monétaire de l'Afrique Centrale* (Central African Monetary Union):

- (a) the Lenders shall not be obliged to fund a Utilisation; and
- (b) if a Lender so requires, the Agent shall, by not less than fifteen (15) days' notice to the Borrower, cancel the Total Commitments and declare all outstanding Loans, together with accrued interest, and all other amounts accrued under the Finance Documents immediately due and payable, whereupon the Total Commitments will be cancelled and all such outstanding amounts will become immediately due and payable.

7.4 Commercial Contract

If the Commercial Contract is suspended for more than thirty (30) days, terminated, cancelled, repudiated or revoked (whether in whole or in part) prior to its stated maturity or term:

- (a) the Lenders shall not be obliged to fund a Utilisation;
- (b) if a Lender so requires and notifies the Agent thereof, the Agent for a period of not more than ten (10) days starting on the date of the notification from that

Lender, shall consult with the Borrower in respect of the suspension, termination, cancellation, repudiation or revocation (as applicable) of the Commercial Contract; and

- (c) at the end of the ten (10) day period referred to in paragraph (b) above, and if the relevant Lender so requires, the Agent shall, by not less than thirty (30) days' notice to the Borrower, cancel the Total Commitments and declare all outstanding Loans, together with accrued interest, and all other amounts accrued under the Finance Documents immediately due and payable, whereupon the Total Commitments will be cancelled and all such outstanding amounts will become immediately due and payable.

7.5 No voluntary cancellation

The Borrower may not cancel the whole or any part of the Available Facility, unless otherwise agreed by the Agent.

7.6 Voluntary prepayment of Loans

- (a) The Borrower may, if it gives the Agent not less than thirty (30) Business Days' (or such shorter period as the Majority Lenders may agree) prior notice, prepay the whole or any part of any Loan (but if in part, being an amount that reduces the amount of the Loan by a minimum amount of EUR 10,000,000).
- (b) A Loan may only be prepaid after the last day of the Availability Period (or, if earlier, the day on which the Available Facility is zero).
- (c) Any prepayment under this Clause 7.6:
 - (i) must be made on an Interest Payment Date unless the Agent has given its prior written consent otherwise; and
 - (ii) shall satisfy the obligations under Clause 6.1 (*Repayment of Loans*) in inverse chronological order.

7.7 Restrictions

- (a) Any notice of cancellation or prepayment given by any Party under this Clause 7 shall be irrevocable and, unless a contrary indication appears in this Agreement, shall specify the date or dates upon which the relevant cancellation or prepayment is to be made and the amount of that cancellation or prepayment.
- (b) Any prepayment under this Agreement shall be made together with accrued interest on the amount prepaid and any Break Costs without premium or penalty.
- (c) The Borrower may not reborrow any part of the Facility which is prepaid.
- (d) The Borrower shall not repay or prepay all or any part of the Loans or cancel all or any part of the Commitments except at the times and in the manner expressly provided for in this Agreement.

- (e) No amount of the Total Commitments cancelled under this Agreement may be subsequently reinstated.
- (f) If the Agent receives a notice under this Clause 7 it shall promptly forward a copy of that notice to either the Borrower or the affected Lender, as appropriate.
- (g) If all or part of any Lender's participation in a Loan is repaid or prepaid an amount of any Lender's Commitment (equal to the amount of the participation which is repaid or prepaid) will be deemed to be cancelled on the date of repayment or prepayment.

7.8 Application of prepayments

Any prepayment of a Loan pursuant to Clause 7.6 (*Voluntary prepayment of Loans*) shall be applied *pro rata* to each Lender's participation in that Loan.

7.9 Mitigation by the Lenders

- (a) Subject to paragraph (c) below, each Lender shall, in consultation with the Borrower, take all reasonable steps to mitigate any circumstances which arise and which would result in any amount becoming payable under or pursuant to, or cancelled pursuant to, Clause 7.1 (*Illegality*) including transferring its rights and obligations under the Finance Documents to another Affiliate or Facility Office.
- (b) Paragraph (a) above does not in any way limit the obligations of the Borrower under the Finance Documents.
- (c) No Lender shall be required to take any action or step pursuant to paragraph (a) above:
 - (i) in respect of any circumstance or event related to Sanctions; or
 - (ii) if, in the opinion of that Lender, to do so might be prejudicial to it.
- (d) The Borrower shall promptly indemnify each Lender for all costs and expenses reasonably incurred by that Lender as a result of steps taken by it under this Clause 7.9.

8. INTEREST

8.1 Calculation of interest

The rate of interest on each Loan for each Interest Period is the percentage rate per annum equal to the aggregate of:

- (a) the Margin; and
- (b) EURIBOR.

8.2 Payment of interest

The Borrower shall pay accrued interest on each Loan on the last day of each Interest Period.

8.3 Default interest

- (a) If the Borrower fails to pay any amount payable by it to a Finance Party under a Finance Document on its due date, interest shall accrue on the overdue amount from the due date up to the date of actual payment (both before and after judgment) at a rate which, subject to paragraph (b) below, is 2% per annum higher than the rate which would have been payable if the overdue amount had, during the period of non-payment, constituted a Loan in the currency of the overdue amount for successive Interest Periods, each of a duration selected by the Agent (acting reasonably). Any interest accruing under this Clause 8.3 shall be immediately payable by the Borrower on demand by the Agent.
- (b) If any overdue amount consists of all or part of a Loan which became due on a day which was not the last day of an Interest Period relating to that Loan:
 - (i) the first Interest Period for that overdue amount shall have a duration equal to the unexpired portion of the current Interest Period relating to that Loan; and
 - (ii) the rate of interest applying to the overdue amount during that first Interest Period shall be 2% per annum higher than the rate which would have applied for that Interest Period.
- (c) Default interest (if unpaid) arising on an overdue amount will be compounded with the overdue amount at the end of each Interest Period applicable to that overdue amount but will remain immediately due and payable.

8.4 Notification of rates of interest

The Agent shall promptly notify the Lenders and the Borrower of the determination of a rate of interest under this Agreement.

9. INTEREST PERIODS

9.1 Duration of Interest Periods

- (a) Subject to this Clause 9.1 the Interest Period for each Loan will be six (6) Months, ending on each Interest Payment Date.
- (b) Each Interest Period for a Loan shall start on the Utilisation Date or (if already made) on the last day of its preceding Interest Period.
- (c) Any Interest Period that begins before a Repayment Date and would otherwise extend beyond such Repayment Date, shall end on such Repayment Date.

- (d) Any Loan made during an Interest Period of another outstanding Loan (an "**Existing Interest Period**") will have an initial Interest Period ending on the last day of such Existing Interest Period.
- (e) An Interest Period for a Loan shall not extend beyond the Final Maturity Date.

9.2 **Non-Business Days**

If an Interest Period would otherwise end on a day which is not a Business Day, that Interest Period will instead end on the next Business Day in that calendar month (if there is one) or the preceding Business Day (if there is not).

9.3 **Consolidation of Loans**

If two (2) or more Loans have Interest Periods that end on the same date, those Loans will be consolidated into, and treated as, a single Loan on the last day of the Interest Period.

10. **CHANGES TO THE CALCULATION OF INTEREST**

10.1 **Market disruption**

- (a) If interest is to be calculated for an Interest Period on any Loan or Unpaid Sum and a Market Disruption Event occurs in relation to that Loan or Unpaid Sum for that Interest Period, then Clause 10.4 (*Cost of funds*) shall apply to that Loan or Unpaid Sum for that Interest Period.
- (b) In this Agreement, "**Market Disruption Event**" means in relation to any Loan or Unpaid Sum for which interest is to be calculated, before close of business in London on the Quotation Day for the relevant Interest Period, the Agent receives notifications from a Lender or Lenders (whose participations in a Loan or Unpaid Sum exceed 35% of that Loan or Unpaid Sum) that the cost to it of funding its participation in that Loan or Unpaid Sum from whatever source it may reasonably select would be in excess of the rate at which the EURIBOR component of any payment received for that Interest Period is calculated.

10.2 **Break Costs**

- (a) The Borrower shall, within five (5) Business Days of demand by a Finance Party, pay to that Finance Party its Break Costs attributable to all or any part of a Loan or Unpaid Sum being paid by the Borrower on a day other than the last day of an Interest Period for that Loan or Unpaid Sum.
- (b) Each Lender shall, as soon as reasonably practicable after a demand by the Agent, provide a certificate confirming the amount of its Break Costs for any Interest Period in which they accrue.

10.3 **Unavailability of Screen Rate**

- (a) If an interest rate is to be calculated using EURIBOR and no Screen Rate is available for EURIBOR for the Interest Period of a Loan or Unpaid Sum, the

applicable EURIBOR shall be the Interpolated Screen Rate for a period equal in length to the Interest Period of that Loan or Unpaid Sum.

- (b) If an interest rate is to be calculated using EURIBOR and no Screen Rate is available for EURIBOR for the Interest Period of a Loan or Unpaid Sum and it is not possible to calculate the Interpolated Screen Rate there shall be no EURIBOR for that Loan or Unpaid Sum for that Interest Period and Clause 10.4 (*Cost of funds*) shall apply to that Loan or Unpaid Sum for that Interest Period.

10.4 **Cost of funds**

If this Clause 10.4 applies, then the rate of interest on each Lender's share of the relevant Loan for the relevant Interest Period shall be the percentage rate per annum which is the sum of:

- (a) the rate notified to the Agent by that Lender as soon as practicable and in any event not less than one (1) Business Day before interest is due to be paid in respect of that Interest Period, to be that which expresses as a percentage rate per annum the cost to that Lender of funding its participation in that Loan from whatever source it may reasonably select (and if such percentage rate is below zero then such percentage rate shall be deemed to be zero); and
- (b) the Margin.

11. **FEES**

11.1 **Commitment fee**

- (a) The Borrower shall pay to the Agent (for the account of each Lender) a fee computed at the rate of 0.50% per annum on each Lender's Available Commitment for the Availability Period.
- (b) The accrued commitment fee is payable on the last day of each successive period of six (6) Months which ends during the Availability Period, on the last day of the Availability Period and, if cancelled in full, on the cancelled amount of each Lender's Commitment at the time the cancellation is effective.

11.2 **Structuring and Arrangement Fee and other costs and expenses**

The Borrower shall pay to the Arranger (for its own account) the structuring and arrangement fee and any other costs and expenses which shall become due upon the date of this Agreement and be payable to the Arranger as part of the Initial Loan under the Facility in accordance with paragraph (b)(2) of Clause 5.4 (*Initial Loan*), in the amount(s) set out in the Fee Letter.

11.3 **Agency fee**

The Borrower shall pay to the Agent (for its own account) an agency fee in the amount set out in the Fee Letter on the date of this Agreement and on each anniversary thereafter until the Facility is fully repaid.

12. EDC PREMIUM

12.1 Payment of the EDC Premium

The EDC Premium will be financed under this Agreement in accordance with Clause 3.1 (*Purpose*) and paid by the Agent directly to EDC in accordance with paragraph (b)(2) of Clause 5.4 (*Initial Loan*). The amount of the EDC Premium determined by EDC shall be binding upon the Parties.

12.2 No refund

- (a) The Borrower acknowledges and agrees that it shall not be entitled to claim any credit or reimbursement of any of the EDC Premium, including in the event of an acceleration or a prepayment of any Loan.
- (b) The Borrower acknowledges that no part of the EDC Premium is refundable for any reason.

12.3 Acknowledgements by Borrower

The Borrower acknowledges and agrees that:

- (a) the obligation to pay the EDC Premium as and when it becomes due is absolute and unconditional; and
- (b) none of the Finance Parties or the Contractor is in any way involved in the final determination of the EDC Premium and the Borrower will not raise against any Finance Party or the Contractor, any claim or defence of any kind whatsoever in relation to the calculation or payment of the EDC Premium and any interest thereon.

12.4 Interest on unpaid EDC Premium

The Borrower shall, within five (5) Business Days of demand, indemnify each Finance Party against any cost, loss or liability incurred by that Finance Party as a result of any EDC Premium or other amount due and payable to EDC not being paid to EDC in the amounts and at the times required under the EDC NHS Policy. The Parties agree and acknowledge that the Borrower's indemnity to any Finance Party under this Clause 12.4 shall only arise if the delay in the payment of the EDC Premium is solely attributable to the Borrower.

13. TAX GROSS UP AND INDEMNITIES

13.1 Tax Definitions

- (a) In this Agreement:

"Protected Party" means a Finance Party which is or will be subject to any liability, or required to make any payment, for or on account of Tax in relation to a sum received or receivable (or any sum deemed for the purposes of Tax to be received or receivable) under a Finance Document;

"Tax Credit" means a credit against, relief or remission for, or repayment of any Tax;

"Tax Deduction" means a deduction or withholding for or on account of Tax from a payment under a Finance Document; and

"Tax Payment" means either the increase in a payment made by the Borrower to a Finance Party under Clause 13.2 (*Tax gross up*) or a payment under Clause 13.3 (*Tax indemnity*).

- (b) Unless a contrary indication appears, in this Clause 13 a reference to "determines" or "determined" means a determination made in the absolute discretion of the person making the determination.

13.2 Tax gross up

- (a) The Borrower shall make all payments to be made by it without any Tax Deduction, unless a Tax Deduction is required under Applicable Law.
- (b) The Borrower shall promptly upon becoming aware that it must make a Tax Deduction (or that there is any change in the rate or the basis of a Tax Deduction) notify the Agent accordingly. Similarly, a Lender shall notify the Agent on becoming so aware in respect of a payment payable to that Lender. If the Agent receives such notification from a Lender it shall notify the Borrower.
- (c) If a Tax Deduction is required by law to be made by the Borrower, the amount of the payment due from the Borrower shall be increased to an amount which (after making any Tax Deduction) leaves an amount equal to the payment which would have been due if no Tax Deduction had been required.
- (d) If a Tax Deduction is required to be made by the Borrower under Applicable Law, the Borrower shall:
 - (i) pay directly to the relevant authorities the full amount of the Tax Deduction;
 - (ii) promptly forward to the Agent for each affected Finance Party an official receipt or other documentation evidencing such payment to such authority; and
 - (iii) make that Tax Deduction and any payment required in connection with that Tax Deduction within the time allowed and in the minimum amount required under Applicable Law.

13.3 Tax indemnity

- (a) The Borrower shall (within five (5) Business Days of demand by the Agent) pay to a Protected Party an amount equal to the loss, liability or cost which that Protected Party determines will be or has been (directly or indirectly) suffered for or on account of Tax by that Protected Party in respect of a Finance Document.

- (b) Paragraph (a) above shall not apply:
 - (i) with respect to any Tax assessed on a Finance Party:
 - (A) under the law of the jurisdiction in which that Finance Party is incorporated or, if different, the jurisdiction (or jurisdictions) in which that Finance Party is treated as resident for tax purposes; or
 - (B) under the law of the jurisdiction in which that Finance Party's Facility Office is located in respect of amounts received or receivable in that jurisdiction,

if that Tax is imposed on or calculated by reference to the net income received or receivable (but not any sum deemed to be received or receivable) by that Finance Party; or
 - (ii) to the extent a loss, liability or cost is compensated for by an increased payment under Clause 13.2 (*Tax gross up*).
- (c) A Protected Party making, or intending to make, a claim under paragraph (a) above shall promptly notify the Agent of the event which will give, or has given, rise to the claim, following which the Agent shall notify the Borrower.
- (d) A Protected Party shall, on receiving a payment from the Borrower under this Clause 13.3, notify the Agent.

13.4 Tax Credit

If the Borrower makes a Tax Payment and the relevant Finance Party determines that:

- (a) a Tax Credit is attributable to an increased payment of which that Tax Payment forms part, to that Tax Payment or to a Tax Deduction in consequence of which that Tax Payment was required; and
- (b) that Finance Party has obtained, utilised and retained that Tax Credit,

the Finance Party shall pay an amount to the Borrower which that Finance Party determines will leave it (after that payment) in the same after-Tax position as it would have been in had the Tax Payment not been required to be made by the Borrower.

13.5 Stamp taxes

Lenders shall bear the costs in relation to any stamp duty payable in respect of any Finance Documents up to a maximum aggregate of EUR10,000 only.

13.6 VAT

- (a) All amounts expressed to be payable under a Finance Document by any Party to a Finance Party which (in whole or in part) constitute the consideration for any supply for VAT purposes are deemed to be exclusive of any VAT which is chargeable on that supply, and accordingly, subject to paragraph (b) below,

if VAT is or becomes chargeable on any supply made by any Finance Party to any party under a Finance Document and such Finance Party is required to account to the relevant tax authority for the VAT, that party shall pay to such Finance Party (in addition to and at the same time as paying any other consideration for such supply) an amount equal to the amount of the VAT (and such Finance Party shall promptly provide an appropriate VAT invoice to that party).

- (b) If VAT is or becomes chargeable on any supply made by any Finance Party (the "**Supplier**") to any other Finance Party (the "**Recipient**") under a Finance Document, and any party other than the Recipient (the "**Relevant Party**") is required by the terms of any Finance Document to pay an amount equal to the consideration for that supply to the Supplier (rather than being required to reimburse or indemnify the Recipient in respect of that consideration):
 - (i) (where the Supplier is the person required to account to the relevant tax authority for the VAT) the Relevant Party must also pay to the Supplier (at the same time as paying that amount) an additional amount equal to the amount of the VAT; and
 - (ii) (where the Recipient is the person required to account to the relevant tax authority for the VAT) the Relevant Party must promptly, following demand from the Recipient, pay to the Recipient an amount equal to the VAT chargeable on that supply but only to the extent that the Recipient reasonably determines that it is not entitled to credit or repayment from the relevant tax authority in respect of that VAT.
- (c) The Recipient must (where paragraph (b)(i) above applies) promptly pay to the Relevant Party an amount equal to any credit or repayment the Recipient receives from the relevant tax authority which the Recipient reasonably determines relates to the VAT chargeable on that supply.
- (d) Where a Finance Document requires any Party to reimburse or indemnify a Finance Party for any cost or expense, that Party shall reimburse or indemnify (as the case may be) such Finance Party for the full amount of such cost or expense, including such part thereof as represents VAT, save to the extent that such Finance Party reasonably determines that it is entitled to credit or repayment in respect of such VAT from the relevant tax authority.
- (e) Any reference in this Clause 13.6 to any Party shall, at any time when such Party is treated as a member of a group for VAT purposes, include (where appropriate and unless the context otherwise requires) a reference to the representative member of such group at such time.
- (f) In relation to any supply made by a Finance Party to any Party under a Finance Document, if reasonably requested by such Finance Party, that Party must promptly provide such Finance Party with details of that Party's VAT registration and such other information as is reasonably requested in connection with such Finance Party's VAT reporting requirements in relation to such supply.

13.7 FATCA Information

- (a) Subject to paragraph (c) below, each Party shall, as soon as practicable after a reasonable request by another Party:
 - (i) confirm to that other Party whether it is:
 - (A) a FATCA Exempt Party; or
 - (B) not a FATCA Exempt Party;
 - (ii) supply to that other Party such forms, documentation and other information relating to its status under FATCA as that other Party reasonably requests for the purposes of that other Party's compliance with FATCA; and
 - (iii) supply to that other Party such forms, documentation and other information relating to its status as that other Party reasonably requests for the purposes of that other Party's compliance with any other law, regulation, or exchange of information regime.
- (b) If a Party confirms to another Party pursuant to paragraph (a)(i) above that it is a FATCA Exempt Party and it subsequently becomes aware that it is not or has ceased to be a FATCA Exempt Party, that Party shall notify that other Party reasonably promptly.
- (c) Paragraph (a) above shall not oblige any Finance Party to do anything, and paragraph (a)(iii) above shall not oblige any other Party to do anything, which would or might in its reasonable opinion constitute a breach of:
 - (i) any law or regulation;
 - (ii) any fiduciary duty; or
 - (iii) any duty of confidentiality.
- (d) If a Party fails to confirm whether or not it is a FATCA Exempt Party or to supply forms, documentation or other information requested in accordance with paragraph (a)(i) or (ii) above (including, for the avoidance of doubt, where paragraph (c) above applies), then such Party shall be treated for the purposes of the Finance Documents (and payments under them) as if it is not a FATCA Exempt Party until such time as the Party in question provides the requested confirmation, forms, documentation or other information.

14. INCREASED COSTS

14.1 Increased costs

- (a) Subject to Clause 14.3 (*Exceptions*) the Borrower shall, within five (5) Business Days of a demand by the Agent, pay for the account of a Finance Party the amount of any Increased Costs incurred by that Finance Party or any of its Affiliates as a result of (i) the introduction of or any change in (or in the

interpretation, administration or application of) any law, regulation or directive or (ii) compliance with any law, regulation or directive made after the date of this Agreement.

- (b) In this Agreement "**Increased Costs**" means:
- (i) a reduction in the rate of return from the Facility or on a Finance Party's (or its Affiliate's) overall capital;
 - (ii) an additional or increased cost; or
 - (iii) a reduction of any amount due and payable under any Finance Document,

which is incurred or suffered by a Finance Party or any of its Affiliates to the extent that it is attributable to that Finance Party having entered into its Commitment or funding or performing its obligations under any Finance Document.

14.2 Increased cost claims

- (a) A Finance Party intending to make a claim pursuant to Clause 14.1 (*Increased costs*) shall notify the Agent of the event giving rise to the claim, following which the Agent shall promptly notify the Borrower.
- (b) Each Finance Party shall, as soon as practicable after a demand by the Agent, provide a certificate confirming the amount of its Increased Costs.

14.3 Exceptions

- (a) Clause 14.1 (*Increased costs*) does not apply to the extent any Increased Cost is:
 - (i) attributable to a Tax Deduction required by law to be made by the Borrower;
 - (ii) compensated for by Clause 13.3 (*Tax indemnity*) (or would have been compensated for under Clause 13.3 (*Tax indemnity*) but was not so compensated solely because any of the exclusions in paragraph (b) of Clause 13.3 (*Tax indemnity*) applied); or
 - (iii) attributable to the wilful breach by the relevant Finance Party or its Affiliates of any law or regulation.
- (b) In this Clause 14.3, a reference to a "**Tax Deduction**" has the same meaning given to that term in Clause 13.1 (*Tax Definitions*).

15. OTHER INDEMNITIES

15.1 Currency indemnity

- (a) If any sum due from the Borrower under the Finance Documents (a "**Sum**"), or any order, judgment or award given or made in relation to a Sum, has to be converted from the currency (the "**First Currency**") in which that Sum is payable into another currency (the "**Second Currency**") for the purpose of:
 - (i) making or filing a claim or proof against the Borrower;
 - (ii) obtaining or enforcing an order, judgment or award in relation to any litigation or arbitration proceedings,

the Borrower shall as an independent obligation, within five (5) Business Days of demand, indemnify each person to whom that Sum is due against any cost, loss or liability arising out of or as a result of the conversion including any discrepancy between (A) the rate of exchange used to convert that Sum from the First Currency into the Second Currency and (B) the rate or rates of exchange available to that person at the time of its receipt of that Sum.

- (b) The Borrower waives any right it may have in any jurisdiction to pay any amount under the Finance Documents in a currency or currency unit other than that in which it is expressed to be payable.

15.2 Other indemnities

The Borrower shall within five (5) Business Days of demand, indemnify each Finance Party against any cost, loss or liability incurred by that Finance Party as a result of:

- (a) the occurrence of any Event of Default;
- (b) a failure by the Borrower to pay any amount due under a Finance Document on its due date, including any cost, loss or liability arising as a result of Clause 27 (*Sharing among the Finance Parties*);
- (c) funding, or making arrangements to fund, its participation in a Loan requested in a Utilisation Request but not made by reason of the operation of any one or more of the provisions of this Agreement (other than by reason of default or negligence by that Finance Party alone);
- (d) a Loan (or part of a Loan) not being prepaid in accordance with a notice of prepayment given by the Borrower;
- (e) the occurrence of any Environmental Claim or Environmental Incident; or
- (f) the making of any claim under, or the enforcement of, the EDC NHS Policy.

15.3 Indemnity to the Agent

The Borrower shall promptly indemnify the Agent against any cost, loss or liability incurred by the Agent (acting reasonably) as a result of:

- (a) investigating any event which it reasonably believes is a Default;
- (b) acting or relying on any notice, request or instruction which it reasonably believes to be genuine, correct and appropriately authorised; or
- (c) instructing lawyers, accountants, tax advisers, surveyors or other professional advisers or experts as permitted under this Agreement.

16. MITIGATION BY THE FINANCE PARTIES

16.1 Mitigation

- (a) Each Finance Party shall, in consultation with the Borrower, take all reasonable steps to mitigate any circumstances which arise and which would result in any amount becoming payable under or pursuant to, or cancelled pursuant to, any of Clause 7.1 (*Illegality*), Clause 13 (*Tax gross-up and indemnities*) or Clause 14 (*Increased costs*) including (but not limited to) transferring its rights and obligations under the Finance Documents to another Affiliate or Facility Office.
- (b) Paragraph (a) above does not in any way limit the obligations of the Borrower under the Finance Documents.

16.2 Limitation of liability

- (a) The Borrower shall promptly indemnify each Finance Party for all costs and expenses reasonably incurred by that Finance Party as a result of steps taken by it under Clause 16.1 (*Mitigation*).
- (b) A Finance Party is not obliged to take any steps under Clause 16.1 (*Mitigation*) if, in the opinion of that Finance Party (acting reasonably), to do so might:
 - (i) be prejudicial to it or conflict with its banking policies;
 - (ii) require it to incur or suffer an Increased Cost (as defined under Clause 14 (*Increased costs*)) that is not compensated under Clause 14 (*Increased costs*);
 - (iii) reasonably be expected to be contrary to the provisions of the EDC NHS Policy; or
 - (iv) require it to disclose any information as to its banking policies or other matters which it regards, in its sole discretion, as confidential or commercially sensitive.

17. COSTS AND EXPENSES

17.1 Transaction expenses

- (a) Subject to paragraph (b) below, the Borrower shall promptly on demand pay the Agent and/or the Arranger the amount of all costs and expenses (including legal fees and the costs of translating any Transaction Documents) reasonably incurred by any of them in connection with the preparation, negotiation, printing, reviewing, execution and syndication of:
 - (i) this Agreement and any other documents referred to in this Agreement; and
 - (ii) any other Finance Documents executed after the date of this Agreement.
- (b) In respect of costs and expenses to be paid by the Borrower pursuant to the mandate letter between the Borrower and the Arranger and the engagement letters between the Borrower, the Arranger, the Agent and the Finance Parties' legal counsel, the obligations of the Borrower under this Clause 17.1 are subject to the terms of those letters. The Agent and the Arranger shall consult with the Borrower before incurring costs or expenses envisaged in this Clause 17.1 that are not provided for in those letters.

17.2 Amendment costs

If:

- (a) the Borrower requests an amendment, waiver or consent; or
- (b) an amendment is required pursuant to Clause 28.10 (*Change of currency*),

the Borrower shall, within five (5) Business Days of demand, reimburse each Finance Party for the amount of all costs and expenses (including legal fees but excluding any stamp duty of up to USD10,000) reasonably incurred by that Finance Party (directly or under the EDC NHS Policy) in responding to, evaluating, negotiating or complying with that request or requirement.

17.3 Enforcement costs

The Borrower shall, within five (5) Business Days of demand, pay to the Agent the amount of all costs and expenses (including legal fees but excluding any stamp duty of up to USD10,000) incurred by any Finance Party (directly or under the EDC NHS Policy) (for the account of that Finance Party) in connection with the protection, perfection or enforcement of, or the preservation of any rights under, any Finance Document or the EDC NHS Policy.

18. EDC PROVISIONS

18.1 Acknowledgment of subrogation

The Parties acknowledge that, immediately upon any payment by EDC of any amounts under the EDC NHS Policy, EDC will be subrogated to the extent of such payment to the rights of the Lenders under the Finance Documents in accordance with the EDC NHS Policy.

18.2 No prejudice to EDC's rights

Nothing in the Finance Documents, including in this Clause 18, shall prejudice or otherwise limit:

- (a) the rights of any Lender to assign its rights, or transfer its rights and obligations, under, or in connection with, any Finance Document to EDC or as directed by EDC; or
- (b) the right of EDC to be subrogated to any Lender's rights under, or in connection with, any Finance Document.

18.3 EDC Instructions

- (a) Each Party acknowledges that from time to time the Agent and/or the Lenders are required to:
 - (i) seek instructions, approval or the consent of EDC before acting under, or in connection with, the Finance Documents and in particular prior to the exercise of any of the Lenders' voting rights under this Agreement (including under Clause 34.2 (*All Lender matters*)); and
 - (ii) follow any instructions given by EDC in relation to such voting rights.
- (b) The Borrower acknowledges and agrees that:
 - (i) the Agent, the Lenders or the Majority Lenders may be required to exercise or refrain from exercising their rights, powers, authorities and discretions under, or in connection with, the Finance Documents, in accordance with any instructions given to the Agent by EDC in accordance with the provisions of the EDC NHS Policy; and
 - (ii) any reference in this Agreement to an action of either the Agent and/or the Lenders shall be construed as a reference to the Agent and/or the Lenders acting in accordance with the provisions of this Agreement and the EDC NHS Policy.

18.4 EDC Information

- (a) The Borrower acknowledges and agrees that the Agent and the Lenders are entitled to provide EDC with any information they may have in relation to the Facility and the business of the Borrower, to allow the EDC to inspect all its records relating to this Agreement and the other Transaction Documents and

to furnish them with copies thereof. Any such information in relation to the Facility may also be given by EDC to international institutions charged with collecting statistical data.

- (b) The Borrower acknowledges that, in the making of any decision or determination or the exercise of any discretion or the taking or refraining to take any action under this Agreement or any of the other Finance Documents, the Agent and the Lenders shall be deemed to have acted reasonably if they have acted on the instructions of EDC.

19. REPRESENTATIONS

The Borrower makes the representations and warranties set out in Clauses 19.1 (*Status*) to 19.26 (*No Prohibited Payments*) to each Finance Party on the date of this Agreement.

19.1 Status

It has the power to own its assets and carry on its business as it is being conducted.

19.2 Binding obligations

The obligations expressed to be assumed by the Cameroonian Parties in the Transaction Documents to which they are party are legal, valid, binding and enforceable obligations.

19.3 Non-conflict with other obligations

The entry into and performance by the Cameroonian Parties of, and the transactions contemplated by, the Transaction Documents to which they are party do not and will not conflict with:

- (a) any Applicable Law; or
- (b) any agreement, mortgage, bond or other instrument or treaty to which they are party or which is binding upon them or any of their assets or constitute a default or termination event (howsoever described) under any such agreement or instrument.

19.4 Power and authority

- (a) The Cameroonian Parties have the power to enter into, perform and deliver, and have taken all necessary action to authorise their entry into, performance and delivery of, the Transaction Documents to which they are party and the transactions contemplated by those Transaction Documents.
- (b) No limit on its powers will be exceeded as a result of the borrowing or indemnities contemplated by the Finance Documents.
- (c) All public procurement rules in Cameroon that are applicable to each Cameroonian Party's entry into and the exercise of its rights and performance

of its obligations under the Transaction Documents to which it is a party have been complied with.

19.5 **Validity and admissibility in evidence**

All Authorisations and other acts, conditions and things required or desirable to:

- (a) enable the Cameroonian Parties to lawfully to enter into, exercise their rights and comply with their obligations in the Transaction Documents to which they are party;
- (b) ensure that the obligations expressed to be assumed by the Cameroonian Parties in the Transaction Documents to which they are party are legal, valid, binding and enforceable; and
- (c) make the Transaction Documents admissible in evidence in Cameroon,

have been obtained or effected and are in full force and effect, or have been done, fulfilled and performed (as applicable).

19.6 **Governing law and enforcement**

- (a) The choice of English law as the governing law of the Finance Documents and all non-contractual obligations arising from or connected with them will be recognised and enforced in Cameroon.
- (b) Any judgment or arbitral award obtained in England in relation to a Finance Document will be recognised and enforced in Cameroon.

19.7 **No Deductions or Withholding**

It is not required to make any deduction or withholding from any payment it may make under the Finance Documents in Cameroon.

19.8 **No Default**

- (a) No Default is continuing or might reasonably be expected to result from the making of any Utilisation or the entry into, the performance of, or any transaction contemplated by, any Transaction Document.
- (b) No other event or circumstance is outstanding which constitutes a default under any other agreement or instrument which is binding on it or any of its agencies or to which its assets are subject.

19.9 **No misleading information**

- (a) The Borrower has fully disclosed in writing to the Finance Parties all facts relating to the Borrower and the Project which are material for disclosure to the Finance Parties in the context of this Agreement.
- (b) All factual information provided by or on behalf of it to any Finance Party or EDC in relation to the Project, the Transaction Documents or the EDC NHS

Policy was true, complete and accurate in all material respects as at the date it was provided or as at the date (if any) at which it is stated, and is not misleading in any respect. It has made reasonable investigation of the subject matter of such information.

- (c) All information that has been or will be made available to the Finance Parties, or EDC by the Borrower or any of its representatives in connection with the transactions contemplated in the Transaction Documents or the EDC NHS Policy is and will be at all times complete and correct in all material respects and does not and will not contain any untrue statement of a material fact or omit to state a material fact necessary to make the statements contained therein not misleading in light of the circumstances under which such statements were or are made.

19.10 ***Pari passu* ranking**

Its payment obligations under the Finance Documents rank at least *pari passu* with the claims of all its other unsecured and unsubordinated creditors.

19.11 **No proceedings pending or threatened**

No litigation, arbitration or administrative proceedings or investigations of, or before any court, arbitral body or agency which, if adversely determined, might reasonably be expected to have a Material Adverse Effect have (to the best of its knowledge and belief) been started or threatened:

- (a) against any of the Cameroonian Parties or any of their agencies; or
- (b) in relation to the Commercial Contract.

19.12 **Compliance with laws**

- (a) All Authorisations to which it is subject have been fully complied with and there are no breaches which are continuing in relation to such Authorisations.
- (b) All laws (including tax laws) to which it is subject have been fully complied with and there are no breaches which are continuing in relation to such laws.

19.13 **Environmental**

- (a) Each Cameroonian Party has at all time complied with, is currently in compliance with, and will continue during all phases of construction and operation to comply with, all Environmental Laws in respect of the Project.
- (b) The Project meets all the Environmental Standards in all material respects.
- (c) No Environmental Claim is outstanding, pending or likely to occur in respect of, or in connection with the Project.
- (d) It obtained and maintained all Environmental Licences required or desirable in connection with the Project and complied with the terms of those Environmental Licences.

19.14 **Moratorium**

No moratorium has been or may in the reasonably foreseeable future be declared in respect of the Borrower's External Indebtedness.

19.15 **Commercial Contract**

- (a) The Minister of Public Contracts has the capacity to execute the Commercial Contract and exercise its rights and fulfil its obligations arising under the Commercial Contract, can sue and be sued before any court and/or arbitration tribunal which may be competent pursuant to the Commercial Contract and has taken all necessary action in connection with its entry into, and the performance and delivery of, the Commercial Contract.
- (b) The Commercial Contract constitutes the legal, valid, binding and enforceable obligations of Borrower and is in full force and effect and has not been repudiated by any party thereto.
- (c) The Commercial Contract has not been:
 - (i) terminated or suspended; or
 - (ii) amended or varied except as permitted by this Agreement, and there are no written or oral agreements or arrangements between the Borrower and the Contractor which derogate from the material obligations of the Contractor under the Commercial Contract.
- (d) The Borrower is not aware of any event of force majeure (*force majeure*) outstanding in relation to the Commercial Contract.
- (e) It has not received (nor is it aware) any written notice of any dispute in connection with the Commercial Contract or of any termination, cancellation, suspension or material waiver thereof in whole or in part.
- (f) There is no outstanding dispute under, breach of or outstanding claim (other than claims for payments under the Commercial Contract which are not overdue) under the Commercial Contract, nor has any event occurred which would entitle the Borrower or (to the knowledge of the Borrower) the Contractor to terminate the Commercial Contract.
- (g) The award of the Commercial Contract to the Contractor was made in accordance with Applicable Law and the award has not been challenged and is not the subject of any claim or litigation.
- (h) All Authorisations which are necessary to implement the Project are in full force and effect.

19.16 **Taxation**

Under the Applicable Law in force at the date of this Agreement, it is not necessary that the Finance Documents be filed, recorded or enrolled with any court or other authority in Cameroon or that any stamp, registration or similar tax be paid on or in

relation to the Finance Documents or the transactions contemplated by the Finance Documents, except that the Finance Documents must be registered with the applicable tax authorities in Cameroon pursuant to section 270 of the *Code Général des Impôts* and each Finance Document will be registered free of charge (*enrégistrement gratis*) in accordance with section 337 of the *Code Général des Impôts* and have stamp duty and graduated stamp duty paid for the account of the Lenders (provided the cost is less than USD10,000) in respect of it in accordance with sections 420 and 585 respectively of the *Code Général des Impôts*.

19.17 **Anti-corruption law**

The Borrower has conducted its businesses in compliance with applicable anti-corruption laws and has instituted and maintained policies and procedures designed to promote and achieve compliance with such laws.

19.18 **Security**

None of the Borrower's External Indebtedness is secured by any Security on or with respect to any International Monetary Assets other than as permitted by this Agreement.

19.19 **Foreign exchange reserves**

The Borrower has full power and authority to use any available foreign currency reserves (including euros and dollars) of Cameroon for the satisfaction and discharge of its obligations under the Finance Documents.

19.20 **External Indebtedness**

- (a) The Borrower is not in breach of or in default under any document or agreement relating to External Indebtedness which is binding on it or any of its assets.
- (b) Borrowing the Total Commitments will not cause any borrowing limit binding on the Borrower to be exceeded, including any limit imposed by the legislative authorities of Cameroon.

19.21 **No immunity**

In any proceedings taken in Cameroon in relation to the Finance Documents, it will not be entitled to claim for itself or any of its assets immunity from suit, execution, attachment or other legal process, except for immunity from execution or attachment or like process in respect of Excluded Assets.

19.22 **Private and commercial acts**

The Borrower is subject to civil and commercial law (and not administrative law) with respect to its obligations under the Finance Documents. Its execution of the Finance Documents to which it is a party constitutes, and its exercise of its rights and performance of its obligations under those Finance Documents will constitute, private and commercial acts done and performed for private and commercial purposes.

19.23 IMF

Cameroon is a member in good standing and eligible to use the resources of the IMF and the World Bank Group.

19.24 Restricted Party

Neither the Borrower nor any of its directors, officers or employees nor, to the knowledge of the Borrower, any persons acting on its behalf:

- (a) is a Restricted Party, or
- (b) has received notice of or is aware of any claim, action, suit, proceeding or investigation against it with respect to Sanctions by any Sanctions Authority.

19.25 No funds of Illicit Origin

- (a) No investment in, and no payments made, to be made or received by the Borrower or any person acting on its behalf, in respect of amounts due with respect to any transaction contemplated by this Agreement and/or the Commercial Contract have been or shall be funded out of funds of Illicit Origin and none of the sources of funds to be used by them in connection with their business are of Illicit Origin.
- (b) No Loan has been used to finance equipment or sectors under embargo decisions of the United Nations, the World Bank, the European Union or Canada.

19.26 No Prohibited Payments

No Prohibited Payment has been received, made or provided, directly or indirectly, by (or on behalf of) the Borrower or any of its agencies, officers, directors or any other person acting on their behalf, respectively, or for the benefit of, any government entity in the relevant jurisdiction (or any official, officer, director, agent or key employee of, or other person with management responsibilities in, any government entity) in connection with any Transaction Document.

19.27 Repetition

- (a) The Repeating Representations are deemed to be made by the Borrower by reference to the facts and circumstances then existing on the date of each Utilisation Request and each Interest Payment Date.
- (b) The representations in Clauses 19.8 (*No Default*) and 19.11 (*No proceedings pending or threatened*) are deemed to be made by the Borrower by reference to the facts and circumstances then existing on the date of each Utilisation Request.

20. INFORMATION UNDERTAKINGS

The undertakings in this Clause 20 remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents or any Commitment is in force.

20.1 Financial statements

The Borrower shall deliver to the Agent in a form satisfactory to the Agent and as soon as the same become available (but in any event within twenty-one (21) days of becoming available) and in sufficient copies for each Lender and EDC:

- (a) the finance law of Cameroon, in English, for each Cameroon financial year; and
- (b) the settlement law (*loi de règlement*) of Cameroon, in English, for each Cameroon financial year.

20.2 Notifications relating to the Commercial Contract

The Borrower shall promptly:

- (a) notify the Agent of the occurrence of the date on which commercial operations is achieved under the Commercial Contract and shall provide the Agent with a copy of (i) the official record of notice to proceed (*l'ordre de service de démarrage*) duly executed in accordance with article 10 (*Validité du Contrat et mise en route du Projet* and in particular article 10.3); (ii) the official record of preliminary acceptance (*proces verbal de reception provisoire*) duly executed in accordance with article 4.1.8 *Phase: Travaux (Réceptions provisoires des travaux)* of the Commercial Contract; (iii) the official record of final taking over (*attestation d'achevement substantiel*) duly executed in accordance with article 11.4 (*Achevement substantiel*) of the Commercial Contract and (iv) the official record of final taking over (*Parachèvement*) duly executed in accordance with article 11.6.1 (*attestation de parachèvement*) of the Commercial Contract;
- (b) notify the Agent upon becoming aware of:
 - (i) any material breach by a party under the Commercial Contract;
 - (ii) any event of force majeure outstanding in respect of article 17 (*Cas de force majeure*) of the Commercial Contract which continues for five (5) days or more;
 - (iii) any circumstances that entitle any relevant party to suspend, terminate, repudiate or cancel the Commercial Contract in accordance with article 18 (*Suspension et Résiliation*) of the Commercial Contract;
 - (iv) any material dispute under the Commercial Contract; or
 - (v) the commencement of any arbitration in accordance with article 20.2 (*Arbitrage*) of the Commercial Contract;

- (c) notify the Agent upon receipt of any material claim, notice or other communication served on the Borrower in respect of any alleged breach of, or corrective or remedial obligation or liability under, Applicable Law;
- (d) notify the Agent of any amendment, variation, supplement or waiver which is made under the Commercial Contract which: (i) relates to a decrease in price; (ii) relates to sourcing or country of origin of goods or services or changes the nature of the goods or services to be provided under the Commercial Contract; (iii) relates to Environmental Law or any anti-corruption law; or (iv) is otherwise material;
- (e) notify the Agent of any suspension, termination or cancellation of the Commercial Contract; and
- (f) notify the Agent of any such other information regarding the Commercial Contract (including copies of commercial invoices, shipping documents, delivery schedules and other related documents) as the Agent may request.

20.3 **Environmental Incident**

The Borrower shall:

- (a) notify the Agent of any Environmental Incident within five (5) days from its occurrence; and
- (b) provide details of the outcome of its investigations into such Environmental Incident as soon as these have been completed (and in any case within five (5) days of them being completed) including a copy of any investigation report.

20.4 **Notification of Default**

- (a) The Borrower shall notify the Agent of any Default (and the steps, if any, being taken to remedy it) promptly upon becoming aware of its occurrence.
- (b) Promptly upon a request by the Agent, the Borrower shall supply to the Agent a certificate signed by an authorised signatory on behalf of the Borrower certifying that no Default is continuing (or if a Default is continuing, specifying the Default and the steps, if any, being taken to remedy it).

20.5 **Other information**

The Borrower shall supply to the Agent in sufficient copies for each Lender and EDC:

- (a) promptly upon becoming aware of them, the details of any litigation, arbitration or administrative proceedings which are current, threatened or pending against it or any of its agencies and which might, if adversely determined, have a Material Adverse Effect; and
- (b) such other financial, statistical and general information about the Borrower as the Agent may reasonably request, including any requested amplification or explanation or projections of the items referred to in Clause 20.1 (*Financial*

statements) or any requested amplification or explanation of other material provided by the Borrower under this Agreement.

20.6 Use of websites

- (a) The Borrower may satisfy its obligation under this Agreement to deliver any information in relation to those Lenders (the "**Website Lenders**") who accept this method of communication by posting this information onto an electronic website designated by the Borrower and the Agent (the "**Designated Website**") if:
 - (i) the Agent expressly agrees (after consultation with the Lenders) that it will accept communication of the information by this method;
 - (ii) both the Borrower and the Agent are aware of the address of and any relevant password specifications for the Designated Website; and
 - (iii) the information is in a format previously agreed between the Borrower and the Agent.

If any Lender (a "**Paper Form Lender**") does not agree to the delivery of information electronically then the Agent shall notify the Borrower accordingly and the Borrower shall, at its own cost, supply the information to the Agent (in sufficient copies for each Paper Form Lender) in paper form. In any event the Borrower shall, at its own cost, supply the Agent with at least one (1) copy in paper form of any information required to be provided by it.

- (b) The Agent shall supply each Website Lender with the address of and any relevant password specifications for the Designated Website following designation of that website by the Borrower and the Agent.
- (c) The Borrower shall promptly upon becoming aware of its occurrence notify the Agent if:
 - (i) the Designated Website cannot be accessed due to technical failure;
 - (ii) the password specifications for the Designated Website change;
 - (iii) any new information which is required to be provided under this Agreement is posted onto the Designated Website;
 - (iv) any existing information which has been provided under this Agreement and posted onto the Designated Website is amended; or
 - (v) the Borrower becomes aware that the Designated Website or any information posted onto the Designated Website is or has been infected by any electronic virus or similar software.
- (d) If the Borrower notifies the Agent under paragraphs (c)(i) or (c)(v) above, all information to be provided by the Borrower under this Agreement after the date of that notice shall be supplied in paper form unless and until the Agent

and each Website Lender is satisfied that the circumstances giving rise to the notification are no longer continuing.

- (e) Any Website Lender may request, through the Agent, one (1) paper copy of any information required to be provided under this Agreement which is posted onto the Designated Website. The Borrower shall comply with any such request within five (5) Business Days.

20.7 "Know your customer" checks

- (a) If:
 - (i) the introduction of or any change in (or in the interpretation, administration or application of) any law or regulation made after the date of this Agreement;
 - (ii) a change in a Finance Party's internal practices and procedures relating to "know your customer" checks;
 - (iii) any change in the status of the Borrower after the date of this Agreement; or
 - (iv) a proposed assignment or transfer by a Lender of any of its rights or obligations under this Agreement to a party that is not a Lender prior to such assignment or transfer,

obliges any Finance Party or EDC (or, in the case of paragraph (iv) above, any prospective new Lender) to comply with "know your customer" or similar identification procedures in circumstances where the necessary information is not already available to it, the Borrower shall promptly upon the request of the Finance Party or EDC supply, or procure the supply of, such documentation and other evidence as is reasonably requested by the Agent (for itself or on behalf of another Finance Party or EDC) or any other Finance Party (for itself or, in the case of the event described in paragraph (iv) above, on behalf of any prospective new Lender) in order for the Finance Party or EDC or, in the case of the event described in paragraph (iv) above, any prospective new Lender to carry out and be satisfied it has complied with all necessary "know your customer" or other similar checks under all applicable law and/or as required under the Finance Party's, EDC's or the prospective new Lender's internal practices and procedures pursuant to the transactions contemplated in the Finance Documents.

- (b) Each Finance Party shall promptly upon the request of the Agent supply, or procure the supply of, such documentation and other evidence as is reasonably requested by the Agent (for itself) in order for the Agent to carry out and be satisfied it has complied with all necessary "know your customer" or other similar checks under all applicable law pursuant to the transactions contemplated in the Finance Documents.

21. GENERAL UNDERTAKINGS

The undertakings in this Clause 21 remain in force from the date of this Agreement for so long as any amount is outstanding under the Finance Documents or any Commitment is in force.

21.1 Authorisations

The Borrower shall promptly:

- (a) obtain, comply with and do all that is necessary to maintain in full force and effect; and
- (b) supply certified copies to the Agent of,

any Authorisation required under any Applicable Law (or under any treaty, agreement or arrangement with the IMF, the World Bank Group or the African Development Bank) to enable it lawfully to enter into and perform its obligations under the Finance Documents and to ensure the legality, validity, enforceability or admissibility in evidence in Cameroon of the Finance Documents.

21.2 Compliance with laws

The Borrower shall comply in all respects with Applicable Laws and any Sanctions which are necessary in relation to its activities generally, to the extent that failure to comply with the same might have a Material Adverse Effect.

21.3 IMF and the World Bank Group

The Borrower shall fulfil its obligations as a member of the IMF and the World Bank Group (or any successor of the IMF or the World Bank Group) at all times.

21.4 Negative pledge

- (a) The Borrower shall not, and shall ensure that each of its agencies shall not, create or permit to subsist any Security over International Monetary Assets, owned or subsequently acquired, securing the payment of the Borrower's External Indebtedness, unless (i) the prior written consent of the Majority Lenders is obtained and (ii) at the same time or prior thereto, it or its agencies (as applicable) secure the Loans equally and rateably with such Security or provide such other arrangement (whether or not comprising Security) as is satisfactory to the Agent.
- (b) Paragraph (a) above does not apply to any Security listed below:
 - (i) any Security arising in the course of ordinary commercial banking transactions (including margin, collateral or other similar requirements in respect of precious metal, swaps or other derivative transactions) or under standard banking terms;
 - (ii) any Security arising by operation of law;

- (iii) any Security upon property incurred solely for the purpose of financing the acquisition or construction of such property;
 - (iv) any Security incurred in connection with any Project Financing, **provided that** such Security applies solely to (A) properties which are the subject of such Project Financing and/or (B) revenues or claims which arise from the insurance proceeds of such Project Financing or the operation, failure to meet specifications, exploitation, sale or loss of, or failure to complete, or damage to, such properties;
 - (v) any Security existing on property at the time of its acquisition;
 - (vi) any renewal or extension of any Security of the kind described in paragraphs (i) to (v) above, **provided that** the principal amount of the External Indebtedness secured is not increased and such renewal or extension is limited to the original property covered thereby; and
 - (vii) in addition to the Security described in paragraphs (i) to (vi) above, Security over International Monetary Assets in any calendar year having a market value of EUR10,000 or its equivalent in other currencies.
- (c) The Borrower shall not transfer or permit the transfer of any International Monetary Assets to any separate agency, Government Entity or other legal entity controlled directly or indirectly by the Borrower or any of its agencies (A) for the purpose of avoiding the negative pledge in paragraph (a) above or (B) if the transfer would impair its ability to perform its obligations under the Finance Documents, other than:
- (i) disposals in the ordinary course of trading;
 - (ii) disposals of assets (otherwise than in the ordinary course of business) for full cash consideration, **provided that** the value of any such disposal does not, when aggregated with all other such disposals during the same calendar year, exceed EUR10,000 or its equivalent in other currencies;
 - (iii) disposals of assets in exchange for other assets comparable or superior as to type value or quality;
 - (iv) disposals of cash raised or borrowed for the purpose for which it was raised or borrowed;
 - (v) disposals with the prior written consent of the Agent; and
 - (vi) any other disposal for full value of an asset the value of which is (when aggregated with the value of all other assets disposed of pursuant to this paragraph (c)) less than EUR10,000 or its equivalent in other currencies.

21.5 **Anti-corruption law**

The Borrower shall:

- (a) conduct its businesses in compliance with applicable anti-corruption laws; and
- (b) maintain policies and procedures designed to promote and achieve compliance with such laws.

21.6 **Sanctions**

The Borrower shall not, and shall not permit or authorise any other person to, directly or indirectly, use, lend, make payments of, contribute or otherwise make available, all or any part of the proceeds of any Loan or other transactions contemplated by this Agreement to fund any trade, business or other activities: (i) involving or for the benefit of any Restricted Party, or (ii) in any other manner that would reasonably be expected to result in the Borrower or any Lender being in breach of any Sanctions (if and to the extent applicable to either of them) or becoming a Restricted Party.

21.7 **Pari passu ranking**

The Borrower shall ensure that at all times all its unsecured and unsubordinated obligations to the Finance Parties (or any of them) against it under the Finance Documents rank at least *pari passu* with its obligations to all of its other unsecured and unsubordinated creditors.

21.8 **Budget and funding**

The Borrower shall include all amounts due and payable or that will fall due and payable to the Finance Parties under the Finance Documents during a calendar year in its yearly finance laws for that calendar year and shall ensure that each annual finance law will not place any restriction on the ability of the Borrower to meet its obligations under the Finance Documents.

21.9 **Commercial Contract**

- (a) The Borrower shall:
 - (i) observe and perform all of its obligations and otherwise comply with all of the provisions of the Commercial Contract and obtain and maintain all Authorisations required in relation to and in accordance with the terms of the Commercial Contract; and
 - (ii) not take nor omit to take any action that might result in any default on any of its payment or other material obligations under the Commercial Contract.
- (b) The Borrower shall not make or agree to:
 - (i) any amendment or waiver of any provision of the Commercial Contract that:

- (A) would make any information included in the EDC NHS Policy incorrect;
 - (B) relates to scope of supply, the conditions of payment or the jurisdiction from which goods are to be supplied or services performed; or
 - (C) would be grounds for invalidation of the eligibility of the Commercial Contract (or any goods or services supplied thereunder) and the basis for extension of the EDC NHS Policy; or
- (ii) any other amendment or waiver of any provision of the Commercial Contract, except for minor or technical aspects which will not have a Material Adverse Effect,

in each case, without the prior written approval of the Agent.

- (c) The Borrower shall not assign or transfer any of its rights under the Commercial Contract without the Agent's prior written approval (acting on the instructions of the Majority Lenders).

21.10 Use of proceeds

The Borrower shall not use the proceeds of any Loan for any purpose other than that set out in Clause 3 (*Purpose*).

21.11 Insurance

The Borrower shall:

- (a) ensure that all insurances relating to the Project are procured and are in full force and effect at the relevant times in accordance with the requirements of the Commercial Contract; and
- (b) produce to the Agent (from time to time at the Agent's request) evidence that such insurance has been effected and maintained.

21.12 Environment

- (a) The Borrower shall ensure that each Cameroonian Party at all times:
- (i) complies with all Environmental Law;
 - (ii) obtains, maintains and ensures compliance with all requisite Environmental Licences; and
 - (iii) implements procedures to monitor compliance with and to prevent liability under any Environmental Law,

in respect of the Project in all material respects.

- (b) The Borrower shall ensure that the Project at all times meets the Environmental Standards in all material respects.
- (c) In the event of a breach of paragraph (a) or (b) which has a material adverse effect on the Environment, the Borrower shall:
 - (i) promptly inform the Agent;
 - (ii) provide a remedy plan to the Agent; and
 - (iii) implement the remedy plan so as to promptly remedy such circumstances.

21.13 EDC NHS Policy

The Borrower shall provide all information required by the Contractor or any Finance Party in order for the Contractor or that Finance Party to comply with the requirements of the EDC NHS Policy.

21.14 No Prohibited Payments

No Prohibited Payments shall be received, made or provided, directly or indirectly, by (or on behalf of) the Borrower, or any of its affiliates, officers, directors or any other person acting on their behalf to, or for the benefit of, any authority (or any official, officer, director, agent or key employee of, or other person with management responsibilities in, any authority) in connection with this Agreement and/or the Transaction Documents.

21.15 No Illicit Payments

- (a) No payments made or received by the Borrower in respect of amounts due under this Agreement or any other Finance Document shall be funded out of funds of Illicit Origin and none of the sources of funds used by the Borrower in connection with the Commercial Contract shall be of Illicit Origin.
- (b) No Loan shall be used to finance equipment or sectors under embargo decisions of the United Nations, the World Bank or the European Union.

22. EVENTS OF DEFAULT

Each of the events or circumstances set out in this Clause 22 is an Event of Default (save for Clause 22.14 (*Acceleration*)).

22.1 Non-payment

The Borrower does not pay on the due date any amount payable by it pursuant to a Finance Document at the place and in the currency in which it is expressed to be payable unless:

- (a) its failure to pay is caused by:
 - (i) administrative or technical error; or

- (ii) a Disruption Event; and
- (b) payment is made within three (3) Business Days of its due date.

22.2 Other obligations

- (a) The Borrower does not comply with any provision of the Finance Documents (other than those referred to in Clause 22.1 (*Non-payment*)).
- (b) No Event of Default under paragraph (a) above will occur if the failure to comply is capable of remedy and is remedied within twenty (20) days of the earlier of:
 - (i) the Agent giving notice to the Borrower; and
 - (ii) the Borrower becoming aware of the failure to comply.

22.3 Misrepresentation

- (a) Any representation or statement made or deemed to be made by the Borrower in the Finance Documents or any other document, certificate or statement delivered by or on behalf of the Borrower under or in connection with any Finance Document is or proves to have been incorrect or misleading in any material respect when made or deemed to be made.
- (b) No Event of Default under paragraph (a) above will occur if the failure is capable of remedy and is remedied within five (5) Business Days of the failure occurring.

22.4 Cross default - External Indebtedness

- (a) Any External Indebtedness of the Borrower or any of its agencies is not paid when due or within any originally applicable grace period.
- (b) As a result of an event of default (however described), any External Indebtedness of the Borrower or any of its agencies is:
 - (i) declared to be or otherwise becomes due and payable prior to its specified maturity; or
 - (ii) placed on demand.
- (c) Any creditor becomes entitled to declare any External Indebtedness of the Borrower due and payable as a result of an event of default (however described).
- (d) Any commitment for any External Indebtedness of the Borrower or any of its agencies is cancelled or suspended by a creditor of the Borrower or any of its agencies as a result of an event of default (however described).
- (e) No Event of Default will occur under this Clause 22.4 if the aggregate amount of the External Indebtedness or commitment for External Indebtedness falling

within paragraphs (a) to (c) above is less than EUR 10,000 (or its equivalent in any other currency or currencies as determined by the Agent).

22.5 **Moratorium**

- (a) A moratorium is declared or de facto comes into effect on the payment of any External Indebtedness of the Borrower or any of its agencies.
- (b) The Borrower or any of its agencies is unable or admits inability to pay any External Indebtedness as it falls due or suspends making payments on any of its debts.

22.6 **Rescheduling**

- (a) The Borrower commences negotiations with any, all or any particular class of creditors, by reason of actual or anticipated financial difficulties, with a view to the general readjustment or rescheduling of any External Indebtedness.
- (b) Any External Indebtedness is readjusted or rescheduled in response to any actual or anticipated financial difficulties.
- (c) Paragraphs (a) and (b) above do not apply to the occurrence of, agreement to or announcement of any events:
 - (i) due to an administrative adjustment, accounting adjustment or tax adjustment or other technical adjustment occurring in the ordinary course of business; or
 - (ii) in circumstances where such event does not directly or indirectly result from a deterioration in the creditworthiness or financial condition of the Borrower.

22.7 **IMF or World Bank Group**

Cameroon is not or ceases to be a member in good standing or becomes ineligible to use the resources of the IMF or the World Bank Group.

22.8 **Unlawfulness**

- (a) It is or becomes unlawful for the Borrower to perform or comply with any of its obligations under the Finance Documents or any of the obligations of the Borrower under the Finance Documents are not or cease to be legal, valid, binding and enforceable.
- (b) At any time any act, condition or thing required to be done, fulfilled or performed in order to:
 - (i) enable a Cameroonian Party to lawfully to enter into, exercise its rights under and perform and comply with the obligations expressed to be assumed by it in a Transaction Document;

- (ii) ensure that the obligations expressed to be assumed by the Cameroonian Parties in the Transaction Documents are legal, valid, binding and enforceable; or
- (iii) make the Transaction Documents admissible in evidence in Cameroon, is not done, fulfilled or performed, or any Authorisation required for paragraphs (i) to (iii) above is withdrawn or modified or otherwise ceases to be in full force and effect.

22.9 Repudiation

The Borrower repudiates a Finance Document or evidences an intention to repudiate a Finance Document.

22.10 Material adverse effect

The Majority Lenders determine, acting reasonably, that a Material Adverse Effect has occurred or is continuing.

22.11 Litigation and unsatisfied judgment

- (a) Any labour disputes, litigation, arbitration or administrative proceedings or investigation have been started or threatened to which the Borrower is or would be party and which, if adversely determined, would be reasonably likely to have a Material Adverse Effect.
- (b) Any final judgment, award or order of a court or arbitration tribunal for the payment of money which is binding on the Borrower or on its assets is outstanding and unsatisfied for more than thirty (30) Business Days, unless the relevant outstanding amount is less than EUR 10,000 or its equivalent in any other currency or currencies.

22.12 Governmental action

Any action or decision is taken either by the Borrower directly or any other Government Entity that:

- (a) prohibits or prevents (in whole or in part) the transactions contemplated under the Finance Documents or the performance by the Borrower of its obligations under the Finance Documents;
- (b) imposes any reserve requirement on the flow of funds to or from the Finance Parties;
- (c) declares payments in Central African CFA franc to be a valid discharge of the Borrower's payment obligations under any Finance Document notwithstanding that, as a result of fluctuations in exchange rates, such payment, when converted into euro no longer covers the amount due and payable at the date of payment of the relevant funds.

22.13 **Waiver of immunity**

The Borrower claims for itself, or any of its assets (other than the Excluded Assets), immunity from suit, execution or other legal process on the grounds of sovereignty or otherwise in breach of Clause 40.3 (*Waiver of immunity*).

22.14 **Acceleration**

On and at any time after the occurrence of an Event of Default which is continuing the Agent may, and shall if so directed by the Majority Lenders, by notice to the Borrower:

- (a) cancel the Total Commitments whereupon they shall immediately be cancelled;
- (b) declare that all or part of the Loans, together with accrued interest, and all other amounts accrued or outstanding under the Finance Documents be immediately due and payable, whereupon they shall become immediately due and payable; and/or
- (c) declare that all or part of the Loans be payable on demand, whereupon they shall immediately become payable on demand by the Agent on the instructions of the Majority Lenders.

23. **CHANGES TO THE PARTIES**

23.1 **Assignments and transfers by the Lenders**

- (a) Subject to this Clause 23 and to the prior written consent of EDC, a Lender (the "**Existing Lender**") may:
 - (i) assign any of its rights; or
 - (ii) transfer by novation any of its rights and obligations,
 to EDC (or as directed by EDC), another bank or financial institution or to a trust, fund or other entity which is regularly engaged in or established for the purpose of making, purchasing or investing in loans, securities or other financial assets (the "**New Lender**"). The consent of the Borrower shall not be required for any assignment or transfer by a Lender pursuant to this Clause 23.
- (b) The Agent shall promptly notify the Borrower and the Caisse Autonome d'Amortissement of any assignment or transfer to any Lender and the Borrower shall pay to the Agent, upon demand, all reasonable costs and expenses, duties and fees, including legal costs and out of pocket expenses, incurred by the Agent in connection with any such assignment or transfer.

23.2 **Conditions of assignment or transfer**

- (a) An assignment will only be effective on:
 - (i) receipt by the Agent (whether in the Assignment Agreement or otherwise) of written confirmation from the New Lender (in form and

substance satisfactory to the Agent) that the New Lender will assume the same obligations to the other Finance Parties as it would have been under if it was the Original Lender; and

- (ii) performance by the Agent of all necessary "know your customer" or other similar checks under all applicable laws and regulations in relation to such assignment to a New Lender, the completion of which the Agent shall promptly notify to the Existing Lender and the New Lender.
- (b) A transfer will only be effective if the procedure set out in Clause 23.5 (*Procedure for transfer*) is complied with.
- (c) If (except for an assignment or transfer to EDC):
 - (i) a Lender assigns or transfers any of its rights or obligations under the Finance Documents (to any person other than EDC or as directed by EDC) or changes its Facility Office; and
 - (ii) as a result of circumstances existing at the date the assignment, transfer or change occurs, the Borrower would be obliged to make a payment to the New Lender or Lender acting through its new Facility Office under Clause 13 (*Tax gross-up and indemnities*) or Clause 14 (*Increased costs*),

then the New Lender or Lender acting through its new Facility Office is only entitled to receive payment under those Clauses to the same extent as the Existing Lender or Lender acting through its previous Facility Office would have been if the assignment, transfer or change had not occurred. This paragraph (c) shall not apply in respect of an assignment or transfer made in the ordinary course of the primary syndication of the Facility.

- (d) Each New Lender, by executing the relevant Transfer Certificate or Assignment Agreement, confirms, for the avoidance of doubt, that the Agent has authority to execute on its behalf any amendment or waiver that has been approved by or on behalf of the requisite Lender or Lenders in accordance with this Agreement on or prior to the date on which the transfer or assignment becomes effective in accordance with this Agreement and that it is bound by that decision to the same extent as the Existing Lender would have been had it remained a Lender.

23.3 Assignment or transfer fee

Unless the New Lender is EDC, the New Lender shall, on or before the date upon which an assignment or transfer takes effect, pay to the Agent (for its own account) a fee of EUR2,000.

23.4 Limitation of responsibility of Existing Lenders

- (a) Unless expressly agreed to the contrary, an Existing Lender makes no representation or warranty and assumes no responsibility to a New Lender for:
 - (i) the legality, validity, effectiveness, adequacy or enforceability of the Finance Documents, the EDC NHS Policy or any other documents;
 - (ii) the financial condition of the Borrower, the Contractor or EDC;
 - (iii) the performance and observance by the Borrower or EDC of its obligations under the Finance Documents, the EDC NHS Policy or any other documents; or
 - (iv) the accuracy of any statements (whether written or oral) made in or in connection with any Finance Document, the EDC NHS Policy or any other document,

and any representations or warranties implied by law are excluded.
- (b) Each New Lender confirms to the Existing Lender and the other Finance Parties that it:
 - (i) has made (and shall continue to make) its own independent investigation and assessment of the financial condition and affairs of the Borrower and EDC and, in each case, its related entities in connection with its participation in this Agreement and has not relied exclusively on any information provided to it by the Existing Lender in connection with any Finance Document or the EDC NHS Policy; and
 - (ii) will continue to make its own independent appraisal of the creditworthiness of the Borrower, EDC and, in each case, its related entities whilst any amount is or may be outstanding under the Finance Documents or any Commitment is in force.
- (c) Nothing in any Finance Document obliges an Existing Lender to:
 - (i) accept a re-transfer or re-assignment from a New Lender of any of the rights and obligations assigned or transferred under this Clause 23; or
 - (ii) support any losses directly or indirectly incurred by the New Lender by reason of the non-performance by the Borrower of its obligations under the Finance Documents or otherwise.

23.5 Procedure for transfer

- (a) Subject to the conditions set out in Clause 23.2 (*Conditions of assignment or transfer*) a transfer is effected in accordance with paragraph (c) below when the Agent executes an otherwise duly completed Transfer Certificate delivered to it by the Existing Lender and the New Lender. The Agent shall, subject to paragraph (b) below, as soon as reasonably practicable after receipt by it of a duly completed Transfer Certificate appearing on its face to comply with the

terms of this Agreement and delivered in accordance with the terms of this Agreement, execute that Transfer Certificate.

- (b) The Agent shall only be obliged to execute a Transfer Certificate delivered to it by the Existing Lender and the New Lender once it is satisfied it has complied with all necessary "know your customer" or other similar checks under all applicable laws and regulations in relation to the transfer to such New Lender.
- (c) Subject to Clause 23.9 (*Pro rata interest settlement*), on the Transfer Date:
 - (i) to the extent that in the Transfer Certificate the Existing Lender seeks to transfer by novation its rights and obligations under the Finance Documents each of the Borrower and the Existing Lender shall be released from further obligations towards one another under the Finance Documents and their respective rights against one another under the Finance Documents shall be cancelled (being the **"Discharged Rights and Obligations"**);
 - (ii) each of the Borrower and the New Lender shall assume obligations towards one another and/or acquire rights against one another which differ from the Discharged Rights and Obligations only insofar as the Borrower and the New Lender have assumed and/or acquired the same in place of the Borrower and the Existing Lender;
 - (iii) the Agent, the Arranger, the New Lender and other Lenders shall acquire the same rights and assume the same obligations between themselves as they would have acquired and assumed had the New Lender been the Original Lender with the rights and/or obligations acquired or assumed by it as a result of the transfer and to that extent the Agent, the Arranger and the Existing Lender shall each be released from further obligations to each other under the Finance Documents; and
 - (iv) the New Lender shall become a Party as a "Lender".
- (d) The procedure set out in this Clause 23.5 shall not apply to an assignment of rights pursuant to Clause 23.6(d) or Clause 23.8 (*Security over Lenders' rights*).

23.6 Procedure for assignment

- (a) Subject to the conditions set out in Clause 23.2 (*Conditions of assignment or transfer*) an assignment may be effected in accordance with paragraph (c) below when the Agent executes an otherwise duly completed Assignment Agreement delivered to it by the Existing Lender and the New Lender. The Agent shall, subject to paragraph (b) below, as soon as reasonably practicable after receipt by it of a duly completed Assignment Agreement appearing on its face to comply with the terms of this Agreement and delivered in accordance with the terms of this Agreement, execute that Assignment Agreement.

- (b) The Agent shall only be obliged to execute an Assignment Agreement delivered to it by the Existing Lender and the New Lender once it is satisfied it has complied with all necessary "know your customer" or other similar checks under all applicable laws and regulations in relation to the assignment to such New Lender.
- (c) Subject to Clause 23.9 (*Pro rata interest settlement*), on the Transfer Date:
 - (i) the Existing Lender will assign absolutely to the New Lender the rights under the Finance Documents expressed to be the subject of the assignment in the Assignment Agreement;
 - (ii) the Existing Lender will be released by the Borrower and the other Finance Parties from the obligations owed by it (the "**Relevant Obligations**") and expressed to be the subject of the release in the Assignment Agreement; and
 - (iii) the New Lender shall become a Party as a "Lender" and will be bound by obligations equivalent to the Relevant Obligations.
- (d) Lenders may utilise procedures other than those set out in this Clause 23.6 to assign their rights under the Finance Documents (but not, without the consent of the Borrower or unless in accordance with Clause 23.5 (*Procedure for transfer*), to obtain a release by the Borrower from the obligations owed to the Borrower by the Lenders or the assumption of equivalent obligations by a New Lender) **provided that** they comply with the conditions set out in Clause 23.2 (*Conditions of assignment or transfer*).

23.7 Copy of Transfer Certificate or Assignment Agreement to Borrower

The Agent shall, as soon as reasonably practicable after it has executed a Transfer Certificate or an Assignment Agreement, send to the Borrower and the Caisse Autonome d'Amortissement a copy of that Transfer Certificate or Assignment Agreement.

23.8 Security over Lenders' rights

- (a) In addition to the other rights provided to Lenders under this Clause 23, subject to the prior written consent of EDC, each Lender may, for funding, liquidity or capital adequacy purposes, without consulting with or obtaining consent from the Borrower, at any time:
 - (i) assign any of its rights under the Finance Documents by any method or instrument contemplated by any applicable law (an "**Alternative Transfer**"); or
 - (ii) charge, assign or otherwise create Security in or over (whether by way of collateral or otherwise) all or any of its rights under any Finance Document to secure obligations of that Lender including:
 - (A) any charge, assignment or other Security to secure obligations to a federal reserve or central bank; and

- (B) any charge (including by way of privilege creating any right of preference whether by law or by contract), assignment or other Security granted to any holders (or trustee or representatives of holders) of obligations owed, or securities issued, by that Lender as security for those obligations or securities,

except that no Alternative Transfer made or charge, assignment or Security shall:

- (1) release a Lender from any of its obligations under the Finance Documents or substitute the beneficiary of the relevant charge, assignment or other Security for a Lender as a party to any of the Finance Documents; or
 - (2) require any payments to be made by the Borrower or grant to any person any more extensive rights than, those required to be made or granted to the Lenders under the Finance Documents.
- (b) The provisions of Clauses 23.1 (*Assignments and transfers by the Lenders*) to 23.3 (*Assignment or transfer fee*), 23.5 (*Procedure for transfer*), 23.6 (*Procedure for assignment*) and 23.7 (*Copy of Transfer Certificate or Assignment Agreement to Borrower*) are not, and shall not be interpreted as being, applicable to an Alternative Transfer, assignment, charge or Security made or created pursuant to this Clause 23.8.
- (c) By virtue of:
- (i) the due completion of an Alternative Transfer; or
 - (ii) the enforcement of any assignment, charge or Security created pursuant to paragraph (a) above, as applicable, in each case subject to any applicable law, as from the date on which the Agent is notified by the beneficiary of such Alternative Transfer or of the enforcement of any such assignment, charge or Security, such beneficiary shall be deemed to become a Party as a Lender in respect of the rights of the Lenders which are subject to any such Alternative Transfer or enforcement.

23.9 Pro rata interest settlement

- (a) If the Agent has notified the Lenders that it is able to distribute interest payments on a "pro rata basis" to Existing Lenders and New Lenders then (in respect of any transfer pursuant to Clause 23.5 (*Procedure for transfer*) or any assignment pursuant to Clause 23.6 (*Procedure for assignment*) the Transfer Date of which, in each case, is after the date of such notification and is not on the last day of an Interest Period):
 - (i) any interest or fees in respect of the relevant participation which are expressed to accrue by reference to the lapse of time shall continue to accrue in favour of the Existing Lender up to but excluding the Transfer Date ("**Accrued Amounts**") and shall become due and

payable to the Existing Lender (without further interest accruing on them) on the last day of the current Interest Period; and

- (ii) the rights assigned or transferred by the Existing Lender will not include the right to the Accrued Amounts, so that, for the avoidance of doubt:
 - (A) when the Accrued Amounts become payable, those Accrued Amounts will be payable to the Existing Lender; and
 - (B) the amount payable to the New Lender on that date will be the amount which would, but for the application of this Clause 23.9, have been payable to it on that date, but after deduction of the Accrued Amounts.
- (b) In this Clause 23.9 references to "Interest Period" shall be construed to include a reference to any other period for accrual of fees.

23.10 Change of Facility Office

Each Lender may at any time change its Facility Office, subject always to the prior consent of EDC. The relevant Lender shall promptly thereafter give notice of such change to the Agent.

24. CHANGES TO THE BORROWER

The Borrower may not assign any of its rights or transfer any of its obligations under the Finance Documents.

25. ROLE OF THE AGENT AND THE ARRANGER

25.1 Appointment of the Agent

- (a) Each of the Lenders appoints the Agent to act as its agent under and in connection with the Finance Documents and each of the Lenders appoints the Agent as its common representative under the EDC NHS Policy in respect of:
 - (i) the execution and application for the EDC NHS Policy to be issued by EDC;
 - (ii) all communications with EDC relating to the EDC NHS Policy;
 - (iii) any changes to the EDC NHS Policy;
 - (iv) any payment under the EDC NHS Policy;
 - (v) any claim, indemnification or dispute under the EDC NHS Policy; and
 - (vi) any other matter or issue in connection with the EDC NHS Policy.
- (b) Each of the Lenders authorises the Agent to perform the duties, obligations and responsibilities and to exercise the rights, powers, authorities and

discretions specifically given to the Agent under or in connection with the Finance Documents together with any other incidental rights, powers, authorities and discretions.

- (c) Other than to the extent that a Lender notifies the Agent in writing to the contrary before the Agent gives the notification described in Clause 4.1(a), each Lender authorises (but does not require) the Agent to give that notification. The Agent shall not be liable for any damages, costs or losses whatsoever as a result of giving any such notification.
- (d) The Lenders agree that in respect of EDC and the EDC NHS Policy, and save as expressly provided otherwise in this Agreement:
 - (i) the Agent shall act on behalf of the Lenders in respect of any matter related to this Agreement and EDC or the EDC NHS Policy;
 - (ii) all the acts of the Agent done on behalf of the Lenders in respect of the EDC NHS Policy and about which all relevant details have been disclosed to the Lenders are hereby ratified and approved;
 - (iii) the Agent shall be the primary point of contact with EDC and accordingly no Lender will contact EDC in writing about any matter arising under this Agreement without first notifying the Agent of its intention to do so; and
 - (iv) if so required by EDC, each Lender will provide the Agent with an appropriate, written separate power of attorney to enable the Agent to execute any documents relating to this Agreement and EDC or the EDC NHS Policy.

25.2 Instructions

- (a) Subject to Clause 18.3 (*EDC Instructions*) and this Clause 25.2, the Agent shall:
 - (i) unless a contrary indication appears in a Finance Document, exercise any right, power, authority or discretion vested in it as Agent in accordance with:
 - (A) any instructions given to it by all Lenders if the relevant Finance Document stipulates the matter is an all Lender decision; and
 - (B) in all other cases, the Majority Lenders
 (or, if so instructed by the relevant group of Lenders, refrain from exercising any right, power, authority or discretion vested in it as Agent); and
 - (ii) not be liable for any act (or omission) if it acts (or refrains from taking any action) in accordance with paragraph (i) above.

- (b) The Agent shall be entitled to request instructions, or clarification of any instruction, from EDC or the Majority Lenders (or, if the relevant Finance Document stipulates the matter is a decision for any other Lender or group of Lenders, from that Lender or group of Lenders) as to whether, and in what manner, it should exercise or refrain from exercising any right, power, authority or discretion. The Agent may refrain from acting unless and until it receives any such instructions or clarification that it has requested.
- (c) The Agent may refrain from acting in accordance with any instructions of EDC, any Lender or group of Lenders until it has received any indemnification and/or security that it may in its discretion require (which may be greater in extent than that contained in the Finance Documents and which may include payment in advance) for any cost, loss or liability which it may incur in complying with those instructions.
- (d) In the absence of instructions from EDC or the Majority Lenders (or, if appropriate, the Lenders), the Agent may act (or refrain from taking action) as it considers to be in the best interest of the Lenders.
- (e) The Agent is not authorised to act on behalf of a Lender (without first obtaining that Lender's consent) in any legal or arbitration proceedings relating to any Finance Document or the EDC NHS Policy.
- (f) A Lender may instruct the Agent to make a claim under the EDC NHS Policy on its behalf, without the consent of any other Lender, and the Agent shall act on such instructions to the extent permitted by the terms of the EDC NHS Policy.

25.3 Duties of the Agent

- (a) Subject to paragraph (d) of Clause 25.2 (*Instructions*), the Agent's duties under the Finance Documents are solely mechanical and administrative in nature.
- (b) Subject to paragraph (c) below, the Agent shall promptly forward to a Party the original or a copy of any document which is delivered to the Agent for that Party by any other Party.
- (c) Without prejudice to Clause 23.7 (*Copy of Transfer Certificate or Assignment Agreement to Borrower*), paragraph (b) above shall not apply to any Transfer Certificate or any Assignment Agreement.
- (d) Except where a Finance Document or the EDC NHS Policy specifically provides otherwise, the Agent is not obliged to review or check the adequacy, accuracy or completeness of any document it forwards to another Party.
- (e) If the Agent receives notice from a Party referring to this Agreement, describing a Default and stating that the circumstance described is a Default, it shall promptly notify the other Finance Parties.
- (f) If the Agent is aware of the non-payment of any principal, interest, commitment fee or other fee payable to a Finance Party (other than the Agent

or the Arranger) under this Agreement, it shall promptly notify the other Finance Parties.

- (g) The Agent shall have only those duties, obligations and responsibilities expressly specified in the Finance Documents and the EDC NHS Policy to which it is expressed to be a party (and no others shall be implied).

25.4 Role of the Arranger

Except as specifically provided in the Finance Documents, the Arranger has no obligations of any kind to any other Party under or in connection with any Finance Document.

25.5 No fiduciary duties

- (a) Nothing in any Finance Document or the EDC NHS Policy constitutes the Agent or the Arranger acting as a trustee or fiduciary of any other person.
- (b) Neither the Agent nor the Arranger shall be bound to account to any Lender for any sum or the profit element of any sum received by it for its own account.

25.6 Business with the Borrower

The Agent and the Arranger may accept deposits from, lend money to and generally engage in any kind of banking or other business with the Borrower and any of its agencies.

25.7 Rights and discretions of the Agent

- (a) The Agent may rely on:
 - (i) any representation, communication, notice or document believed by it to be genuine, correct and appropriately authorised; and
 - (ii) any statement made by a director, authorised signatory or employee of any person regarding any matters which may reasonably be assumed to be within that individual's knowledge or power to verify.
- (b) The Agent may:
 - (i) assume that:
 - (A) any instructions received by it from the Majority Lenders, any Lender or group of Lenders are duly given in accordance with the terms of the Finance Documents and unless it has received notice of revocation, that those instructions have not been revoked;
 - (B) any instructions received by it from EDC are duly given in accordance with the terms of the EDC NHS Policy and, unless it has received notice of revocation, that those instructions have not been revoked; and

- (ii) rely on any certificate from any person:
 - (A) as to any matter of fact or circumstance which might reasonably be expected to be within the knowledge of that person; or
 - (B) to the effect that such person approves of any particular dealing, transaction, step, action or thing,

as sufficient evidence that that is the case and, in the case of paragraph (A) above, may assume the truth and accuracy of that certificate.
- (c) The Agent may assume (unless it has received notice to the contrary in its capacity as agent for the Lenders or from EDC under the EDC NHS Policy) that:
 - (i) no Default has occurred (unless it has actual knowledge of a Default arising under Clause 22.1 (*Non-payment*)); and
 - (ii) any right, power, authority or discretion vested in any Party or any group of Lenders has not been exercised.
- (d) The Agent may engage and pay for the advice or services of any lawyers, accountants, tax advisers, surveyors or other professional advisers or experts.
- (e) Without prejudice to the generality of paragraph (d) above or paragraph (f) below, the Agent may at any time engage and pay for the services of any lawyers to act as independent counsel to the Agent (and so separate from any lawyers instructed by the Lenders) if the Agent in its reasonable opinion deems this to be necessary.
- (f) The Agent may rely on the advice or services of any lawyers, accountants, tax advisers, surveyors or other professional advisers or experts (whether obtained by the Agent or by any other Party) and shall not be liable for any damages, costs or losses to any person, any diminution in value or any liability whatsoever arising as a result of its so relying.
- (g) The Agent may act in relation to the Finance Documents through its officers, employees and agents.
- (h) Unless a Finance Document expressly provides otherwise the Agent may disclose to any other Party any information it reasonably believes it has received as agent under this Agreement.
- (i) Notwithstanding any other provision of any Finance Document to the contrary, neither the Agent nor the Arranger is obliged to do or omit to do anything if it would or might in its reasonable opinion constitute a breach of any law or regulation or a breach of a fiduciary duty or duty of confidentiality.
- (j) Notwithstanding any provision of any Finance Document to the contrary, the Agent is not obliged to expend or risk its own funds or otherwise incur any financial liability in the performance of its duties, obligations or

responsibilities or the exercise of any right, power, authority or discretion if it has grounds for believing the repayment of such funds or adequate indemnity against, or security for, such risk or liability is not reasonably assured to it.

25.8 Responsibility for documentation

Neither the Agent nor the Arranger is responsible or liable for:

- (a) the adequacy, accuracy or completeness of any information (whether oral or written) supplied by the Agent, the Arranger, the Borrower, EDC or any other person in or in connection with any Finance Document or the EDC NHS Policy or the transactions contemplated in the Finance Documents or the EDC NHS Policy or any other agreement, arrangement or document entered into, made or executed in anticipation of, under or in connection with any Finance Document or the EDC NHS Policy; or
- (b) the legality, validity, effectiveness, adequacy or enforceability of any Finance Document or the EDC NHS Policy or any other agreement, arrangement or document entered into, made or executed in anticipation of, under or in connection with any Finance Document or the EDC NHS Policy; or
- (c) any determination as to whether any information provided or to be provided to any Finance Party is non-public information the use of which may be regulated or prohibited by applicable law or regulation relating to insider dealing or otherwise.

25.9 No duty to monitor

The Agent shall not be bound to enquire:

- (a) whether or not any Default has occurred;
- (b) as to the performance, default or any breach by any Party of its obligations under any Finance Document; or
- (c) whether any other event specified in any Finance Document has occurred.

25.10 Exclusion of liability

- (a) Without limiting paragraph (b) below (and without prejudice to any other provision of any Finance Document or the EDC NHS Policy excluding or limiting the liability of the Agent), the Agent will not be liable for:
 - (i) any damages, costs or losses to any person, any diminution in value, or any liability whatsoever arising as a result of taking or not taking any action under or in connection with any Finance Document or the EDC NHS Policy, unless directly caused by its gross negligence or wilful misconduct;
 - (ii) exercising, or not exercising, any right, power, authority or discretion given to it by, or in connection with, any Finance Document, the EDC NHS Policy or any other agreement, arrangement or document entered

into, made or executed in anticipation of, under or in connection with, any Finance Document or the EDC NHS Policy, other than by reason of its gross negligence or wilful misconduct; or

- (iii) without prejudice to the generality of paragraphs (i) and (ii) above, any damages, costs or losses to any person, any diminution in value or any liability whatsoever (including for negligence or any other category of liability whatsoever but not including any claim based on the fraud of the Agent) arising as a result of:

- (A) any act, event or circumstance not reasonably within its control; or

- (B) the general risks of investment in, or the holding of assets in, any jurisdiction,

including (in each case) such damages, costs, losses, diminution in value or liability arising as a result of: nationalisation, expropriation or other governmental actions; any regulation, currency restriction, devaluation or fluctuation; market conditions affecting the execution or settlement of transactions or the value of assets (including any Disruption Event); breakdown, failure or malfunction of any third party transport, telecommunications, computer services or systems; natural disasters or acts of God; war, terrorism, insurrection or revolution; or strikes or industrial action.

- (b) No Party (other than the Agent) may take any proceedings against any officer, employee or agent of the Agent in respect of any claim it might have against the Agent or in respect of any act or omission of any kind by that officer, employee or agent in relation to any Finance Document or the EDC NHS Policy and any officer, employee or agent of the Agent may rely on this Clause 25.10 subject to Clause 1.4 (*Third party rights*) and the provisions of the Third Parties Act.
- (c) The Agent will not be liable for any delay (or any related consequences) in crediting an account with an amount required under the Finance Documents or the EDC NHS Policy to be paid by the Agent if the Agent has taken all necessary steps as soon as reasonably practicable to comply with the regulations or operating procedures of any recognised clearing or settlement system used by the Agent for that purpose.
- (d) Nothing in this Agreement shall oblige the Agent or the Arranger to carry out:
 - (i) any "know your customer" or other checks in relation to any person; or
 - (ii) any check on the extent to which any transaction contemplated by this Agreement might be unlawful for any Lender,

on behalf of any Lender and each Lender confirms to the Agent and the Arranger that it is solely responsible for any such checks it is required to carry

out and that it may not rely on any statement in relation to such checks made by the Agent or the Arranger.

- (e) Without prejudice to any provision of any Finance Document excluding or limiting the Agent's liability, any liability of the Agent arising under or in connection with any Finance Document shall be limited to the amount of actual loss which has been suffered (as determined by reference to the date of default of the Agent or, if later, the date on which the loss arises as a result of such default) but without reference to any special conditions or circumstances known to the Agent at any time which increase the amount of that loss. In no event shall the Agent be liable for any loss of profits, goodwill, reputation, business opportunity or anticipated saving, or for special, punitive, indirect or consequential damages, whether or not the Agent has been advised of the possibility of such loss or damages.

25.11 Compliance with terms of EDC NHS Policy

- (a) Each Finance Party will co-operate with the Agent and each other Finance Party, and take such action and/or refrain from taking such action as may be reasonably necessary, to ensure that the EDC NHS Policy continue in full force and effect.
- (b) Each Finance Party is severally responsible for complying with the terms and requirements of the EDC NHS Policy.
- (c) Each Finance Party acknowledges that it has notice of all of the terms and conditions of the EDC NHS Policy, notwithstanding that such Finance Party may not be a party to the EDC NHS Policy.
- (d) The Agent may disclose to EDC any information that has been delivered to the Agent in accordance with the Finance Documents.

25.12 Lenders' indemnity to the Agent

- (a) Each Lender shall (in proportion to its share of the Total Commitments or, if the Total Commitments are then zero, to its share of the Total Commitments immediately prior to their reduction to zero) indemnify the Agent, within three (3) Business Days of demand, against any cost, loss or liability (including (i) for negligence or any other category of liability whatsoever and (ii) FATCA related liabilities) incurred by the Agent (otherwise than by reason of the Agent's gross negligence or wilful misconduct) (or, in the case of any cost, loss or liability pursuant to Clause 28.11 (*Disruption to payment systems etc.*) notwithstanding the Agent's negligence, gross negligence or any other category of liability whatsoever but not including any claim based on the fraud of the Agent) in acting as Agent under the Finance Documents and the EDC NHS Policy (unless the Agent has been reimbursed by the Borrower pursuant to a Finance Document).
- (b) The Borrower shall, on demand, indemnify each Lender for all amounts paid by that Lender to the Agent pursuant to paragraph (a) above.

25.13 Resignation of the Agent

- (a) Subject to consent from EDC, the Agent may resign and appoint one of its Affiliates as successor by giving notice to the other Finance Parties and the Borrower.
- (b) Alternatively, subject to consent from EDC, the Agent may resign by giving thirty (30) days' notice to the other Finance Parties and the Borrower, in which case the Majority Lenders may appoint a successor Agent.
- (c) If the Majority Lenders have not appointed a successor Agent in accordance with paragraph (b) above within twenty (20) days after notice of resignation was given, the retiring Agent may appoint a successor Agent.
- (d) If the Agent wishes to resign because (acting reasonably) it has concluded that it is no longer appropriate for it to remain as agent and the Agent is entitled to appoint a successor Agent under paragraph (a) above, the Agent may (if it concludes (acting reasonably) that it is necessary to do so in order to persuade the proposed successor Agent to become a party to this Agreement as Agent) agree (with the prior consent of the EDC) with the proposed successor Agent amendments to this Clause 25 and any other term of this Agreement dealing with the rights or obligations of the Agent consistent with then current market practice for the appointment and protection of corporate trustees, together with any reasonable amendments to the agency fee payable under this Agreement which are consistent with the successor Agent's normal fee rates, and those amendments will bind the Parties.
- (e) The retiring Agent shall, at the expense of the Borrower, make available to the successor Agent such documents and records and provide such assistance as the successor Agent may reasonably request for the purposes of performing its functions as Agent under the Finance Documents. The Borrower shall, within three (3) Business Days of demand, reimburse the retiring Agent for the amount of all costs and expenses (including legal fees) properly incurred by it in making available such documents and records and providing such assistance.
- (f) The Agent's resignation notice shall only take effect upon the appointment of a successor and that successor of the Agent becoming party to the EDC NHS Policy.
- (g) Upon the appointment of a successor, the retiring Agent shall be discharged from any further obligation in respect of the Finance Documents (other than its obligations under paragraph (e) above) but shall remain entitled to the benefit of Clause 15.3 (*Indemnity to the Agent*) and this Clause 25 (and any agency fees for the account of the retiring Agent shall cease to accrue from (and shall be payable on) that date). Any successor and each of the other Parties shall have the same rights and obligations amongst themselves as they would have had if such successor had been an original Party.
- (h) After consultation with the Borrower, subject to consent from EDC, the Majority Lenders may, by ten (10) Business Days' prior notice to the Agent,

require it to resign in accordance with paragraph (b) above. In this event, the Agent shall resign in accordance with paragraph (b) above.

25.14 Confidentiality

- (a) In acting as agent for the Finance Parties, the Agent shall be regarded as acting through its agency division which shall be treated as a separate entity from any other of its divisions or departments.
- (b) If information is received by another division or department of the Agent, it may be treated as confidential to that division or department and the Agent shall not be deemed to have notice of it.

25.15 Relationship with the Lenders

- (a) Subject to Clause 23.9 (*Pro rata interest settlement*), the Agent may treat the person shown in its records as Lender at the opening of business (in the place of the Agent's principal office as notified to the Finance Parties from time to time) as the Lender acting through its Facility Office:
 - (i) entitled to or liable for any payment due under any Finance Document on that day; and
 - (ii) entitled to receive and act upon any notice, request, document or communication or make any decision or determination under any Finance Document made or delivered on that day,

unless it has received not less than five (5) Business Days' prior notice from that Lender to the contrary in accordance with the terms of this Agreement.

- (b) Any Lender may by notice to the Agent appoint a person to receive on its behalf all notices, communications, information and documents to be made or despatched to that Lender under the Finance Documents. Such notice shall contain the address, fax number and (where communication by electronic mail or other electronic means is permitted under Clause 30.5 (*Electronic communication*)) electronic mail address and/or any other information required to enable the transmission of information by that means (and, in each case, the department or officer, if any, for whose attention communication is to be made) and be treated as a notification of a substitute address, fax number, electronic mail address (or such other information), department and officer by that Lender for the purposes of Clause 30.2 (*Addresses*) and paragraph (a)(ii) of Clause 30.5 (*Electronic communication*) and the Agent shall be entitled to treat such person as the person entitled to receive all such notices, communications, information and documents as though that person were the Lender.

25.16 Credit appraisal by the Lenders

Without affecting the responsibility of the Borrower for information supplied by it or on its behalf in connection with any Finance Document or the EDC NHS Policy, each Lender confirms to the Agent and the Arranger that it has been, and will continue to be, solely responsible for making its own independent appraisal and investigation of

all risks arising under or in connection with any Finance Document and the EDC NHS Policy, including:

- (a) the financial condition, status and nature of the Borrower and EDC;
- (b) the legality, validity, effectiveness, adequacy or enforceability of any Finance Document or the EDC NHS Policy and any other agreement, arrangement or document entered into, made or executed in anticipation of, under or in connection with any Finance Document or the EDC NHS Policy;
- (c) whether that Lender has recourse, and the nature and extent of that recourse, against any Party or any of its respective assets under or in connection with any Finance Document and the EDC NHS Policy, the transactions contemplated by the Finance Documents and the EDC NHS Policy or any other agreement, arrangement or document entered into, made or executed in anticipation of, under or in connection with any Finance Document and the EDC NHS Policy; and
- (d) the adequacy, accuracy or completeness of any other information provided by the Agent, any Party or by any other person under or in connection with any Finance Document and the EDC NHS Policy, the transactions contemplated by any Finance Document and the EDC NHS Policy or any other agreement, arrangement or document entered into, made or executed in anticipation of, under or in connection with any Finance Document and the EDC NHS Policy.

25.17 Agent's management time

Any amount payable to the Agent under Clause 15.3 (*Indemnity to the Agent*), Clause 17 (*Costs and expenses*) and Clause 25.12 (*Lenders' indemnity to the Agent*) shall include the cost of utilising the Agent's management time or other resources and will be calculated on the basis of such reasonable daily or hourly rates as the Agent may notify to the Borrower and the Lenders, and is in addition to any fee paid or payable to the Agent under Clause 11 (*Fees*).

25.18 Deduction from amounts payable by the Agent

If any Party owes an amount to the Agent under the Finance Documents the Agent may, after giving notice to that Party, deduct an amount not exceeding that amount from any payment to that Party which the Agent would otherwise be obliged to make under the Finance Documents and apply the amount deducted in or towards satisfaction of the amount owed. For the purposes of the Finance Documents that Party shall be regarded as having received any amount so deducted.

26. CONDUCT OF BUSINESS BY THE FINANCE PARTIES

No provision of this Agreement will:

- (a) interfere with the right of any Finance Party to arrange its affairs (tax or otherwise) in whatever manner it thinks fit;
- (b) oblige any Finance Party to investigate or claim any credit, relief, remission or repayment available to it or the extent, order and manner of any claim; or

- (c) oblige any Finance Party to disclose any information relating to its affairs (tax or otherwise) or any computations in respect of Tax.

27. SHARING AMONG THE FINANCE PARTIES

27.1 Payments to Finance Parties

- (a) If a Finance Party (a "**Recovering Finance Party**") receives or recovers any amount from the Borrower other than in accordance with Clause 28 (*Payment mechanics*) (a "**Recovered Amount**") and applies that amount to a payment due under the Finance Documents then:
 - (i) the Recovering Finance Party shall, within three (3) Business Days, notify details of the receipt or recovery to the Agent;
 - (ii) the Agent shall determine whether the receipt or recovery is in excess of the amount the Recovering Finance Party would have been paid had the receipt or recovery been received or made by the Agent and distributed in accordance with Clause 28 (*Payment mechanics*), without taking account of any Tax which would be imposed on the Agent in relation to the receipt, recovery or distribution; and
 - (iii) the Recovering Finance Party shall, within three (3) Business Days of demand by the Agent, pay to the Agent an amount (the "**Sharing Payment**") equal to such receipt or recovery less any amount which the Agent determines may be retained by the Recovering Finance Party as its share of any payment to be made, in accordance with Clause 28.6 (*Partial payments*).
- (b) Nothing in this Clause 27.1 shall apply to any payment made to EDC by a Lender or the Borrower following a payment by EDC to any Lender by way of indemnification under the EDC NHS Policy, in the event that EDC has fully indemnified that Lender under the EDC NHS Policy.

27.2 Redistribution of payments

The Agent shall treat the Sharing Payment as if it had been paid by the Borrower and distribute it between the Finance Parties (other than the Recovering Finance Party) (the "**Sharing Finance Parties**") in accordance with Clause 28.6 (*Partial payments*) towards the obligations of the Borrower to the Sharing Finance Parties.

27.3 Recovering Finance Party's rights

On a distribution by the Agent under Clause 27.2 (*Redistribution of payments*) of a payment received by a Recovering Finance Party from the Borrower, as between the Borrower and the Recovering Finance Party, an amount of the Recovered Amount equal to the Sharing Payment will be treated as not having been paid by the Borrower.

27.4 Reversal of redistribution

If any part of the Sharing Payment received or recovered by a Recovering Finance Party becomes repayable and is repaid by that Recovering Finance Party, then:

- (a) each Sharing Finance Party shall, upon request of the Agent, pay to the Agent for the account of that Recovering Finance Party an amount equal to the appropriate part of its share of the Sharing Payment (together with an amount as is necessary to reimburse that Recovering Finance Party for its proportion of any interest on the Sharing Payment which that Recovering Finance Party is required to pay) (the "**Redistributed Amount**"); and
- (b) as between the Borrower and each relevant Sharing Finance Party, an amount equal to the relevant Redistributed Amount will be treated as not having been paid by the Borrower.

27.5 Exceptions

- (a) This Clause 27 shall not apply to the extent that the Recovering Finance Party would not, after making any payment pursuant to this Clause 27, have a valid and enforceable claim against the Borrower.
- (b) A Recovering Finance Party is not obliged to share with any other Finance Party any amount which the Recovering Finance Party has received or recovered as a result of taking legal or arbitration proceedings, if:
 - (i) it notified that other Finance Party of the legal or arbitration proceedings; and
 - (ii) that other Finance Party had an opportunity to participate in those legal or arbitration proceedings but did not do so as soon as reasonably practicable having received notice and did not take separate legal or arbitration proceedings.

28. PAYMENT MECHANICS

28.1 Payments to the Agent

- (a) On each date on which the Borrower or a Lender is required to make a payment under a Finance Document, the Borrower or that Lender shall make the same available to the Agent (unless a contrary indication appears in a Finance Document) for value by 10.00 a.m. on the due date and in such funds specified by the Agent as being customary at the time for settlement of transactions in the relevant currency in the place of payment.
- (b) The Agent shall notify the Borrower and the Caisse Autonome d'Amortissement in advance of each scheduled payment of principal falling due under Clause 6.1 (*Repayment of Loans*) and each scheduled payment of interest falling due under Clause 8.2 (*Payment of interest*). This paragraph (b) does not in any way limit the obligations of the Borrower under Clause 6.1 (*Repayment of Loans*) or Clause 8.2 (*Payment of interest*) or any other obligations under the Finance Documents.

- (c) Payment shall be made to such account in the principal financial centre of the country of that currency (or, in relation to euro, in a principal financial centre in such Participating Member State or London, as specified by the Agent) and with such bank as the Agent, in each case, specifies.

28.2 Distributions by the Agent

Each payment received by the Agent under the Finance Documents for another Party shall, subject to Clause 28.4 (*Distributions to the Borrower*) and Clause 28.5 (*Clawback and pre-funding*) be made available by the Agent as soon as practicable after receipt to the Party entitled to receive payment in accordance with this Agreement (in the case of a Lender, for the account of its Facility Office), to such account as that Party may notify to the Agent by not less than five (5) Business Days' notice with a bank specified by that Party in the principal financial centre of the country of that currency (or, in relation to euro, in the principal financial centre of a Participating Member State or London, as specified by that Party).

28.3 Distributions in respect of Utilisations

- (a) The Borrower irrevocably and unconditionally authorises and directs the Agent to pay the proceeds of any Loans to be made to the Borrower pursuant to a Payment Request to the Contractor.
- (b) Each payment under paragraph (a) above shall be to such bank account in Canada as notified to the Agent by the Borrower in a Payment Request. For the purposes of the Public Contracts Code, the Agent is authorised to make such payments to a bank account located outside Cameroon.

28.4 Distributions to the Borrower

The Agent may (with the consent of the Borrower or in accordance with Clause 29 (*Set-off*)) apply any amount received by it for the Borrower in or towards payment (on the date and in the currency and funds of receipt) of any amount due from the Borrower under the Finance Documents or in or towards purchase of any amount of any currency to be so applied.

28.5 Clawback and pre-funding

- (a) Where a sum is to be paid to the Agent under the Finance Documents for another Party, the Agent is not obliged to pay that sum to that other Party (or to enter into or perform any related exchange contract) until it has been able to establish to its satisfaction that it has actually received that sum.
- (b) Unless paragraph (c) below applies, if the Agent pays an amount to another Party and it proves to be the case that the Agent had not actually received that amount, then the Party to whom that amount (or the proceeds of any related exchange contract) was paid by the Agent shall on demand refund the same to the Agent together with interest on that amount from the date of payment to the date of receipt by the Agent, calculated by the Agent to reflect its cost of funds.

- (c) If the Agent has notified the Lenders that it is willing to make available amounts for the account of the Borrower before receiving funds from the Lenders then if and to the extent that the Agent does so but it proves to be the case that it does not then receive funds from a Lender in respect of a sum which it paid to the Borrower:
 - (i) the Borrower shall on demand refund it to the Agent; and
 - (ii) the Lender by whom the funds should have been made available or, if that Lender fails to do so, the Borrower, shall on demand pay to the Agent the amount (as certified by the Agent) which will indemnify the Agent against any funding cost incurred by it as a result of paying out that sum before receiving those funds from that Lender.

28.6 Partial payments

- (a) Without prejudice to the provisions of the EDC NHS Policy and subject to this Clause 28.6, if the Agent receives a payment that is insufficient to discharge all the amounts then due and payable by the Borrower under the Finance Documents, the Agent shall apply that payment towards the obligations of the Borrower under the Finance Documents in the following order:
 - (i) *first*, in or towards payment *pro rata* of any unpaid amount owing to the Agent under the Finance Documents;
 - (ii) *secondly*, in or towards payment *pro rata* of any overdue scheduled interest, default interest, fee or commission that is due and payable;
 - (iii) *thirdly*, in or towards payment *pro rata* of any principal due but unpaid under this Agreement (other than principal falling due by reason of an acceleration, mandatory prepayment or voluntary prepayment);
 - (iv) *fourthly*, in or towards payment *pro rata* of any principal due by reason of an acceleration or mandatory prepayment;
 - (v) *fifthly*, in or towards payment *pro rata* of any principal due by reason of a voluntary prepayment;
 - (vi) *sixthly*, in or towards payment *pro rata* of any other sum due but unpaid under the Finance Documents.
- (b) The Agent shall, if so directed by the Majority Lenders and with the prior consent of EDC, vary the order set out in paragraphs (a)(ii) to (iv) above.
- (c) Paragraphs (a) and (b) above will override any appropriation made by the Borrower.
- (d) If the Agent receives an amount from EDC in respect of a claim made by a Lender in respect of the EDC NHS Policy, the Agent will be required to share such claim proceeds only with that Lender, and will not be required to apply such claim proceeds *pro rata* amongst all of the Lenders.

28.7 No set-off by the Borrower

All payments to be made by the Borrower under the Finance Documents shall be calculated and be made without (and free and clear of any deduction for) set-off or counterclaim.

28.8 Business Days

- (a) Any payment under the Finance Documents which is due to be made on a day that is not a Business Day shall be made on the next Business Day in the same calendar month (if there is one) or the preceding Business Day (if there is not).
- (b) During any extension of the due date for payment of any principal or Unpaid Sum under this Agreement interest is payable on the principal or Unpaid Sum at the rate payable on the original due date.

28.9 Currency of account

- (a) Subject to paragraphs (b) and (c) below, euro is the currency of account and payment for any sum due from the Borrower under any Finance Document.
- (b) Each payment in respect of costs, expenses or Taxes shall be made in the currency in which the costs, expenses or Taxes are incurred.
- (c) Any amount expressed to be payable in a currency other than euro shall be paid in that other currency.

28.10 Change of currency

- (a) Unless otherwise prohibited by law, if more than one (1) currency or currency unit are at the same time recognised by the central bank of any country as the lawful currency of that country, then:
 - (i) any reference in the Finance Documents to, and any obligations arising under the Finance Documents in, the currency of that country shall be translated into, or paid in, the currency or currency unit of that country designated by the Agent (after consultation with the Borrower); and
 - (ii) any translation from one currency or currency unit to another shall be at the official rate of exchange recognised by the central bank for the conversion of that currency or currency unit into the other, rounded up or down by the Agent (acting reasonably).
- (b) If a change in any currency of a country occurs, this Agreement will, to the extent the Agent (acting reasonably and after consultation with the Borrower) specifies to be necessary and with the prior consent of EDC, be amended to comply with any generally accepted conventions and market practice in the Relevant Market and otherwise to reflect the change in currency.

28.11 Disruption to payment systems etc.

If either the Agent determines (in its discretion) that a Disruption Event has occurred or the Agent is notified by the Borrower that a Disruption Event has occurred:

- (a) the Agent may, and shall if requested to do so by the Borrower, consult with the Borrower with a view to agreeing with the Borrower such changes to the operation or administration of the Facility as the Agent may deem necessary in the circumstances;
- (b) the Agent shall not be obliged to consult with the Borrower in relation to any changes mentioned in paragraph (a) if, in its opinion, it is not practicable to do so in the circumstances and, in any event, shall have no obligation to agree to such changes;
- (c) the Agent may consult with the Finance Parties in relation to any changes mentioned in paragraph (a) above but shall not be obliged to do so if, in its opinion, it is not practicable to do so in the circumstances;
- (d) any such changes agreed upon by the Agent and the Borrower shall (whether or not it is finally determined that a Disruption Event has occurred) be binding upon the Parties as an amendment to (or, as the case may be, waiver of) the terms of the Finance Documents notwithstanding the provisions of Clause 34 (*Amendments and Waivers*);
- (e) the Agent shall not be liable for any damages, costs or losses to any person, any diminution in value or any liability whatsoever (including, without limitation for negligence, gross negligence or any other category of liability whatsoever but not including any claim based on the fraud of the Agent) arising as a result of its taking, or failing to take, any actions pursuant to or in connection with this Clause 28.11; and
- (f) the Agent shall notify the Finance Parties of all changes agreed pursuant to paragraph (d) above.

29. SET-OFF

A Finance Party may set off any matured obligation due from the Borrower under the Finance Documents (to the extent beneficially owned by that Finance Party) against any matured obligation owed by that Finance Party to the Borrower, regardless of the place of payment, booking branch or currency of either obligation. If the obligations are in different currencies, the Finance Party may convert either obligation at a market rate of exchange in its usual course of business for the purpose of the set-off.

30. NOTICES**30.1 Communications in writing**

- (a) Any communication to be made under or in connection with the Finance Documents shall be made in writing and, unless otherwise stated, may be made by fax or letter.

- (b) A copy of each communication under paragraph (a) above relating to a payment under a Finance Document shall be sent to the Caisse Autonome d'Amortissement.

30.2 Addresses

The address and fax number (and the department or officer, if any, for whose attention the communication is to be made) of each Party for any communication or document to be made or delivered under or in connection with the Finance Documents is:

- (a) in the case of each Party that is a Party on the date of this Agreement, that set out below the signature block of that Party on the relevant signature page to this Agreement;
- (b) in the case of the Caisse Autonome d'Amortissement, that set out below the signature block of the Borrower on the relevant signature page to this Agreement; and
- (c) in the case of each New Lender, that notified in writing to the Agent on or prior to the date on which it becomes a Party,

or any substitute address or fax number or department or officer as the Party (or, in respect of the address or fax number of the Caisse Autonome d'Amortissement, the Borrower) may notify to the Agent (or the Agent may notify to the other Parties, if a change is made by the Agent) by not less than five (5) Business Days' notice.

30.3 Delivery

- (a) Any communication or document made or delivered by one person to another under or in connection with the Finance Documents will only be effective:
 - (i) if by way of fax, when received in legible form; or
 - (ii) if by way of letter, when it has been left at the relevant address or five (5) Business Days after being deposited in the post postage prepaid in an envelope addressed to it at that address;

and, if a particular department or officer is specified as part of its address details provided under Clause 30.2 (*Addresses*), if addressed to that department or officer.

- (b) Any communication or document to be made or delivered to the Agent will be effective only when actually received by the Agent and then only if it is expressly marked for the attention of the department or officer identified with the Agent's signature below (or any substitute department or officer as the Agent shall specify for this purpose).
- (c) All notices from or to the Borrower shall be sent through the Agent.
- (d) Any communication or document which becomes effective, in accordance with paragraphs (a) to (d) above, after 5:00 p.m. in the place of receipt shall be deemed only to become effective on the following day.

30.4 Notification of address and fax number

Promptly upon changing its address or fax number, the Agent shall notify the other Parties.

30.5 Electronic communication

- (a) Any communication to be made between any two Parties under or in connection with the Finance Documents may be made by electronic mail or other electronic means (including by way of posting to a secure website) if those two Parties:
 - (i) notify each other in writing of their electronic mail address and/or any other information required to enable the transmission of information by that means; and
 - (ii) notify each other of any change to their address or any other such information supplied by them by not less than five (5) Business Days' notice.
- (b) Any such electronic communication as specified in paragraph (a) above to be made between the Borrower and a Finance Party may only be made in that way to the extent that those two Parties agree that, unless and until notified to the contrary, this is to be an accepted form of communication.
- (c) Any such electronic communication as specified in paragraph (a) above made between any two Parties will be effective only when actually received (or made available) in readable form and in the case of any electronic communication made by a Party to the Agent only if it is addressed in such a manner as the Agent shall specify for this purpose.
- (d) Any electronic communication which becomes effective, in accordance with paragraph (c) above, after 5:00 p.m. in the place in which the Party to whom the relevant communication is sent or made available has its address for the purpose of this Agreement shall be deemed only to become effective on the following day.
- (e) Any reference in a Finance Document to a communication being sent or received shall be construed to include that communication being made available in accordance with this Clause 30.5.

30.6 English language

- (a) Any notice given under or in connection with any Finance Document must be in English.
- (b) All other documents provided under or in connection with any Finance Document must be:
 - (i) in English; or

- (ii) if not in English, and if so required by the Agent, accompanied by a certified English translation and, in this case, the English translation will prevail unless the document is a constitutional, statutory or other official document.

31. **CALCULATIONS AND CERTIFICATES**

31.1 **Accounts**

In any litigation or arbitration proceedings arising out of or in connection with a Finance Document, the entries made in the accounts maintained by a Finance Party are *prima facie* evidence of the matters to which they relate.

31.2 **Certificates and determinations**

Any certification or determination by a Finance Party of a rate or amount under any Finance Document is, in the absence of manifest error, conclusive evidence of the matters to which it relates.

31.3 **Day count convention**

Any interest, commission or fee accruing under a Finance Document will accrue from day to day and is calculated on the basis of the actual number of days elapsed and a year of 360 days or, in any case where the practice in the Relevant Market differs, in accordance with that market practice.

32. **PARTIAL INVALIDITY**

If, at any time, any provision of a Finance Document is or becomes illegal, invalid or unenforceable in any respect under any law of any jurisdiction, neither the legality, validity or enforceability of the remaining provisions nor the legality, validity or enforceability of such provision under the law of any other jurisdiction will in any way be affected or impaired.

33. **REMEDIES AND WAIVERS**

No failure to exercise, nor any delay in exercising, on the part of any Finance Party, any right or remedy under a Finance Document shall operate as a waiver of any such right or remedy or constitute an election to affirm any of the Finance Documents. No election to affirm any Finance Document on the part of any Finance Party shall be effective unless it is in writing. No single or partial exercise of any right or remedy shall prevent any further or other exercise or the exercise of any other right or remedy. The rights and remedies provided in each Finance Document are cumulative and not exclusive of any rights or remedies provided by law.

34. **AMENDMENTS AND WAIVERS**

34.1 **Required consents**

- (a) Subject to Clauses 34.2 (*All Lender matters*) and 34.3 (*Other exceptions*), any term of the Finance Documents may be amended or waived only with the

consent of the Majority Lenders and the Borrower and any such amendment or waiver will be binding on all Parties.

- (b) The Parties agree and acknowledge that the consent of EDC is required to certain amendments and waivers of the Finance Documents pursuant to the terms of the EDC NHS Policy in order to ensure that EDC remains liable for the payment of claims thereunder.
- (c) The Agent may effect, on behalf of any Finance Party, any amendment or waiver permitted by this Clause 34.

34.2 All Lender matters

An amendment or waiver of any term of any Finance Document that has the effect of changing or which relates to:

- (a) the definition of Majority Lenders in Clause 1.1 (*Definitions*);
- (b) an extension to the date of payment of any amount under the Finance Documents;
- (c) a reduction in the Margin or a reduction in the amount of any payment of principal, interest, fees or commission payable;
- (d) an increase in any Commitment or an extension of the Availability Period or any requirement that a cancellation of Commitments reduces the Commitments of the Lenders rateably under the Facility;
- (e) a change to the Borrower;
- (f) any provision which expressly requires the consent of all the Lenders;
- (g) Clause 1.5 (*EDC Override*), Clause 2.2 (*Finance Parties' rights and obligations*), Clause 7.5 (*No voluntary cancellation*), Clause 7.6(c), Clause 23 (*Changes to the Parties*), Clause 27 (*Sharing among the Finance Parties*), this Clause 34, Clause 38 (*Governing law*) or Clause 40 (*Dispute Resolution*);
- (h) a waiver of any requirement to deliver documents or evidence pursuant to Clause 4.1 (*Initial conditions precedent*) or Clause 4.2 (*Further conditions precedent*);
- (i) a change in currency of payment of any amount under the Finance Documents; or
- (j) any release of, or amendment to, the EDC NHS Policy,

shall not be made without the prior consent of all Lenders.

34.3 Other exceptions

Notwithstanding Clause 34.1 (*Required consents*), an amendment or waiver which relates to the rights or obligations of the Agent or the Arranger (each in their capacity

as such) may not be effected without the consent of the Agent or the Arranger, as the case may be.

35. CONFIDENTIAL INFORMATION

35.1 Confidentiality

Each Finance Party agrees to keep all Confidential Information confidential and not to disclose it to anyone, save to the extent permitted by Clause 35.2 (*Disclosure of Confidential Information*) and Clause 35.4 (*Disclosure to numbering service providers*), and to ensure that all Confidential Information is protected with security measures and a degree of care that would apply to its own confidential information.

35.2 Disclosure of Confidential Information

Any Finance Party may disclose:

- (a) to any of its Affiliates and Related Funds and any of its or their officers, directors, employees, professional advisers, auditors, partners, insurers, insurance brokers, service providers and Representatives such Confidential Information as that Finance Party shall consider appropriate if any person to whom the Confidential Information is to be given pursuant to this paragraph (a) is informed in writing of its confidential nature and that some or all of such Confidential Information may be price-sensitive information except that there shall be no such requirement to so inform if the recipient is subject to professional obligations to maintain the confidentiality of the information or is otherwise bound by requirements of confidentiality in relation to the Confidential Information;
- (b) to EDC and any of its employees, directors, officers, agents, advisors, bank examiners, auditors, consultants, accountants, legal counsel or existing or potential insurers or reinsurers (including affiliates, directors, officers, employees, professional advisors, auditors, reinsurers, or agents of any such insurers or reinsurers), including but not limited to the following Confidential Information (which EDC requires the ability to disclose publicly pursuant to the terms of the EDC NHS Policy):
 - (i) the name of the insured; EDC's insurance service provided; a general description of the Project (including the country where the Project is located); the amount of insurance coverage under EDC NHS Policy in an approximate dollar range; and the Canadian suppliers to the Project; and
 - (ii) any information supplied to EDC in connection with the EDC NHS Policy:
 - (A) to the extent disclosure by EDC is required (i) for EDC to comply with any applicable law, or (ii) by statute, rule, regulation, audit, policy or judicial process or by virtue of any of EDC's or Canada's international commitments, including the

World Trade Organization's Subsidies and Countervailing Measures Agreement;

- (B) which EDC discloses to its shareholder or to any of EDC's employees, directors, officers, agents, advisors, bank examiners, auditors, consultants, accountants, legal counsel or existing or potential insurers or reinsurers (including Affiliates, directors, officers, employees, professional advisors, auditors, reinsurers, or agents of any such insurers or reinsurers); or
 - (C) which EDC discloses in connection with any litigation relating to the EDC NHS Policy or the transactions contemplated hereby to which EDC is a party.
- (c) to any person:
- (i) to (or through) whom it assigns or transfers (or may potentially assign or transfer), whether by way of security or otherwise, all or any of its rights and/or obligations under one or more Finance Documents or which succeeds (or which may potentially succeed) it as Agent and, in each case, to any of that person's Affiliates, Related Funds, Representatives and professional advisers;
 - (ii) with (or through) whom it enters into (or may potentially enter into), whether directly or indirectly, any sub-participation in relation to, or any other transaction under which payments are to be made or may be made by reference to, one or more Finance Documents and/or the Borrower and to any of that person's Affiliates, Related Funds, Representatives and professional advisers;
 - (iii) appointed by any Finance Party or by a person to whom paragraph (c)(i) or (ii) above applies to receive communications, notices, information or documents delivered pursuant to the Finance Documents on its behalf (including any person appointed under paragraph (b) of Clause 25.15 (*Relationship with the Lenders*));
 - (iv) who invests in or otherwise finances (or may potentially invest in or otherwise finance), directly or indirectly, any transaction referred to in paragraph (c)(i) or (ii) above;
 - (v) to whom information is required or requested to be disclosed by any court or tribunal of competent jurisdiction or any governmental, banking, taxation or other regulatory authority or similar body having competence in respect of the relevant Finance Party, the rules of any relevant stock exchange or pursuant to any applicable law or regulation;
 - (vi) to whom information is required to be disclosed in connection with, and for the purposes of, any litigation, arbitration, administrative or other investigations, proceedings or disputes;

- (vii) to whom or for whose benefit that Finance Party charges, assigns or otherwise creates Security (or may do so) pursuant to Clause 23.8 (*Security over Lenders' rights*);
- (viii) who is a Party; or
- (ix) with the consent of the Borrower;

in each case, such Confidential Information as that Finance Party shall consider appropriate if:

- (A) in relation to paragraphs (c)(i), (c)(ii) and (c)(iii) above, the person to whom the Confidential Information is to be given has entered into a Confidentiality Undertaking except that there shall be no requirement for a Confidentiality Undertaking if the recipient is a professional adviser and is subject to professional obligations to maintain the confidentiality of the Confidential Information;
- (B) in relation to paragraph (c)(iv) above, the person to whom the Confidential Information is to be given has entered into a Confidentiality Undertaking or is otherwise bound by requirements of confidentiality in relation to the Confidential Information they receive and is informed that some or all of such Confidential Information may be price-sensitive information;
- (C) in relation to paragraphs (c)(v), (c)(vi) and (c)(vii) above, the person to whom the Confidential Information is to be given is informed of its confidential nature and that some or all of such Confidential Information may be price-sensitive information except that there shall be no requirement to so inform if, in the opinion of that Finance Party, it is not practicable so to do in the circumstances;
- (d) to any person appointed by that Finance Party or by a person to whom paragraph (c)(i) or (c)(ii) above applies to provide administration or settlement services in respect of one or more of the Finance Documents including without limitation, in relation to the trading of participations in respect of the Finance Documents, such Confidential Information as may be required to be disclosed to enable such service provider to provide any of the services referred to in this paragraph (d) if the service provider to whom the Confidential Information is to be given has entered into a confidentiality agreement substantially in the form of the LMA Master Confidentiality Undertaking for Use With Administration/Settlement Service Providers or such other form of confidentiality undertaking agreed between the Borrower and the relevant Finance Party; and
- (e) to any rating agency (including its professional advisers) such Confidential Information as may be required to be disclosed to enable such rating agency to carry out its normal rating activities in relation to the Finance Documents, the

EDC NHS Policy and/or the Borrower if the rating agency to whom the Confidential Information is to be given is informed of its confidential nature and that some or all of such Confidential Information may be price-sensitive information.

35.3 Information required by EDC

The Finance Parties are entitled to give any information required by the EDC and to allow inspection of the files which relate to this Agreement and/or each Finance Document and to make copies thereof.

35.4 Disclosure to numbering service providers

(a) Any Finance Party may disclose to any national or international numbering service provider appointed by that Finance Party to provide identification numbering services in respect of this Agreement, the Facility and/or the Borrower the following information:

- (i) the name of the Borrower;
- (ii) country of the Borrower;
- (iii) the date of this Agreement;
- (iv) Clause 38 (*Governing law*);
- (v) the names of the Agent and the Arranger;
- (vi) the date of each amendment and restatement of this Agreement;
- (vii) the amounts of, and names of, the Facility (and any tranches);
- (viii) the amount of the Total Commitment;
- (ix) the currency of the Facility;
- (x) the type of Facility;
- (xi) the ranking of the Facility;
- (xii) the Final Maturity Date;
- (xiii) changes to any of the information previously supplied pursuant to paragraphs (i) to (xii) above; and
- (xiv) such other information agreed between such Finance Party and the Borrower,

to enable such numbering service provider to provide its usual syndicated loan numbering identification services.

(b) The Parties acknowledge and agree that each identification number assigned to this Agreement, the Facility and/or the Borrower by a numbering service

provider and the information associated with each such number may be disclosed to users of its services in accordance with the standard terms and conditions of that numbering service provider.

- (c) The Agent shall notify the Borrower and the other Finance Parties of:
 - (i) the name of any numbering service provider appointed by the Agent in respect of this Agreement, the Facility and/or the Borrower; and
 - (ii) the number or, as the case may be, numbers assigned to this Agreement, the Facility and/or the Borrower by such numbering service provider.

35.5 Disclosure to Contractor

Subject to Clause 35.2 (*Disclosure of Confidential Information*), each Party agrees that the Agent may disclose the contents of the following provisions to the Contractor:

- (a) Clause 5 (*Utilisation*);
 - (b) Paragraphs 2 (*Transaction Documents*), 3 (*Contractor confirmations*) and 5 (*EDC documents*) of Schedule 2 (*Conditions Precedent*); and
 - (c) Part I (*Form of Payment Request*) of Schedule 3,
- together with any defined terms used in those provisions.

35.6 Entire agreement

This Clause 35 constitutes the entire agreement between the Parties in relation to the obligations of the Finance Parties under the Finance Documents regarding Confidential Information and supersedes any previous agreement, whether express or implied, regarding Confidential Information.

35.7 Inside information

Each of the Finance Parties acknowledges that some or all of the Confidential Information is or may be price-sensitive information and that the use of such information may be regulated or prohibited by applicable legislation including securities law relating to insider dealing and market abuse and each of the Finance Parties undertakes not to use any Confidential Information for any unlawful purpose.

35.8 Notification of disclosure

Each of the Finance Parties agrees (to the extent permitted by law and regulation) to inform the Borrower:

- (a) of the circumstances of any disclosure of Confidential Information made pursuant to Clause 35.2(c)(v) except where such disclosure is made to any of the persons referred to in that paragraph during the ordinary course of its supervisory or regulatory function; and

- (b) upon becoming aware that Confidential Information has been disclosed in breach of this Clause 35.

35.9 Continuing obligations

The obligations in this Clause 35 are continuing and, in particular, shall survive and remain binding on each Finance Party for a period of twelve (12) Months from the earlier of:

- (a) the date on which all amounts payable by the Borrower under or in connection with this Agreement have been paid in full and all Commitments have been cancelled or otherwise cease to be available; and
- (b) the date on which such Finance Party otherwise ceases to be a Finance Party.

36. ASSIGNMENT BY EDC AND PUBLIC ANNOUNCEMENTS

The Borrower acknowledges that:

- (a) EDC may obtain credit enhancement, reinsurance or be counter-guaranteed in respect of the EDC NHS Policy;
- (b) EDC may assign all or any of its rights, benefits and/or interests in, under or in connection with this Agreement and/or any of the Finance Documents, to any person providing any such credit enhancement, reinsurance or counter guarantee or, following any payment due under the EDC NHS Policy, to any other person; and
- (c) the Borrower will not issue any press release or make any public announcement in relation to the EDC NHS Policy without the prior consent of the Agent, which will not be unreasonably withheld.

37. COUNTERPARTS

Each Finance Document may be executed in any number of counterparts, and this has the same effect as if the signatures on the counterparts were on a single copy of the Finance Document.

38. GOVERNING LAW

This Agreement and any non-contractual obligations arising out of or in connection with it are governed by English law.

39. GOVERNING LANGUAGE

This Agreement is drawn up in both the English and the French languages but only the English language text is authentic and binding on the Parties and the French language text does not affect the interpretation of this Agreement. If there is a conflict or inconsistency between the English language text and the French language text the former prevails.

40. DISPUTE RESOLUTION

40.1 Jurisdiction

(a) *Arbitration*

Any dispute arising out of or in connection with this Agreement, including a dispute regarding its existence, validity or termination or any non-contractual obligation arising out of or in connection with this Agreement shall be referred to and finally resolved by arbitration under the Rules of Arbitration of the International Chamber of Commerce (the "**ICC**") in force at that time (the "**ICC Rules**"), which ICC Rules are deemed to be incorporated by reference into this Clause 40.

(b) *Formation of arbitral tribunal, seat, language and governing law of arbitration*

(i) The tribunal shall consist of three (3) arbitrators. The claimant and the respondent shall nominate an arbitrator respectively. The third arbitrator, who shall be the chairman of the tribunal, shall be nominated by the two party-nominated arbitrators within thirty (30) days of the last of their appointments.

(ii) The seat of arbitration shall be London, England.

(iii) The language of the arbitration shall be English.

(iv) The arbitration agreement in this Clause 40.1 is governed by English law.

(c) *Recourse to courts*

For the purposes of arbitration pursuant to this Clause 40.1, the Parties waive any right of application to determine a preliminary point of law or appeal on a point of law under Sections 45 and 69 of the Arbitration Act 1996.

40.2 Service of process

(a) Without prejudice to any other mode of service allowed under any relevant law, the Borrower:

(i) irrevocably appoints Law Debenture Corporate Services Limited as its agent for service of process in relation to any proceedings before the English courts in connection with any Finance Document; and

(ii) agrees that failure by a process agent to notify the Borrower of the process will not invalidate the proceedings concerned.

(b) The Borrower waives any and all rights, privileges, immunities and inviolabilities that it has or may have that might otherwise prevent or inhibit service being effected at the offices of Law Debenture Corporate Services

Limited at Fifth Floor, 100 Wood Street, London EC2V 7EX in the United Kingdom.

- (c) If any person appointed as an agent for service of process is unable or unwilling for any reason to act as agent for service of process, the Borrower must immediately (and in any event within fourteen (14) days of such event taking place) appoint another agent on terms satisfactory to the Agent. Failing this, the Agent may, at the Borrower's cost, appoint another agent for this purpose.
- (d) The Borrower expressly agrees and consents to the provisions of this Clause 40 and Clause 38 (*Governing law*).

40.3 **Waiver of immunity**

- (a) If in any jurisdiction the Borrower has the power to claim for itself or any of its assets or revenues immunity from suit or other legal process or if the court may of its own motion grant such immunity to the Borrower or any of its assets or revenues, the Borrower hereby irrevocably:
 - (i) undertakes not to claim and hereby irrevocably waives, to the fullest extent permitted by Applicable Law, all such immunity; and
 - (ii) consents, to the fullest extent permitted by Applicable Law, to the giving of any relief or the issue of any process,

in each case in connection with proceedings under any of the Finance Documents including the making, enforcement or execution against any assets or property whatever of any order or judgement which may be made or given in such proceedings.

- (b) The Borrower agrees that in any proceedings in England this waiver shall have the fullest scope permitted by the English State Immunity Act 1978 and that this waiver is intended to be irrevocable for the purpose of such Act. The Borrower consents generally for the purposes of the State Immunity Act 1978 to the giving of any relief or the issue of any process in connection with any proceedings.
- (c) This waiver does not constitute a general waiver and the Borrower does not waive such immunity from execution or attachment, or like process, in respect of Excluded Assets.

THIS AGREEMENT has been entered into on the date stated at the beginning of this Agreement.

SCHEDULE 1
THE ORIGINAL LENDERS

Name of Original Lender	Commitment (EUR)
Standard Chartered Bank	48,270,000
Deutsche Pfandbriefbank AG	48,270,000
Total	96,540,000

SCHEDULE 2 CONDITIONS PRECEDENT

1. Authorisations

- (a) A copy of:
 - (i) Law No. 2007/006 of 26 December 2007 relating to the fiscal regime of the State;
 - (ii) Law No. 2016/018 of 14 December 2016 (*Loi de Finance*) on the Finances of the Republic of Cameroon for the 2017 Financial Year (as subsequently modified by Ordinance n°2017/001 of 17 May 2017 of the President of the Republic);
 - (iii) Decree No. 2011/408 of 9 December 2011 relating to the organisation of the Government;
 - (iv) Decree no. 2015/434 dated 2 October 2015 of the President of the Republic of Cameroon, appointing Mr Louis Paul Motaze as Minister of Economy, Planning and Regional Development;
 - (v) a decree of the President of Cameroon authorising the Minister of the Economy, Planning and Regional Development to sign and/or despatch the Finance Documents required to be signed by him and all other relevant documents, consents and notices to be signed and/or despatched by him under or in connection with the Finance Documents;
 - (vi) a decree of the President of the Republic of Cameroon ratifying the signed Facility Agreement/Finance Documents; and
 - (vii) Decree No. 2004/275 of 24 September 2004 to institute the Public Contracts Code (as amended) and the decree of the President of the Republic of Cameroon, appointing Mr Abba Sadou as Minister of Public Contracts and evidence.
- (b) A certificate of an authorised signatory of the Borrower substantially in the form set out in Schedule 7 (*Form of Borrower Certificate*).

2. Transaction Documents

- (a) An original of each Finance Document duly entered into by the parties to it.
- (b) An original of the Finance Letter duly executed by the Minister of Finance of the Republic of Cameroon.
- (c) A copy of the Commercial Contract certified by an authorised signatory of the Contractor as true, complete and in full force and effect.
- (d) Evidence that the award of the Commercial Contract by way of mutual agreement ("*gré à gré*") was made in accordance with the Public Contracts Code and other applicable law.

- (e) Evidence that each Finance Document has been registered free of charge (*enrégistrement gratis*) in accordance with section 337 of the *Code Général des Impôts* and has had stamp duty and graduated stamp duty paid (for the account of the Lenders) in respect of it in accordance with sections 420 and 585 respectively of the *Code Général des Impôts*.

3. **Contractor Confirmations**

- (a) Evidence that the signatory who signed the Commercial Contract on behalf of the Contractor was duly authorised to sign it.
- (b) The name of a specified person or persons who are duly authorised on behalf of the Contractor to sign and/or despatch documents related to this Agreement, including the any documents required to be signed by EDC.
- (c) A specimen signature of each person authorised in the manner described in paragraph (b) above.

4. **Legal opinions**

- (a) A legal opinion of Clifford Chance LLP, London, the legal advisers to the Finance Parties in England, in form and substance satisfactory to the Finance Parties.
- (b) A legal opinion of Zangue & Partners, the legal advisers to the Finance Parties in Cameroon, in form and substance satisfactory to the Finance Parties.
- (c) A legal opinion of the Secretary General of the Prime Minister's Office of the Republic of Cameroon substantially in the form set out in Schedule 10 (*Form of Secretary General Legal Opinion*).
- (d) A legal opinion of Blakes, legal advisers to the Finance Parties in Canada, in form and substance satisfactory to the Finance Parties.

5. **EDC documents**

Evidence that the EDC NHS Policy has been duly issued and is in full force and effect, other than the payment of the EDC Premium which will be the first drawdown under the Facility.

6. **Other documents and evidence**

- (a) Evidence satisfactory to the Agent that the Project expenditure is in accordance with the debt limit policy of the IMF (the "**IMF Debt Limit Policy**") applicable to Cameroon.
- (b) A letter from the process agent referred to in Clause 40.2 (*Service of process*) accepting its appointment.
- (c) Evidence that the fees, costs and expenses then due from the Borrower pursuant to Clauses 11 (*Fees*) and 17 (*Costs and expenses*) have been paid or will be paid by the first Utilisation Date.

- (d) A copy of any other Authorisation or other document, opinion or assurance which the Agent considers to be necessary or desirable (if it has notified the Borrower accordingly) in connection with the entry into and performance of the transactions contemplated by any Transaction Document or for the validity and enforceability of any Transaction Document.
- (e) Evidence of either (i) an agreement of an appropriate hedging solution (to the extent required) with the Arranger, to allow the Borrower to make payments in USD under the Commercial Contract; or (ii) agreement between the Borrower and the Contractor, in form and substance acceptable to EDC, that the total value of the Commercial Contract of USD 100,000,000 will be the equivalent of EUR 85,362,873.

SCHEDULE 3

PART I FORM OF PAYMENT REQUEST

From: The Republic of Cameroon (the "**Borrower**") represented by the Minister of Economy, Planning and Regional Development (acting with the Caisse Autonome d'Amortissement)

To: Standard Chartered Bank (the "**Agent**")

CC: Canadian Commercial Corporation (the "**Contractor**")

Dated: [●]

Dear Sirs

Re-Unification Stadium of Douala — Facility Agreement dated [●] 2017 (the "Facility Agreement") between, among others, the Agent and the Borrower and the Commercial Contract with reference number 000002/M/PR/MINMAP/2017 dated 20 July 2017 between the Republic of Cameroon represented by the Minister of Public Contracts and the Contractor (the "Commercial Contract")

1. We refer to the Facility Agreement. This is a Utilisation Request. Terms defined in the Facility Agreement have the same meaning in this Utilisation Request unless given a different meaning in this Utilisation Request.

2. We request that you make a Utilisation under the Facility Agreement on the following terms:

Proposed Utilisation Date: [●] (or, if that is not a Business Day, the next Business Day)

Amount: EUR [●] or, if less, the Available Facility, comprising:

[EUR [●] of goods and services;]

[EUR [●] of local cost;]

3. The amount requested to be drawn relates to payments due to the Contractor in respect of goods and services and local cost under the Commercial Contract, as stated in the attached:

(a) Contractor Declaration; and

(b) invoice no. [●] from the Contractor.

4. We attach a copy of each of the following documents for the goods and services that are the subject of this Utilisation Request:
- (a) [commercial invoices;
 - (b) facture validée par la commission de réception du Maître d'ouvrage;
 - (c) bordereau de réception provisoire visé par la même commission;
 - (d) bills of lading (*connaissements*) or air waybills (*lettres de transport aérien*);
 - (e) assurance transport lié au lot expédié;
 - (f) each summary of works (*décompte*) required to accompany requests for payment pursuant to the Commercial Contract; and
 - (g) *other documents required to be submitted in support of payment under the Commercial Contract.*¹
5. We hereby certify that as at the date of this Utilisation Request the cumulative total amount paid to the Contractor pursuant to the Commercial Contract is as itemised below:

	Amounts in attached invoice(s)	Aggregate amount paid to the Contractor under the Commercial Contract to date (inclusive of the attached invoice(s))
Canadian exports		
Third country exports		
Local cost		
Total		

6. The amount requested in this Utilisation Request is to be paid to the Contractor and should be credited to the following bank account of the Contractor:

[Contractor's Canadian bank account details to be provided]

7. We confirm that:

- (a) each condition specified in Clauses 4.1 (*Initial conditions precedent*), 4.2 (*Further conditions precedent*) and 5.3 (*Currency and amount*) of the Facility Agreement is satisfied as at the date of this Utilisation Request;

¹ Those not applicable to be deleted.

- (b) each representation and warranty made or deemed to be made on the date of this Utilisation Request pursuant to Clause 19 (*Representations*) of the Facility Agreement is true and correct;
- (c) the Commercial Contract is in full force and effect and is legal, valid, binding and enforceable;
- (d) the Commercial Contract has not been (A) terminated or suspended or (B) amended since the date of the Facility Agreement so that the goods and services (or any part of them) being provided under the Commercial Contract are no longer required; and
- (e) no Default is continuing or would result from the proposed Loan.

8. This Utilisation Request is irrevocable.

.....
Yours faithfully

For and on behalf of the Caisse Autonome d'Amortissement of the Republic of Cameroon

Signature:

Name:

Position:

Date:

PART II
FORM OF INITIAL LOAN REQUEST

The Republic of Cameroon (the "**Borrower**") represented by the Minister of Economy, Planning and Regional Development (acting with the Caisse Autonome d'Amortissement)

To: Standard Chartered Bank (the "**Agent**")

To: Standard Chartered Bank (the "**Arranger**")

CC: Canadian Commercial Corporation (the "**Contractor**")

Dated: [●]

Dear Sirs

Re-Unification Stadium of Douala —Facility Agreement dated [●] 2017 (the "Facility Agreement") between, among others, the Agent and the Borrower and the Commercial Contract with reference number 000002/M/PR/MINMAP/2017 dated 20 July 2017 between the Republic of Cameroon represented by the Minister of Public Contracts and the Contractor (the "Commercial Contract")

1. We refer to the Agreement. This is an Initial Loan Request. Terms defined in the Agreement have the same meaning in this Initial Loan Request unless given a different meaning in this Initial Loan Request.
2. We wish to borrow the Initial Loan on the following terms:
 - (a) Proposed Utilisation Date: [] (or, if that is not a Business Day, the next Business Day)
 - (b) Amount for EDC Premium Loan: []
 - (c) Amount for Structuring and Arrangement Fee and other costs and expenses: []
3. The proceeds of the Initial Loan relating to the EDC Premium should be credited to the Agent (on behalf of Export Development Canada) to the following bank account:

[Agent's bank account details to be inserted here]
4. The proceeds of the Initial Loan relating to the Structuring and Arrangement Fee and other costs and expenses should be credited directly to the Arranger to the following bank account:

[Arranger's bank account details to be inserted here]
5. We confirm that each condition specified in paragraphs (a) to (c) of Clause 4.2 (*Further conditions precedent*), with the exception of paragraph (a)(iii) of Clause 4.2, is satisfied on or prior to the date of this Initial Loan Request.
6. This Initial Loan Request is irrevocable.

.....

Yours faithfully

**For and on behalf of the Caisse Autonome d'Amortissement of the Republic of
Cameroon**

Signature:

Name:

Position:

Date:

Yours faithfully

**SCHEDULE 4
FORM OF TRANSFER CERTIFICATE**

To: [●] as Agent

From: [*The Existing Lender*] (the "**Existing Lender**") and [*The New Lender*] (the "**New Lender**")

Dated:

**Re-Unification Stadium of Douala —Facility Agreement dated [●] 2017 (the
"Agreement") between, among others, the Agent and the Borrower**

1. We refer to the Agreement. This is a Transfer Certificate. Terms defined in the Agreement have the same meaning in this Transfer Certificate unless given a different meaning in this Transfer Certificate.
2. We refer to Clause 23.5 (*Procedure for transfer*):
 - (a) The Existing Lender and the New Lender agree to the Existing Lender transferring to the New Lender by novation, and in accordance with Clause 23.5 (*Procedure for transfer*), all of the Existing Lender's rights and obligations under the Agreement and the other Finance Documents which relate to that portion of the Existing Lender's Commitment and participations in Loans under the Agreement as specified in the Annex.
 - (b) The proposed Transfer Date is [●].
 - (c) The Facility Office and address, fax number and attention details for notices of the New Lender for the purposes of Clause 30.2 (*Addresses*) are set out in the Annex.
3. The New Lender expressly acknowledges the limitations on the Existing Lender's obligations set out in paragraph (c) of Clause 23.4 (*Limitation of responsibility of Existing Lenders*).
4. This Transfer Certificate may be executed in any number of counterparts and this has the same effect as if the signatures on the counterparts were on a single copy of this Transfer Certificate.
5. This Transfer Certificate and any non-contractual obligations arising out of or in connection with it are governed by English law.
6. This Transfer Certificate has been entered into on the date stated at the beginning of this Transfer Certificate.

ANNEX TO TRANSFER CERTIFICATE

Commitment/rights and obligations to be transferred

[insert relevant details]

[Facility Office address, fax number and attention details for notices and account details for payments,]

[Existing Lender]

[New Lender]

By:

By:

This Transfer Certificate is accepted by the Agent and the Transfer Date is confirmed as [●].

[Agent]

By:

SCHEDULE 5
FORM OF ASSIGNMENT AGREEMENT

To: [●] as Agent and [●] as Borrower

From: [the *Existing Lender*] (the "**Existing Lender**") and [the *New Lender*] (the "**New Lender**")

Dated:

**Re-Unification Stadium of Douala —Facility Agreement dated [●] 2017 (the
"Agreement") between, among others, the Agent and the Borrower**

1. We refer to the Agreement. This is an Assignment Agreement. Terms defined in the Agreement have the same meaning in this Assignment Agreement unless given a different meaning in this Assignment Agreement.
2. We refer to Clause 23.6 (*Procedure for assignment*):
 - (a) The Existing Lender assigns absolutely to the New Lender all the rights of the Existing Lender under the Agreement and the other Finance Documents which relate to that portion of the Existing Lender's Commitment and participations in Loans under the Agreement as specified in the Annex.
 - (b) The Existing Lender is released from all the obligations of the Existing Lender which correspond to that portion of the Existing Lender's Commitment and participations in Loans under the Agreement specified in the Annex.
 - (c) The New Lender becomes a Party as a Lender and is bound by obligations equivalent to those from which the Existing Lender is released under paragraph (b) above.
3. The proposed Transfer Date is [●].
4. On the Transfer Date the New Lender becomes Party to the Finance Documents as a Lender.
5. The Facility Office and address, fax number and attention details for notices of the New Lender for the purposes of Clause 30.2 (*Addresses*) are set out in the Annex.
6. The New Lender expressly acknowledges the limitations on the Existing Lender's obligations set out in paragraph (c) of Clause 23.4 (*Limitation of responsibility of Existing Lenders*).
7. This Assignment Agreement acts as notice to the Agent (on behalf of each Finance Party) and, upon delivery in accordance with Clause 23.7 (*Copy of Transfer Certificate or Assignment Agreement to Borrower*), to the Borrower of the assignment referred to in this Assignment Agreement.
8. This Assignment Agreement may be executed in any number of counterparts and this has the same effect as if the signatures on the counterparts were on a single copy of this Assignment Agreement.

9. This Assignment Agreement and any non-contractual obligations arising out of or in connection with it are governed by English law.
10. This Assignment Agreement has been entered into on the date stated at the beginning of this Assignment Agreement.

ANNEX TO ASSIGNMENT AGREEMENT

Rights to be assigned and obligations to be released and undertaken

[insert relevant details]

[Facility Office address, fax number and attention details for notices and account details for payments]

[Existing Lender]

[New Lender]

By:

By:

This Assignment Agreement is accepted by the Agent and the Transfer Date is confirmed as [●].

Signature of this Assignment Agreement by the Agent constitutes confirmation by the Agent of receipt of notice of the assignment referred to herein, which notice the Agent receives on behalf of each Finance Party.

[Agent]

By:

SCHEDULE 6
FORM OF FINANCE LETTER

From: Minister of Finance of the Republic of Cameroon

To: (1) Standard Chartered Bank and Deutsche Pfandbriefbank AG as Original Lenders (the "**Lenders**")

(2) Standard Chartered Bank as Agent (the "**Agent**")

(3) Standard Chartered Bank as Arranger (the "**Arranger**")

CC: Republic of Cameroon (the "**Borrower**") represented by the Minister of Economy, Planning and Regional Development

CC: Director General, Caisse Autonome d'Amortissement

Date: [●] 2017

Dear Sirs,

1. I refer to:

(a) the facility agreement dated [●] 2017 between the Borrower, the Agent, the Arranger and the Lenders (the "**Facility Agreement**"); and

(b) the letter dated [●] 2017 from the Arranger and the Agent to the Borrower in relation to fees in respect of the Facility Agreement,

(together, the "**Facility Documents**").

2. Terms defined in the Facility Documents have the same meaning in this letter unless stated otherwise.

3. I acknowledge the terms of the Facility Documents and the obligations of the Borrower under the Facility Documents, and I make the confirmations set out below.

4. The borrowing of the Total Commitments under the Facility Agreement will not cause any borrowing or similar limit binding on the Borrower and/or Cameroon to be exceeded.

5. The borrowing limit in section 8 of chapter V of Law No 2016/018 of 14 December 2016 as subsequently modified by Ordinance n°2017/001 of 17 May 2017 of the President of the Republic authorises and makes provision for the borrowing of the Total Commitments under the Facility Agreement.

6. The Caisse Autonome d'Amortissement will duly sign each Utilisation Request under the Facility Agreement and will, within seven (7) days of receiving the Utilisation Request, forward the signed Utilisation Request to the Agent.

Yours faithfully,

Signed:

Name:

Minister of Finance of the Republic of Cameroon

SCHEDULE 7 FORM OF BORROWER CERTIFICATE

To: (1) Standard Chartered Bank as Lender and Deutsche Pfandbriefbank AG (the "**Lenders**")

(2) Standard Chartered Bank as Agent (the "**Agent**")

(3) Standard Chartered Bank as Arranger (the "**Arranger**")

Date: [●] 2017

Dear Sirs

Facility Agreement dated [●] 2017 between the Republic of Cameroon (the "Borrower") represented by the Minister of Economy, Planning and Regional Development, the Agent, the Arranger and the Lenders (the "Facility Agreement"), relating to the financing of the rehabilitation and extension of the Re-Unification Stadium of Douala and its related infrastructure pursuant to a Commercial Contract with reference number 000002/M/PR/MINMAP/2017 dated 20 July 2017 between The Republic of Cameroon represented by the Minister of Public Contracts and Canadian Commercial Corporation (the "Contractor") (the "Commercial Contract").

1. I refer to the Facility Agreement. Unless otherwise defined in this certificate, terms defined in the Facility Agreement have the same meaning in this certificate.
2. I, [name/position], authorised signatory of the Borrower, make the confirmations set out in this certificate at the date of this certificate.
3. The Borrower has obtained all Authorisations and declarations and has fulfilled all conditions of all Government Entities necessary or desirable in order to:
 - (a) render each Transaction Document legal, valid, binding and enforceable;
 - (b) make each Transaction Document admissible in evidence in Cameroon;
 - (c) enable each Cameroonian Party to perform its obligations under the Transaction Documents to which it is a party and any other documents entered into under or in connection with the Transaction Documents; and
 - (d) enable payment by the Borrower of all sums in euro in London which become due from the Borrower under the Facility Agreement.
4. The Commercial Contract entered into effect on 20 July 2017.
5. The Facility Agreement has been registered in accordance with section 270 of the *Code Général des Impôts* and has had stamp duty paid (for the account of the Lenders up to a maximum of EUR10,0,000) in respect of it in accordance with section 420 of the *Code Général des Impôts* or has been registered free of charge (*enrégistrement gratis*) in accordance with section 337 of the *Code Général des Impôts*.

6. All amounts due and payable or that will fall due and payable to the Finance Parties under the Facility Agreement during a calendar year shall be included in the yearly finance laws and its annual budget statements of Cameroon for that calendar year until there are no Commitments and all outstanding amounts have been paid.
7. The Caisse Autonome d'Amortissement acknowledges and agrees that:
- (a) immediately upon any payment by EDC of any amounts under the EDC NHS Policy, EDC will be subrogated to the extent of such payment to the rights of the Lenders under the Facility Agreement in accordance with the EDC NHS Policy;
 - (b) the Borrower will reimburse EDC for, and keep EDC indemnified against, amounts paid by EDC under the EDC NHS Policy; and
 - (c) EDC may require a Lender to assign its rights or transfer its rights and obligations to (or as directed by) EDC as referred to in Clause 23.1 (*Assignments and transfers by the Lenders*) of the Facility Agreement.
8. The following are the full names, titles and specimen signatures of the representatives of the Caisse Autonome d'Amortissement who are authorised to sign and despatch, on behalf of the Caisse Autonome d'Amortissement, each Utilisation Request under the Facility Agreement.

Name	Title	Specimen Signature
_____	_____	_____
_____	_____	_____
_____	_____	_____

9. Attached to this certificate are complete and correct copies of²:
- (a) [evidence of the authority of the Minister of Economy, Planning and Regional Development to sign and despatch the Finance Documents required to be signed by him and all other relevant documents, consents and notices to be signed and/or despatched by him under or in connection with the Finance Documents, if applicable;]
 - (b) [evidence of the authority of the Minister of Public Contracts to sign and despatch the Commercial Contract and all other relevant documents, consents and notices to be signed and despatched under or in connection with the Commercial Contract, if applicable;] and
 - (c) [evidence that each Finance Document has been registered free of charge (*enregistrement gratis*) in accordance with section 337 of the Code Général des Impôts and has had stamp duty paid in respect of it in accordance with section 420 of the Code Général des Impôts] [or have been registered free of

² Delete those that are not relevant.

charge (*enrégistrement gratis*) in accordance with section 420 and 585 respectively of the *Code Général des Impôts*]

and each of the attached is in full force and effect as at the date of this certificate.

10. Each other copy document relating to the Borrower specified in Schedule 2 (*Conditions precedent to initial Utilisation*) to the Facility Agreement is correct, complete and in full force and effect as at the date of this certificate.
11. Other than as specified in paragraph 1(a) of Schedule 2 (*Conditions precedent to initial Utilisation*) to the Facility Agreement, there are no conditions of Government Entities necessary or desirable to be fulfilled, nor any laws, decrees, Authorisations or declarations necessary or desirable, to:
 - (a) render each Transaction Document legal, valid, binding and enforceable;
 - (b) make each Transaction Document admissible in evidence in Cameroon;
 - (c) enable each Cameroonian Party to perform its obligations under the Transaction Documents to which it is a party; or
 - (d) enable payment by the Borrower of all sums in euro in London which become due from the Borrower under the Finance Documents or to enable the Borrower to perform its other obligations under the Finance Documents and any other documents entered into under or in connection with the Finance Documents.

Signed by

The Minister of Economy, Planning and Regional Development of the Republic of Cameroon

.....

[*Schedules to Borrower certificate to be added*]

SCHEDULE 8
FORM OF CONTRACTOR CERTIFICATE

From: Canadian Commercial Corporation (the "**Contractor**")

To: Standard Chartered Bank (the "**Agent**")

CC: The Republic of Cameroon (the "**Borrower**") represented by the Minister of Economy, Planning and Regional Development (acting by the Caisse Autonome d'Amortissement)

CC: The Republic of Cameroon represented by the Minister of Public Contracts

Date: [●]

Dear Sirs,

Re-Unification Stadium of Douala — Facility Agreement dated [●] 2017 (the "Facility Agreement") between, among others, the Agent and the Borrower and the Commercial Contract with reference number 000002/M/PR/MINMAP/2017 dated 20 July 2017 between the Minister of Public Contracts and the Contractor (the "Commercial Contract")

1. We refer to the Facility Agreement. This is a Contractor Certificate delivered pursuant to the terms and conditions of the Facility Agreement. Terms used in this Contractor Certificate have the same meaning as defined in the Facility Agreement unless otherwise defined herein.
2. We hereby confirm that the names and specimen signatures of each representative of the Contractor authorised to sign (a) certificates, confirmations and undertakings required under the Facility Agreement, and (b) any other document that the Contractor may present to the Agent or the Lenders from time to time are set out below:

Name	Title	Specimen Signature

3. We hereby confirm that, to the best of our knowledge (having made due and careful enquiry), the planned procurement of the goods and services under the Commercial Contract shall be comprised of the following:

	Most Likely Scenario	Worst-Case Scenario
Canadian exports	EUR [●]	EUR [●]
Third country exports	EUR [●]	EUR [●]
Local costs	EUR [●]	EUR [●]

4. We undertake to use our best endeavours to ensure that the actual procurement of goods and services under the Commercial Contract is undertaken in accordance with paragraph 3, above.
5. If the actual procurement of goods and services under the Commercial Contract has deviated, or is reasonably likely to deviate, in any material way from the breakdown set out in Paragraph 3, we undertake to:
 - (a) notify the Agent promptly upon becoming aware of such deviation; and
 - (b) co-operate with, and take such action as required by, the Finance Parties to ensure that the goods and services procured, or to be procured, under the Commercial Contract remain eligible goods and services (including without limitation providing all information requested by any Finance Party or EDC).
6. We hereby confirm that the Commercial Contract is in full force and effect and constitutes our valid, legal and binding obligations.
7. We undertake to update the information above in the event of any changes.

Yours faithfully,

For and on behalf of Canadian Commercial Corporation

Signature:

Name:

Position:

Date:

SCHEDULE 9
FORM OF CONTRACTOR DECLARATION

From: Canadian Commercial Corporation (the "**Contractor**")

To: Standard Chartered Bank (the "**Agent**")

CC: The Republic of Cameroon (the "**Borrower**") represented by the Minister of Economy, Planning and Regional Development (acting by the Caisse Autonome d'Amortissement)

CC: The Republic of Cameroon represented by the Minister of Public Contracts

Date: [●]

Dear Sirs,

Re-Unification Stadium of Douala - EUR 96,540,000 Facility Agreement dated [●] 2017 (the "Facility Agreement") between, among others, the Agent and the Borrower and the Commercial Contract with reference number 000002/M/PR/MINMAP/2017 dated 20 July 2017 between the Minister of Public Contracts and the Contractor(the "Commercial Contract")

1. We refer to the Facility Agreement and to the Utilisation Request No. [●] dated [●]. This is a Contractor Declaration issued pursuant to the Facility Agreement. Terms used in this Contractor Declaration have the same meaning as defined in the Facility Agreement unless otherwise defined herein.
2. This Declaration is provided in consideration of the Lenders providing finance to the Borrower in respect to the Commercial Contract.
3. The total contract price under the Commercial Contract is USD [●] (XAF [●]).
4. We hereby confirm that, to the best of our knowledge (having made due and careful enquiry), the planned procurement of the goods and services under the Commercial Contract shall be comprised of the following:

	Amount in the attached invoices	Aggregate amount of all invoices issued under the Commercial Contract to date (including the attached invoice[s])
Canadian exports	EUR [●]	EUR [●]
Third country exports	EUR [●]	EUR [●]
Local cost	EUR [●]	EUR [●]

5. We attach the relevant invoice[s] related to Utilisation Request No. [●] referred to in Paragraph 4 above.

6. We certify that the relevant invoice[s] referred to in Paragraph 5 above relate[s] to the works to be undertaken in the Commercial Contract and which have been completed in accordance with the Commercial Contract.
7. We certify that the Commercial Contract is in full force and effect and has not been suspended, interrupted, cancelled, terminated, materially amended or materially modified (in whole or in part) and there is no default under the Commercial Contract which has occurred and is continuing.
8. This Contractor Declaration is irrevocable.
9. We undertake to use our best endeavours to ensure that the actual procurement of goods and services under the Commercial Contract is undertaken in accordance Paragraph 4, above.
10. If the actual procurement of goods and services under the Commercial Contract has deviated, or is reasonably likely to deviate, in any material way from the breakdown set out in Paragraph 4 above, we undertake to:
 - (a) notify the Agent promptly upon becoming aware of such deviation; and
 - (b) co-operate with, and take such action as required by, the Finance Parties to ensure that the goods and services procured, or to be procured, under the Commercial Contract remain eligible goods and services (including without limitation providing all information requested by any Finance Party or EDC).
11. This Declaration and any non-contractual obligations arising out of or in connection with it are governed by and shall be construed in accordance with English law.

This Contractor Declaration is irrevocable.

Yours faithfully,

For and on behalf of Canadian Commercial Corporation

Signature:

Name:

Position:

Date:

SCHEDULE 10
FORM OF SECRETARY GENERAL LEGAL OPINION

[Letterhead of Secretary General, Prime Minister's Office]

TO:

- (1) Standard Chartered Bank and Deutsche Pfandbriefbank AG as Lenders (the "**Original Lenders**")
- (2) Standard Chartered Bank as Agent (the "**Agent**")
- (3) Standard Chartered Bank as Arranger (the "**Arranger**")

Date: [●] 2017

Dear Sirs,

LEGAL OPINION

FINANCING FOR THE RE-UNIFICATION STADIUM OF DOUALA

I, [●], the Secretary General of the Prime Minister's Office of the Republic of Cameroon, have been asked to issue this Opinion Letter in connection with the EUR 96,540.000 facility agreement dated [●] 2017 between the Republic of Cameroon (the "**Borrower**") represented by the Minister of Economy, Planning and Regional Development, the Agent, the Arranger and the Lenders (the "**Facility Agreement**") and the Commercial Contract, each as defined in the Facility Agreement.

1. INTRODUCTION

1.1 Opinion documents

The opinions given in this Opinion Letter relate to:

- 1.1.1 the Facility Agreement;
- 1.1.2 the letters dated [●] 2017 from the Arranger and the Agent to the Borrower and in respect of the fees payable in relation to the Facility Agreement (the "**Fee Letters**");
- 1.1.3 the [letter dated [●] 2017]/[draft letter in the form set out in Schedule 6 of the Facility Agreement] from the Minister of Finance of the Republic of Cameroon (the "**Minister of Finance**") to the Finance Parties in relation to the Facility Agreement and the Fee Letter (the "**Finance Letter**"); and
- 1.1.4 the Commercial Contract.

1.2 Definitions and interpretation

In this Opinion Letter:

1.2.1 "**Facility Document**" means the Facility Agreement

1.2.2 "**Facility Documents**" means the Facility Agreement and the Fee Letter

1.2.3 terms defined or given a particular construction in the Facility Agreement have the same meaning in this Opinion Letter unless a contrary indication appears; and

1.2.4 headings in this Opinion Letter are for ease of reference only and shall not affect its interpretation.

1.3 Legal review

For the purpose of issuing this Opinion Letter I have reviewed the documents referred to in the Annex to this Opinion Letter.

1.4 Applicable Law

I express no opinion as to any law other than Applicable Law in force at and as interpreted at the date of this Opinion Letter.

2. OPINIONS

I am of the opinion that:

2.1 Capacity and authority

2.1.1 The Republic of Cameroon has the power to own its assets and the capacity to sue and be sued in its own name.

2.1.2 The Borrower has the capacity and power to enter into the Facility Documents and to exercise its rights and perform its obligations under the Facility Documents.

2.1.3 No limit on the Borrower's borrowing powers will be exceeded as a result of utilising the Facility in full or its entry into and performance of its obligations under the Facility Documents.

2.1.4 The Minister of Finance has the capacity and power to enter into the Finance Letter.

2.1.5 The Minister of Public Contracts has the capacity and power to enter into the Commercial Contract and actions required to authorise the execution by the Minister of Public Contracts of the Commercial Contract have been duly taken.

- 2.1.6 All actions required to authorise the execution by the Borrower of the Facility Documents and the exercise by it of its rights and the performance by it of its obligations under the Facility Documents have been duly taken.
- 2.1.7 The Borrower is validly bound by each of the Facility Documents and the Commercial Contract in accordance with their terms.

2.2 Authorisations

- 2.2.1 [Title/Name], the Minister of Economy, Planning and Regional Development of the Republic of Cameroon, has full power and authority to execute and deliver each of the Facility Documents in the name and on behalf of the Borrower.
- 2.2.2 [Title/Name], the Minister of Finance has full power and authority to execute and deliver the Finance Letter.
- 2.2.3 [Title/Name], the Minister of Public Contracts of the Republic of Cameroon, has full power and authority to execute and deliver the Commercial Contract in the name and on behalf of the Borrower.
- 2.2.4 Each of [●] and [●], individually, has full power and authority to sign and deliver each Utilisation Request in the name and on behalf of the Caisse Autonome d'Amortissement and in the name and on behalf of the Borrower.
- 2.2.5 All requisite authorisations, approvals and consents (including but not limited to all approvals required pursuant to Decree No. 2004/275 of 24 September 2004 to institute the Public Contracts Code (as amended) to institute the Public Contracts Code law, Decree No. 2012/74 of 8 March 2012 and pursuant to all public procurement rules in Cameroon) required to:
 - (a) authorise the execution of the Facility Documents, the Finance Letter, and the Commercial Contract by the relevant persons referred to in paragraphs 2.2.1 to 2.2.3 above;
 - (b) authorise the exercise by the Borrower of its rights and the performance by it of its obligations under the Facility Documents and ensure the enforceability of its obligations under the Facility Documents; and
 - (c) authorise the exercise by the Borrower of its rights and the performance by it of its obligations under the Commercial Contract and ensure the enforceability of its obligations under the Commercial Contract;

have been duly obtained and complied with.

- 2.2.6 All public procurement rules in Cameroon that are applicable to:
 - (a) the award of the Commercial Contract by way of mutual agreement ("*gré à gré*"); and

- (b) the Minister of Public Contracts' entry into and the exercise of its rights and performance of its obligations under the Commercial Contract,

have been complied with.

2.3 Due execution

- 2.3.1 Each of the Facility Documents have been duly executed by [*Title/Name*], the Minister of Economy, Planning and Regional Development of the Republic of Cameroon, on behalf of the Borrower.
- 2.3.2 The Finance Letter has been duly executed by [*Title/Name*], the Minister of Finance.
- 2.3.3 The Commercial Contract has been duly executed by [*Title/Name*], the Minister of Public Contracts of the Republic of Cameroon.

2.4 Non-conflict

- 2.4.1 None of the execution and delivery of the Facility Documents, the utilisation of the Facility under the Facility Agreement in full nor the performance of the obligations of the Borrower under the Facility Documents conflict with or will conflict with any Applicable Law or any agreement, mortgage, bond or other instrument to which it is a party or which is binding upon it or any of its assets, or constitute a default or termination event (howsoever described) under any such agreement or instrument.
- 2.4.2 None of the execution and delivery of the Commercial Contract nor the performance of the obligations under the Commercial Contract conflict with or will conflict with any Applicable Law or any agreement, mortgage, bond or other instrument to which it is a party or which is binding upon it or any of its assets, or constitute a default or termination event (howsoever described) under any such agreement or instrument.
- 2.4.3 Neither the Facility Documents nor the Commercial Contract contain any provision which is contrary to public policy in, or applicable in, Cameroon or which would for any reason not be upheld by the courts of Cameroon.

2.5 Legal, valid, binding and enforceable obligations

In any proceedings taken in Cameroon for the enforcement of the Facility Documents or the Commercial Contract, the obligations expressed to be assumed by the Borrower in the Facility Documents and the Commercial Contract would be recognised by the courts of Cameroon as their respective legal, valid and binding obligations and would be enforceable in the courts of Cameroon.

2.6 Further acts

2.6.1 No further acts, conditions or things are required under Applicable Law to be done, fulfilled or performed in order to:

- (a) enable the Borrower lawfully to enter into, exercise its rights or perform its obligations under the Facility Documents or to make the Facility Documents enforceable and admissible in evidence in Cameroon; or
- (b) enable the Minister of Public Contracts lawfully to enter into, exercise its rights or perform its obligations under the Commercial Contract or to make the Commercial Contract enforceable and admissible in evidence in Cameroon.

2.6.2 It is not necessary to file, register, record or enrol the Facility Documents or the Commercial Contract with BEAC, any other intergovernmental, governmental or judicial institution of Cameroon or any publicly accessible file in Cameroon.

2.7 Governing law

In any proceedings taken in Cameroon for the enforcement of the obligations of the Borrower under the Facility Documents, the Cameroonian courts would recognise and uphold the choice of English law to govern the Facility Documents and any non-contractual obligations arising out of or in connection with them.

2.8 Arbitration

2.8.1 The Facility Documents are in proper legal form for enforcement against the Borrower in the most expeditious manner available under Applicable Law.

2.8.2 The Commercial Contract is in proper legal form for enforcement against the Borrower in the most expeditious manner available under Applicable Law.

2.8.3 The arbitration agreement contained in the Facility Documents and the arbitration agreement contained in the Commercial Contract are legal, valid and binding agreements to submit to arbitration. The courts of Cameroon would recognise and enforce an award given by an arbitral tribunal in respect of the Facility Documents or the Commercial Contract without examination of the merits of the case.

2.8.4 The enforcement of an arbitral award relating to the Facility Documents and/or the Commercial Contract would not be contrary to Applicable Law or to public policy of Cameroon.

2.9 *Pari passu* ranking

The obligations of the Borrower under the Facility Documents will at all times constitute direct, general and unconditional obligations and will rank at least *pari passu* with all of its present and future unsecured and unsubordinated obligations save

only for such obligations as may be preferred by mandatory provisions of Applicable Law.

2.10 Waiver of sovereign immunity

The waiver of immunity by the Borrower pursuant to Clause 40.3 (*Waiver of immunity*) of the Facility Agreement is legal, valid and binding under Applicable Law and would be fully recognised and enforceable against the Borrower by the Cameroonian courts. The transactions contemplated by the Facility Documents constitute commercial activities (and not governmental or public activities) of the Borrower and the Borrower is subject to private commercial law in respect of such activities. To the extent of such waiver (and subject to the express exceptions provided therein), the Borrower is not entitled to immunity on the grounds of sovereignty or otherwise from any legal action or proceeding in connection with the Facility Documents.

2.11 Process agent

The appointment by the Borrower, of Law Debenture Corporate Services Limited as its agent for the service of process in relation to proceedings under the Facility Documents is valid and binding and does not contravene Applicable Law.

2.12 Foreign exchange controls and transfer restrictions

There are no foreign exchange control or other restrictions or reserve requirements under any Applicable Law that would limit:

2.12.1 the ability of the Borrower to:

- (a) exchange or convert Central African CFA franc into euro;
- (b) make any and all payments under the Facility Documents or the Commercial Contract (as applicable) in accordance with their terms and in the currency in which they are specified to be made;
- (c) transfer amounts out of and into the Republic of Cameroon as necessary to meet their obligations under the Facility Documents and the Commercial Contract (as applicable) in accordance with their terms; or
- (d) use the euro or dollar as necessary to perform all of their obligations under the Facility Documents and the Commercial Contract (as applicable) in accordance with their terms (including to make all payments contemplated in the Facility Documents and the Commercial Contract) and no consent, approval, licence or permission of any person or authority is required for the payment in euro or dollar, in accordance with the terms of the Facility Documents and the Commercial Contract (as applicable), of any amount that may be owed by the Borrower under the Facility Documents or under the Commercial Contract or the remittance of the proceeds of any award obtained in relation to the Facility Documents or the Commercial Contract; or

2.12.2 the availability or transfer of Central African CFA franc or dollar or euro, or the conversion of Central African CFA franc into dollar or euro, for the purpose of:

- (a) the performance by the Borrower of its obligations under the Facility Documents and the Commercial Contract (as applicable) in accordance with their terms; or
- (b) repatriating the proceeds of enforcement in respect of the obligations of the Borrower outside the Republic of Cameroon.

2.13 Stamp taxes

2.13.1 Other than as specified in paragraph 2.13.2 below, no stamp duty, registration duty or other documentary tax, similar taxes or charges are payable in Cameroon in respect of the Facility Documents.

2.13.2 The Facility Documents have been registered free of charge (*enrèglement gratis*) in accordance with section 337 of the *Code Général des Impôts* and have had stamp duty paid (for account of the Lenders) in respect of them in accordance with section 420 (among others) of the *Code Général des Impôts*.

2.14 Withholding tax

The Borrower will not be required to make any deduction or withholding from any payment it may make under the Facility Documents in Cameroon, including in relation to any withholding tax. The Borrower's tax gross up obligations under Clause 13.2 (*Tax gross up*) of the Facility Agreement are legal, valid and binding and do not contravene Applicable Law.

2.15 IMF and the World Bank Group

The Republic of Cameroon is a member in good standing and eligible to use the resources of the IMF and the World Bank Group, and the Project expenditure is in accordance with the IMF Debt Limit Policy applicable to Cameroon.

2.16 Licensing and Qualification

Under Applicable Law, none of the Lender, the Agent or the Arranger will, by reason of its entering into the Facility Documents, performing its obligations or enforcing its rights thereunder: (i) be required to be qualified, licensed, or otherwise entitled to do business in Cameroon or be required to comply with any requirement as to foreign registration or qualification in Cameroon; (ii) be subject to taxation in Cameroon; or (iii) be required to make any filing with any court or other governmental authority in Cameroon prior to any enforcement of any of the Facility Documents or performance of any of the transactions contemplated by the Facility Documents.

3. ADDRESSEES AND PURPOSE

This Opinion Letter is provided in connection with the satisfaction of the conditions precedent under the Facility Agreement and is addressed to and is solely for the benefit of the Lenders, the Agent and the Arranger. It may not, without the prior

written consent of myself or a person subsequently holding my office, be relied upon for any other purpose or be disclosed to or relied upon by any other person save that it may be disclosed without such consent to:

- 3.1 any person to whom disclosure is required to be made (i) by applicable law or court order or (ii) pursuant to the rules or regulations of, or where requested by, any stock exchange, bank regulatory agency, governmental agency or supervisory, self-regulatory or regulatory body or (iii) in connection with any judicial proceedings;
- 3.2 the officers, employees, auditors, insurers and professional advisers of any addressee; and
- 3.3 any Affiliate of any addressee and the officers, employees, auditors and professional advisers of such Affiliate.

Yours faithfully,

Signed:

Name:

SECRETARY GENERAL OF THE PRIME MINISTER'S OFFICE

ANNEX TO SECRETARY GENERAL LEGAL OPINION

DOCUMENTS

I have reviewed the following documents for the purposes of this Opinion Letter:

1. an executed copy of the Facility Agreement;
2. an executed copy of the Fee Letter;
3. an executed copy of the Finance Letter;
4. an executed copy of the Commercial Contract;
5. Decree N° 201/485 of 14 September of the President of the Republic of Cameroon authorising the Minister of the Economy, Planning and Regional Development to sign the Finance Documents;
6. a decree of the President of the Republic of Cameroon dated [●] 2017 ratifying the signed Facility Agreement/Finance Documents;
7. Decree N° 2012/074 of 08 March 2012 on the establishment, organization and functioning of the procurement commissions;
8. Decree N°2013/271 of 05 August 2013 amending and supplementing certain provisions of the decree N°2012/074 of March 2012; and
9. all relevant laws including but not limited to:
 - (a) Law No. 96/06 of 18 January 1996 to amend the Constitution of 2 June 1972;
 - (b) Law No. 2007/006 of 26 December 2007 relating to the fiscal regime of the State;
 - (c) Law No. [●] on the Finances of the Republic of Cameroon for the 2017 Financial Year (or the 2018 Financial Year, as the case may be);
 - (d) Decree No. 2004/275 of 24 September 2004 to institute the Public Contracts Code (as subsequently amended);
 - (e) Decree No. 2011/408 of 9 December 2011 and Decree No. [●] 2015 relating to the organisation of the Government;
 - (f) Decree no. 2015/434 dated 2 October 2015 of the President of the Republic of Cameroon, appointing Mr Louis Paul Motaze as Minister of Economy, Planning and Regional Development;

and such other documents as I have considered appropriate for the purposes of this Opinion Letter.

SCHEDULE 11 TIMETABLES

Delivery of a duly completed Utilisation Request (Clause 5.1 (<i>Delivery of a Utilisation Request</i>))	U-3 10 a.m. London time
Agent notifies the Lenders of a Loan in accordance with Clause 5.5 (<i>Lenders' participation</i>)	U- [2] 4:00 p.m. London time
EURIBOR is fixed	Quotation Day 11:00 a.m. (Brussels time)

"U-x" means x Business Days prior to the Utilisation Date.

SIGNATURES

For and on behalf of)
THE REPUBLIC OF CAMEROON)
REPRESENTED BY THE MINISTER OF)
ECONOMY, PLANNING AND REGIONAL)
DEVELOPMENT)
as the Borrower)

Name:

Position: **Louis Paul MOTAZI**

CONTACT DETAILS

Minister of Economy, Planning and Regional Development - MINEPAT
Amacam Building
P.O. Box 660 Yaoundé
Cameroun
Phone: +237 222255305
Attention: Director General of Cooperation and Regional Integration

CONTACT DETAILS OF THE CAISSE AUTONOME D'AMORTISSEMENT

Caisse Autonome d'Amortissement du Cameroun
7167 Yaoundé-Cameroun
Phone: +237 222222226
Facsimile: +237 222220129
Attention: Directeur Général de la Caisse Autonome d'Amortissement du Cameroun

For and on behalf of
STANDARD CHARTERED BANK
as Original Lender

Signature:

Name:

Position:

)
)
)
Abhay Rangnekar
Managing Director
Regional Head of Project & Export Finance
ASEAN and South Asia

CONTACT DETAILS

Address: 1 Basinghall Avenue, London, EC2V 5DD

Phone: +44 2078856947

Email: Faruq.Muhammad@sc.com

Facsimile: +44 2078850947

Attention: Head of Structured Export Finance

For and on behalf of
DEUTSCHE PFANDBRIEFBANK AG
as Original Lender

Signature: 

Gabriele v. dem Bussche

Name:

Head of ECA Finance

Position:

)
)
)



Stephan Cors

Director

CONTACT DETAILS

Address: Ludwig-Erhard-Str. 14 65760 Eschborn Germany

Phone: +49 61969727170

Email: ECAfinance@pfandbriefbank.com

Attention: Stephan Cors

For and on behalf of
STANDARD CHARTERED BANK
as Agent

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)
) 

Signature:

Name: **Paul Thompson**
Global Head of Transaction Management Group

Position: Standard Chartered Bank

CONTACT DETAILS

Address: 1 Basinghall Avenue, London, EC2V 5DD

Email: loansagencyuk@sc.com

Facsimile: +44 (0)20 7885 9728

Attention: Manager Asset Servicing

For and on behalf of
STANDARD CHARTERED BANK
as Arranger

Signature:

Name:

Position:

)
)
)
Abhay Rangnekar
Managing Director
Regional Head of Project & Export Finance
ASEAN and South Asia

CONTACT DETAILS

Address: 1 Basinghall Avenue, London, EC2V 5DD

Phone: +44 2078856947

Email: Faruq.Muhammad@sc.com

Facsimile: +44 2078850947

Attention: Head of Structured Export Finance